



File No.: EXP202315637

RESOLUTION OF SANCTIONING PROCEDURE

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BACKGROUND

FIRST: Complaints filed.

On 4/11/2022, the Spanish Agency for Data Protection became aware through a complaint of certain facts that could violate data protection legislation.

The complainant states that the Permanent Commission of the State Commission against Violence, Racism, Xenophobia, and Intolerance in Sport (CEVRXID), dependent on the Higher Sports Council (C.S.D.), has adopted an agreement whereby access to the cheering stands in football stadiums will be carried out through biometric control. It adds that some football teams are already adopting these forms of access, even for access to other areas of the stadium.

The complainant believes that the processing carried out constitutes an "excess in the sense of Article 5.1 c) of the GDPR," and that "the same access controls can be carried out through nominal subscriptions and, if necessary for security reasons, by requesting the presentation of the ID card."

Subsequently, on 22/03/2023, a new complaint (registration number ***REFERENCE.1) was acknowledged, pointing to the implementation by the NATIONAL PROFESSIONAL FOOTBALL LEAGUE (LNFP), through the GENERAL REGULATION OF THE NATIONAL PROFESSIONAL FOOTBALL LEAGUE (RGLNFP), of access control mechanisms to football stadiums based on biometric data. According to a news article accompanying ***URL.1., access via facial recognition has been implemented at the stadium ***STADIUM.1."

This complainant expresses that these actions involve the processing of special categories of personal data, and in such cases, Article 9 of the GDPR must be complied with. A copy of the RGLNFP (version approved by the C.S.D. in the session of 7/11/2022) is provided, in which BOOK XII regulates the "Regulation for the sale of subscriptions and tickets" (RVAE) and Article XII.2 "conditions for the sale of subscriptions in cheering stands."

SECOND: Agreement on preliminary investigation actions

As a result of the complaint, the Director of the Spanish Agency for Data Protection agreed on 2/1/2023 to carry out preliminary investigation actions in accordance with the provisions of Article 67 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

THIRD: Initiation of preliminary actions

The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to determine the facts in question, EXP202213792, AI/00444/2022, by the assignment of the functions attributed to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

3.1 Request for information from the LNFP

On 17/02/2023, the LNFP was requested regarding the access controls to the stadiums of the Clubs and SAD (sports public limited companies) that are members of the LNFP, the following:

3.1.1. Provide the set of rules, instructions, recommendations, etc., approved by the LNFP and currently in force regarding the various aspects of personal data processing (principles, bases of legitimacy, special categories of data, duty of information, rights of the data subjects, retention periods, etc.) resulting from the access control to the stadiums of its members. Indicate for each of the referred rules the date from which it has been in force, whether it is of a recommendation or obligation nature, and whether the approval of its terms derives from the promulgation of state regulations.

The LNFP responded on 10/03/2023.

It cites Article 56.3 of Law 39/2022 on Sport, of 30/12, BOE 31/12/2022, effective from the day following its publication (LD 2022), the ratification by the C.S.D. of the social statutes and regulations of the LNFP. It states that the regulations approved by the LNFP for the proper development of the competition do not stem from its mere unilateral will but from its approval by the C.S.D., constituting administrative acts emanating from that body, and are therefore subject to administrative contentious appeal.

It indicates that the LNFP lacks the capacity to adopt regulatory norms for the competitions subject to it, requiring the endorsement of the Public Administration. It considers that all the requested norms were approved by the C.S.D.

It cites the doctrine of the Supreme Court ruling of 19/02/2020, cassation appeal 670/2018 as an example of the legal nature of the LNFP in a matter resolved in the exercise of its competencies by the Basketball Clubs Association (Professional Basketball League) due to the refusal to register a Club, taken in development of its Regulation.

The issue was whether the C.S.D. was competent in appeals against resolutions adopted by the aforementioned Association.

The ruling indicates (third legal basis):

"Professional Leagues are one of the forms of sports association contemplated in Law 10/1990, of 15 October, on Sport (LD) and are defined as 'associations of Clubs that will be constituted, exclusively and mandatorily, when there are official competitions of a professional nature and state scope, as established in Article 41 of this Law.'"

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Article 41 provides that "1. In Spanish sports federations where there is official professional competition at the state level, leagues will be established, exclusively and mandatorily composed of all clubs participating in such competition.

2. Professional leagues will have legal personality and will enjoy autonomy for their internal organization and functioning with respect to the corresponding Spanish sports federation of which they are a part.

3. The statutes and regulations of professional leagues will be approved by the Superior Sports Council, following a report from the corresponding Spanish sports federation, and must include, in addition to the general requirements established by regulation, a specific disciplinary regime.

4. The competencies of professional leagues, in addition to those that may be delegated to them by the corresponding Spanish sports federation, are as follows:

a) Organize their own competitions, in coordination with the respective Spanish sports federation and in accordance with the criteria that, in exclusive guarantee of national or international commitments, may be established by the Superior Sports Council."

The ruling interprets that if the contested matter was related to the general organization of competitions, which is the responsibility of the federations (in which the leagues are integrated) developed as contained in section a) of article 33.1 of Law 10/1990, of 15/10, on Sports: "to qualify and organize, where appropriate, the official sports activities and competitions at the state level, under the coordination and supervision of the C.S.D.," these are acts carried out in the exercise of public functions of an administrative nature defined by article 3.1 of Royal Decree 1835/1991 of 20/12, on Spanish Sports Federations and the Registry of Sports Associations, which can be challenged before the C.S.D.

-The LNFP states that "The requested issue is reflected in article XII.2 'Ticket Sales Regulation,' within the RGLNFP, approved by the Executive Committee of the Superior Sports Council on 23/12/2015, which is provided as DOCUMENT 1, in its version approved by the C.S.D. on 7/11/2022, informing that the aforementioned article XII.2 has not been subject to any modifications since its approval.

As DOCUMENT 2, it provides certification of the agreement to approve the modification of the RGLNFP by the C.S.D., which took place in its session of 23/12/2015, specifically referring to the fact that the modification incorporates as new, BOOK XII of the RGLNFP, on 'sale of season tickets and tickets' (Regulation on the Sale of Season Tickets and Tickets, RVAE). In the certificate, it is stated in the 'background of facts':

"FIRST - A written communication from the National Professional Football League was received by this Organization, informing of the approval by the General Assembly of the LNFP of the modification of the General Regulation, and requesting its final approval by the Executive Committee of the Superior Sports Council (C.S.D.). The modification incorporates two new Books, Book XI on the commercialization of audiovisual rights, and Book XII which deals with the sale of season tickets and tickets.

Second - There is in the file a Certificate issued by the General Secretary of the LNFP, stating that the modifications were approved by the Assembly."

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Extraordinary General Assembly of the National Professional Football League, in accordance with the provisions of Article 11. b) of its Social Statutes. Reports from the General Subdirectorates of High Competition, Professional Sports and Financial Control, and Legal Regime of Sports of the C.S.D. are included. The RFEF did not send the requested report in this regard, so it is not included in the file."

In the legal grounds of the aforementioned agreement, it states:

"FIRST" - The Executive Commission of the C.S.D. is competent to consider the request submitted, by virtue of the provisions of Articles 10.2.b) of Law 10/1990, of October 15, on Sports, and 3.b) of Royal Decree 1242/1992, of October 16, which regulates the composition and functioning of the Executive Commission.

"SECOND" - In this regard, it should be noted that the agreement that the Executive Commission must adopt involves examining whether the approval of the proposed regulatory modifications complies with current regulations."

It concludes with the AGREES: "To definitively approve and authorize the registration in the Register of Sports Associations of the Superior Council of Sports, of the modification of the General Regulations, which incorporates two new Books, Book XI on the commercialization of audiovisual rights, and Book XII concerning the sale of season tickets and tickets..."

The LNFP highlights section 2 of the aforementioned Article XII.2 of the RGNLFP, regarding the "conditions for the sale of season tickets in animation stands," which is preceded for understanding by Article XII.1, titled "Conditions for the sale of season tickets," which stipulates that for all affiliated Clubs and SADs, it will be carried out through the "prior and proper identification of the purchasers,"

who “must provide the Club/SAD at the time of purchase, at least the following personal data, which will be subject to processing, in accordance with the provisions of current regulations on the protection of personal data”:

A - Identification data: name and surname and identity verification document

B - Contact data: address for notification purposes, contact telephone number, and email address.”

Recommending that if the transfer of season tickets is not allowed, a photograph of the holder should be included in the season ticket.”

Next, the following Article XII.2 titled “conditions for the sale of season tickets in animation stands,” which describes that, to be designated as such, it must “have a biometric recognition access system installed,” in addition to “being intended for local fans,” and be or constitute a differentiated sector from the rest of the capacity, with preferably exclusive access to the sector or area.

(art XII.2.1)

Points 2 to 6 of the same article state:

“2. The sale of season or half-season access titles or documents, regardless of their designation, in the animation stands with the characteristics...

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Described in section 1, it will require that the fan provide, along with the data specified in Article 1 of this Regulation, the biometric data that is determined, and the consent of the interested party must be obtained by clearly informing them of the specific purposes for the processing of the aforementioned personal data, in accordance with the current regulations on the protection of personal data. At the time of acquiring the access title by the affiliated Club/SAD, the fan will be associated with the provided identification and the biometric data.

3. The season or half-season access titles for the fan zones will be personal and non-transferable, regardless of the policy that the Club/SAD has regarding these for the rest of the venue. To this end, the Club/SAD will establish, both in the document of acquisition of the access title and in the corresponding internal regulation, that in these areas, spectators will be subject to all identity verification controls in effect at any given time, including those related to automatic biometric systems, as well as the presentation of the access title along with a document proving their identity.

4. Access to the fan zones will only be permitted to fans who have obtained the access title for that area and who, at the time of entry, undergo the reading of their biometric data. Access will be denied if the person does not provide, if required, along with the biometric data, a document proving their identity that matches the identification associated with the biometric data and the access title.

5. The members of this stand must accept at least the following obligations:

a) That the access document is personal and non-transferable, with the holder being responsible for its correct use.

b) That upon entering the sports venue and during the course of the match, they will submit to any identity checks required by the personnel of the Club/SAD or the Security Forces.

c) That the use of the access document by a third party will result in the prohibition of access or expulsion from the venue for that individual, as well as for the holder, any other disciplinary consequences that may arise under the disciplinary regime of the Club/SAD.

d) At the time of formalizing the access title, the clause of recognition and compliance defined in Article 1.3 of this Regulation will be included.

6. Any other access system to this area that does not involve biometric recognition will be exceptional and occasional and will require, if applicable, the Club/SAD to have a procedure that allows for the identification of all those who access outside of biometric control. The Club/SAD must send this procedure, at the beginning of the operation of the system, to the Integrity and Security Directorate of the LIGA for their knowledge and validation.

The LNFP states that "The regulation, however, does not configure biometric access control as the only possible way to access the fan zones in sports venues." They add the citation from section 6 of

the aforementioned Article XII.2.

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The LNFP considers that "the regulation whose legal effects arise from its approval by the Superior Sports Council establishes the provision for carrying out controls at the access points to certain areas of sports venues, including the processing of biometric data based on the consent of the interested parties, expressly mentioning the possibility of implementing alternative access control systems."

It indicates that the CEVRXID, in exercising the authority granted to it by Article 13.1.b) of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports, agreed on March 15, 2022, to transfer the agreement adopted on March 3, 2022, which urges the implementation for the first and second divisions of football of the provisions in the RGNLFP regarding the conditions for ticket sales and access to the stands for supporters, reproducing sections 2 to 6 of Article XII.2 of the RGNLFP.

It provides DOCUMENT 3, which contains the aforementioned transfer and requests that the Clubs be urged to adopt measures for compliance, under the warning that otherwise, they may be subject to the opening of disciplinary proceedings in the functions attributed in Article 20.3.c) first, of Law 19/2007.

Upon reviewing DOCUMENT 3, it is a communication from the CEVRXID dated March 15, 2022, referring to its adoption of the agreement of March 3, 2022, with the following text:

"Article 13 of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports establishes that 'The State Commission Against Violence, Racism, Xenophobia, and Intolerance in Sports may decide to implement additional security measures for all competitions or sports events classified as high risk, or for venues that have been subject to closure sanctions in accordance with Titles Two and Three of this Law, and in particular the following: (...) b) Promote systems for verifying the identity of individuals attempting to access sports venues.'"

Furthermore, Article 15.3 of Royal Decree 203/2010, of February 26, which approves the Regulation for the prevention of violence, racism, xenophobia, and intolerance in sports, establishes that: "In the cases contemplated in Article 13.1 of Law 19/2007, of July 11, the verification and monitoring of the identity of those who purchase tickets or the control of the distribution of seats will be carried out by implementing systems for the sale of nominative tickets and developing procedures that allow for the supervision of the distribution of assigned seats and knowing the identity of the holders of access titles to the sports facilities."

For its part, Book XII of the General Regulation of LaLiga regulates the Regulation for the Sale of Season Tickets and Tickets in which the so-called Stands for Supporters are included as a sector, area, or stand of the sports venue that, due to its characteristics, entails the enjoyment of special conditions that, in turn, carry the fulfillment of a series of additional obligations.

In light of the above, the Commission agrees that, for the competitions of the First and Second Division of Football, the additional security measures detailed below shall apply in those spaces:

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1. The sale of season or half-season access tickets or documents, regardless of their designation, will require that the fan provides, along with other data established by the regulations of the competition organizer, the biometric data that is determined, and consent must be obtained from the interested party by clearly informing them of the specific purposes for the processing of the aforementioned personal data, in accordance with the current regulations on the protection of personal data. At the time of the acquisition of the access title by the affiliated Club/SAD, the fan will be associated with the provided identification and the biometric data.

2. The season or half-season access titles will be personal and non-transferable, regardless of the

policy that the Club/SAD has regarding these for the rest of the venue. To this end, the Club/SAD will establish, both in the document of acquisition of the access title and in the corresponding internal regulations, that in these areas, spectators will be subject to all identity verification controls in effect at any given time, including those related to automatic biometric systems, as well as the presentation of the access title along with the document proving their identity.

3. Access will only be permitted to fans who have obtained the access title to that area and who, at the time of entry, submit to the reading of their biometric data. Access will be denied if the person does not provide, when required, along with the biometric data, a document proving their identity that matches the identification associated with the biometric data and the access title.

4. The members of this stand must accept at least the following obligations:

a) That the access document is personal and non-transferable, with the holder being responsible for its correct use.

b) That upon entering the sports venue and during the course of the match, they will submit to any identity checks deemed necessary by the personnel of the Club/SAD or the Security Forces.

c) That the use of the access document by a third party results in the prohibition of access or expulsion from the venue for that person, as well as for the holder, any other disciplinary consequences that may arise under the disciplinary regime of the Club/SAD.

d) At the time of formalizing the access title, the clause of recognition and compliance with:

(i) the conditions of access and permanence for spectators established in Articles 6 and 7 of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports;

(ii) the commitment not to engage in acts or behaviors provided for in Articles 2.1 and 2.2 of the aforementioned Law; and

(iii) respect for the internal regulations of the sports venue.

e) That the materials for animation displayed in this stand, in addition to complying with the corresponding legal requirements, must be previously approved by the Club/SAD. When these refer to, mention, or identify a fan club, group, or association, it will be a prerequisite that such collective is duly recognized.

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registered in the Book of activities of followers of the Club/SAD and there is a responsible person for its use.

6. Any other access system to this area that does not involve biometric recognition will be exceptional and occasional and will require, if applicable, the Club/SAD to have a procedure that allows for the identification of all those who access outside of biometric control. The Club/SAD must send this procedure, at the beginning of the operation of the system, to the Integrity and Security Directorate of the LEAGUE for their knowledge and validation.”

In this regard, the Commission has agreed to communicate with that entity in order to urge the Clubs to adopt the necessary measures to comply with the indicated requirements, reminding that non-compliance will lead to the Commission acting through the corresponding proposals for the opening of sanctioning files in the exercise of its monitoring and control function provided for in Article 20.3 c) 1º of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports. All of this without prejudice to the fact that, if applicable, other additional measures may be adopted for these or other competitions.”

3.1.2. In the event that the previous regulations involve the processing of special categories of personal data (biometric data aimed at uniquely identifying a natural person, for example), it is requested to justify the lifting of the general prohibition on processing such data (art. 9 GDPR) and to facilitate the assessment of the principle of proportionality of the processing of such data for this purpose.

It responded by reiterating that the RGNLFP, approved by the C.S.D., establishes in its Article XII.2.2 (within the “conditions for the sale of season tickets in supporter stands”)

that the establishment of recognition systems through biometric data will require the consent of the interested parties, and that the Regulation also establishes the “possible adoption of other alternative procedures for biometric recognition,” which are also included in the agreement of the CEVRXID of 3/03/2022. “The processing would be covered by Article 9.2.a) of the GDPR.”

Regarding the assessment of the proportionality of the processing, it states that it must be part of the risk analysis and proactive responsibility measures that the Regulation imposes on the controllers and/or processors, and as the LNFP does not hold either of the two conditions, it considers that it is not responsible for carrying out this analysis.

3.1.3. If applicable, specify whether the LNFP participates as a processor or controller of the processing of special categories of personal data (biometric data aimed at uniquely identifying a natural person, for example) that its members may carry out. In such case, provide the legal agreement that regulates its participation under Article 28 of the GDPR and the Record of Processing Activities (RAT) concerning such processing.

The LNFP responded that neither on its own account nor on behalf of and for the Clubs that are part of it, does it carry out the processing of special categories of data, considering that it is neither a controller nor a processor of the processing.

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3.2 Request for information to the C.S.D.

On 17/02/2023, a request was made to the C.S.D.:

3.2.1 To inform whether provisions have been adopted that impose or recommend to Clubs or sports limited companies the installation of biometric systems for controlling access to the venues where sports competitions are held.

If applicable, a copy of the aforementioned provisions is requested and, if any, of the assessments regarding the impact on the right to personal data protection that have been carried out in the process of adopting such provisions.

On 28/03/2023, a response was received from CERVIXD. It informs that in its meeting on 3/03/2022, “an agreement was adopted establishing a series of additional security measures for the stands of support in the First and Second Division Football competitions. This is in accordance with the provisions of Article 13 of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports and Article 15.3 of Royal Decree 203/2010, of February 26, which approves the Regulation for the prevention of violence, racism, xenophobia, and intolerance in sports. Among the aforementioned additional measures, the installation of biometric systems for controlling all access to the stands of support was foreseen, allowing the unique identification of fans accessing these stands (document 1, copy of the agreement of 3/03/2022).”

The literal text of the document is accessed, which is a communication to the President of the LIGA, in which, in addition to containing what is referred to in the previous paragraph, additional measures are agreed upon regarding the regime for access to the stands of support, reproducing the specific part of the RGLNFP, and communication is urged to indicate to the Clubs to adopt the measures for compliance, which may lead to the opening of sanctioning files in the exercise of their surveillance and control functions entrusted to them by Article 20.3.c)1 of Law 19/2007 (functions of CEVRXID:

“surveillance and control for the purpose of proposing to the competent public authorities the adoption of sanctioning measures against those who fail to comply with the regulations provided in this Law and in the regulations that develop it”). All this without prejudice to the possibility that, if applicable, other additional measures may be adopted for these or other competitions.

The C.S.D. indicates that on 20/10/2022, it requested a consultation (providing document 2) to the Legal Office of the AEPD (Legal Office of the AEPD) regarding whether the adoption of the agreement of 3/03/2022 was legally viable according to the data protection regulatory framework. The aforementioned Legal Office of the AEPD issued a report on 22/12/2022 (providing document 3, report

98/2022).

In the document requesting the consultation, document 2, the additional security measures referred to in Article 13.1 of Law 19/2007 are mentioned, and "the situation of insecurity experienced in the stands of support during professional football matches has been raised to CEVRIXD, which, based on the competencies legally attributed to it, evaluates the possibility of approving an agreement, through which it requires professional Clubs/SAD to adopt additional measures consisting of the installation of biometric systems for controlling all access to the stands of support, which would allow the unique identification of fans accessing the stands."

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"cited stands." It exposes the basis of legitimacy of the GDPR on which the data would be processed (6.1.e) alongside 9.2.g)

It indicates that the cited article 13.1 would imply "the processing of special categories of data through which, for reasons of essential public interest, the security of individuals is guaranteed, as well as preventing and avoiding violations of the fundamental rights of individuals, such as hate crimes and discrimination in stadiums, given the existing issues with fans accessing the stands of encouragement. That said, the agreement that may be adopted by CEVRXID would also establish the appropriate and specific measures that Clubs/SAD must adopt to protect the interests and fundamental rights of the data subjects regarding the implementation of the additional measure required, as demanded by article 9.2.g) of the previously mentioned GDPR.

For this reason, considering that the additional measure would require the processing of special categories of data, the agreement adopted by CEVRXID regarding the obligation to adopt the requested measure will also require that, before its implementation, the following be carried out:

- A proportionality assessment, where both the suitability of the measure and the necessity of the processing and its strict proportionality are analyzed from the perspective of data protection.
- A Data Protection Impact Assessment that meets the requirements of article 35 of the GDPR.

In short, the measure would ensure that the processing of personal identifying data (including biometric data) carried out by Clubs/SAD is conducted in full compliance with the principles of lawfulness, fairness, and transparency, purpose limitation, data minimization, accuracy, storage, security, as well as proactive responsibility, as established by article 5 of the GDPR."

From the copy of the aforementioned report issued by the AEPD, it is analyzed more relevantly whether there is a basis of legitimacy including one that lifts the prohibition on processing the special category of biometric data for access to the stands of encouragement in football stadiums. As legislative support, based on article 13.1 of Law 19/2007. The report specifically analyzes, under the protection of articles 6.1.e) of the GDPR, "the processing of data would be necessary for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the data controller," referring to ensuring the safety and integrity of individuals attending football stadiums as well as preventing and avoiding violations of the fundamental rights of individuals, such as hate crimes and discrimination, and relating it to article 9.2.g) of the GDPR. The consulting party also indicates that considering that the additional measure would require the processing of special categories of data, the agreement adopted by CEVRIXD regarding the obligation to adopt the requested measure will also require that before implementation, a DPIA be carried out that particularly assesses the proportionality and necessity in the processing.

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The report determines that the normative support of Article 13.1 of Law 19/2007, which is developed in Article 15.3 of RD 2023/2010, refers to the identity verification system but does not contemplate the

possibility that such systems may involve the processing of biometric data, “nor does it establish the relevant and adequate guarantees for the protection of the fundamental right to the protection of personal data,” and that the aforementioned RD lacks the appropriate legal rank to proceed with the regulation of the processing of special categories of personal data:

“Article 13.1 does not meet the requirements established legally and jurisprudentially, as has been analyzed in this report.

And this gap cannot be filled by an agreement of the CEVRXID, as it does not have the appropriate normative rank. In this regard, as already indicated, the jurisprudence of the Constitutional Court is clear regarding the norm that must contain the adequate guarantees that cannot be deferred to a later moment after the legal regulation of the processing of personal data in question. The adequate guarantees must be incorporated into the legal regulation of the processing itself, either directly or by express and perfectly delineated reference to external sources that possess the appropriate normative rank (Judgment of the TCO 76/2019 of 22/05-FJ 8).”

C.S.D. continues to indicate that in light of this, “the Commission agreed, in its meeting of 13/03/2023, to state that, according to the information provided by the AEPD, access to the animation stands through biometric data will be carried out with the consent of the interested party, clearly informing of the specific purposes for the processing of the aforementioned personal data; and that, notwithstanding the above, spectators will be subject to all identity verification controls in force at each moment, as well as the exhibition of the access title along with the document proving their identity.

Therefore, in the event that the interested party does not provide consent to access the animation stands through biometric data, it will be mandatory for the Clubs/SAD to have a procedure that allows for the identification of all those who access outside of the biometric control. The Club/SAD must send this procedure to the Integrity and Security Directorate of La Liga for their knowledge and validation.”

The agreement was communicated to the LNFP to urge its execution by the Clubs. It provides DOCUMENT 4, a written communication dated 21/03/2023 addressed to the President of the League, in which it persists in the processing of data for access to the animation stands through biometric data with the consent of the interested party, which does not contain substantial variation from that provided in the RGLNFP.

It states that it provides a copy of DOCUMENT 5, a letter from the Federation of Shareholders and Members of Spanish Football (FASFE), dated 1/03/2023, indicating: “the entity before which it appears established an ‘Agreement within the scope of its competencies, establishing measures for the compliance of the Clubs consisting of the installation of biometric systems for the control of all access to the animation stands that allows for the univocal identification of the fans accessing said stand.’ In the letter, after outlining the applicable regulations and motivating the facts, including among others, Guidelines 5/2022, on the use of facial recognition technology in the area of application of the Law, it requests the cessation of the access control measure through the biometric system and the cancellation and deletion of data taken due to the implementation of the same.”

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In addition, it provides a copy of document 6, dated 21/03/2023, from CEVRXID to FASFE containing a response to said request, in which it reiterates “that access to the animation stands in the First and Second Divisions with biometric data will be applicable with the prior consent of the interested party, being mandatory for the Clubs to have a procedure that allows the identification of all those who access outside of biometric control.”

FOURTH: Request for additional information

4.1 Request for additional information from LNFP.

On 08/07/2023, a request was made to LNFP for the following information and documentation regarding access controls to the football stadiums of the members that are part of LNFP.

4.1.1. Identification of the set of LNFP members who have reported the implementation of identity verification systems through the reading of biometric data for access control to their stadiums,

including the following data for each of them:

- a) Biometric data subject to validation (fingerprint, facial recognition, etc.)
- b) Areas of the stadium for which it was enabled (animation stand, others, the entire stadium).
- c) Determination of whether the use of biometric access control has been the only means of access available to the specific area governed by this access control during the period it has been operational.
- d) In the event that alternative access means existed, indicate what their use depended on as a mechanism for access control (will of the attendee, impossibility of verifying the biometric data, etc....).
- e) Date of implementation and, if applicable, withdrawal of the biometric identification system as a mechanism for access control.

Responded on 27/07/2023.

Provides a copy of a statement from CEVRIXD to LIGA dated 21/03/2023, which informs that "in its meeting of 03/03/2022, it adopted an agreement establishing a series of additional security measures for the animation stands in the First and Second Division football competitions. This is in accordance with the provisions of Article 13 of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sport and Article 15.3 of Royal Decree 203/2010, of February 26, which approves the Regulation for the prevention of violence, racism, xenophobia, and intolerance in sport. Among the aforementioned additional measures, the installation of biometric systems for controlling all access to the animation stands was provided, allowing the unique identification of fans accessing said stands.

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In this regard, it is important to note that the Spanish Agency for Data Protection has issued a report, dated December 22, 2022, in which it concludes... "In view of the above, the Commission has agreed, in its meeting on March 13, 2023, to indicate that, according to the information provided by the AEPD, access to the animation stands using biometric data will be carried out with the consent of the interested party, clearly informing of the specific purposes for the processing of the aforementioned personal data. Notwithstanding the above, it is necessary to point out that spectators will be subject to all identity verification controls in force at any given time, as well as the presentation of the access title along with the document proving their identity. Therefore, in the event that the consent of the interested party is not obtained to access the animation stands using biometric data, it will be mandatory for Clubs/SAD to have a procedure that allows for the identification of all those who access outside of biometric control. The Club/SAD must send this procedure to the Integrity and Security Directorate of La Liga for their knowledge and validation. In this regard, the Commission has agreed to address that entity in order to communicate the adopted agreement to the Clubs and to take the appropriate measures to ensure compliance with the indicated provisions, reminding that non-compliance will result in the Commission taking action through the corresponding proposals to open sanctioning files in the exercise of its monitoring and control function as provided in Article 20.3 c) 1º of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports. All of this without prejudice to the possibility of adopting other additional measures for these or other competitions."

In relation to the above, La Liga provides a copy of CIRCULAR 19, season 22/23, dated March 23, 2023, titled: "Communication from the State Commission against violence, racism, xenophobia, and intolerance in sports regarding the animation stands," which represents a communication to the affiliated Clubs and SAD, indicating that a communication has been received from the aforementioned Commission dated March 13, which is based on the report from the AEPD's GJ dated December 22, 2022, and: "According to the aforementioned agreement, access to the animation stands using biometric data can be maintained, but only if there is free consent from the interested party, following information on the specific purposes for the processing of personal data. In the absence of consent from the interested parties, the CEVRXID reminds that spectators in these stands will not be exempt from undergoing all identity verification controls that are in force at any given time and, for this purpose, it is mandatory that the Club or SAD has a procedure that allows for their identification. This

procedure must also be communicated to the Integrity and Security Directorate of La Liga for their knowledge and validation at the email address seguridad@laliga.es"

-La Liga provides the situation for the 22/23 season, in the first and second divisions, a table of the Clubs, from which it can be highlighted:

-Clubs/teams that before Circular 19, season 22/23, dated March 23, 2023, from the LNFP to the Clubs and SAD, had biometric systems (9 in both the first and second divisions, one of the systems in each division refers to "facial image," the rest "fingerprint") and during the same period, the alternative system implemented, including among others RFID, scanners at turnstiles, or handheld scanners.

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- Clubs/teams indicating whether they have stopped using them after Circular 19 - biometric data - (three if in the first division, two if in the second).

- The area of the stadium that has this system (all in the animation stand, except one throughout the stadium, in the first division that was installed in 2022/2023 and which is "facial recognition").

- The types of access systems used after Circular 19, with all Clubs/SAD having an alternative to biometric data, except for the five that were listed as not using biometric systems after the Circular.

- The reason for using alternative systems is listed as "voluntariness" in all.

- Season of installation of the system, with some recorded as 2015/2016 and the latest as 22/23, with none recorded in 20/21 or the following season.

4.1.2. Copy of the Security, Prevention, and Control Protocols (Article 5 of Royal Decree 203/2010) regarding sections 2.c (access control measures) and 4.e (identity verification systems for access to venues) of the members of the LNFP.

It was responded that documents 2 to 73 of the protocols of the members of the LNFP for the 22/23 season are provided, with some Clubs comprising several, as they have been notified to the LIGA.

4.1.3. Book XII of the RGLNFP specifies in the preamble that the societies/Clubs that are members of the LNFP must adapt it in their internal regulations.

A copy of the internal regulations of each member is requested (regarding the content of this Book XII - access control / identity verification system for access -) with indication of the dates of approval/implementation of the same.

It was responded that documents 74 to 114 of the 22/23 season are provided, comprising 41 documents due to the structure of one of the teams. It adds that currently, none of the Clubs establishes the biometric system as mandatory.

4.1.4. Article XII.2.6 of the RGLNFP states that members of the LNFP who arbitrate access systems to the animation stands that do not involve biometric recognition must send these procedures to the LNFP for their knowledge and validation. To this end, a copy of the procedures reported by the members is requested, as well as the validation/denial resolutions that the LNFP may have issued in this regard.

It is also requested about the validity periods of these procedures and their current status.

It was responded that, in general, the means used by the Clubs to ensure access to the stadiums are provided by the LNFP through the SOCIEDAD ESPAÑOLA DE FÚTBOL PROFESIONAL SAU, hereinafter SEFPSA, delivering to the Clubs that request it the various devices for the operation of the entry turnstiles to the

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sports venues, providing those the activation procedures they deem necessary through fingerprint recognition, scanning of the subscription document, or the ticket, RFID, etc.

Currently, all Clubs associated with the LNFP, with the only exceptions of ***CLUB.1, ***CLUB.2, and

***CLUB.3, exclusively use the biometric recognition devices provided by the LNFP through SEFPSA for access to the venues. However, these Clubs, just like the others, use alternative means to biometric access provided by the LNFP.

“Since the means of access to certain areas of the sports venues alternative to the use of biometric recognition devices had been subject to verification and analysis by LA LIGA, it was not necessary to submit the procedures based on the use of such means for its authorization.”

“Likewise, with the aforementioned measures, the Clubs must have implemented in accordance with the provisions of Article 13.2 of Law 19/2007 additional measures aimed at verifying the identity of the interested parties who had not used the biometric recognition devices for access to certain areas of the stadium, for example, on-site recognition through the presentation of the DNI or similar identification document, not requiring its authorization by LA LIGA when proceeding from the fulfillment of a legal obligation.”

4.1.5. Description, if applicable, of the actions taken by La Liga and the member societies/Clubs after receiving the communication from CERVIXD dated 21/03/2023 (attached). It is requested to evidence the statements made.

It was responded that in light of this decision, the LNFP adopted Circular No. 19 of the 2022/2023 season, dated 23/03/2023, by which the Clubs were informed of what was indicated by the aforementioned CERVIXD and the report from the AEPD. Consequently, some Clubs that had implemented biometric recognition systems for access to the sports venue adopted measures aimed either at the elimination of that means of access or at maintaining it as voluntary and complementary to other access procedures to the stadiums. The aforementioned modifications were formally communicated to the LNFP. A copy of document 115 of the Circular is provided.

It states that according to the information available to the LNFP, none of the Clubs associated with it require biometric recognition for access to the sports venues in a mandatory manner.

4.1.6. In the event that the LNFP has acted as the provider of the technological platform - ***DEVICE.1 (or its design) used by its members to implement access control through biometric data, it is requested to provide the technical report of the same.

It provides document 122 with the requested technical report related to the access solution to the stadiums through fingerprint recognition. In it, it is indicated that the devices to be installed will be:

- at the turnstiles:

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- The fingerprint sensor/reader ***DEVICE.2, a device visible on the exterior of the turnstile through which the user's fingerprint will be obtained.

- CPU or control electronics, an electronic device responsible for processing all the logic of the solution. It will communicate through (...). This control electronics will be responsible for (...). It will also communicate via TCP/IP with the management software in the case of an existing IP network.

- Wiring, which refers to the connection interfaces between the devices and servers.

□ In ***LOCATION.1 (Fingerprint reader - for the fingerprint registration or enrollment process; software with the business logic). The following information is extracted in this regard:

The sensors implement the standards “***STANDARD.1 - Part 2: ***STANDARD.2”. In the turnstiles (access control), the model ***DEVICE.2 is used, while in ***LOCATION.1 the ***DEVICE.3.

The control electronics of the turnstile has the capacity to store the templates of the fingerprints and their identification (1:N).

The software that implements the business logic is a version of ***DEVICE.4, from ***COMPANY.1.

When user enrollment occurs, the following data is registered on the platform: ID number, “IdPerson” (“Unique field of the person to be enrolled”), member number, name, and two surnames. According to the information gathered (Diligence References), the device ***DEVICE.3 is a product of

***COMPANY.2.

4.2 Request for additional information from the C.S.D.

On the date of 06/07/2023, the following information and documentation was requested from the C.S.D. regarding access controls to the stadiums of the members that are part of LNFP.

4.2.1. A copy of the registration (Article 56 of the LD 2022) of the LNFP in the State Register of Sports Entities and the administrative act (Article 83 of the LD 2022) that resolves the qualification of the competitions organized by the LNFP as professional.

On 21/07/2023, a response was provided with Annex 1 containing the registration.

“In relation to the request for the administrative act that resolves the qualification of the competitions organized by LA LIGA as professional, it should be noted that the organization of such competitions (First and Second Division) as professional predates the regulation contained in the repealed Law 10/1990, of October 15, on Sports, so no administrative act was produced that qualified such competitions as such. The National Professional Football League was established in 1984, and as stated in Article 1 of the Statutes at that time, as a sports association that included the football clubs that, in accordance with the sports regulations of the Royal Spanish Football Federation, participate in official competitions of a professional nature.”

4.2.2. Article 13 of Law 19/2007 provides that the CEVRXID may decide to implement additional security measures (among which it specifies “Promote systems for verifying the identity of individuals attempting to access sports venues”) for the set of competitions or sporting events classified as high risk, or for venues that have been subject to closure sanctions in accordance with the second and third titles of this Law. It is requested to indicate whether the competitions and events organized by La Liga for which identity verification systems were promoted using biometric personal data have been classified globally (high risk, closure sanctions) according to the provisions of this article. In such a case, it is required to attach the acts/dispositions/documents through which such qualifications or sanctions have been made.

It was responded that the aforementioned Article 13 includes three independent scenarios:

- For the set of competitions,
- For sporting events classified as high risk,
- For those venues that have been subject to closure sanctions.

“It was understood that the CEVRXID can decide to implement such additional security measures in a competition without the need for it to be declared high risk, and this is because the law 19/2007 of 11/07 does not specifically contemplate the global high-risk relationship of a competition, but rather of matches that are part of it.

In accordance with the above, the CEVRXID understood itself enabled to adopt additional measures for the competition of LA LIGA First and Second Division - activating Article 15.3 of Royal Decree 203/2010 of 26/02.

The main reason for this action lies in the fact that, in any case, enjoying special conditions in a certain section or area of a sports venue (animation stand) regarding the general conditions of the rest of the sectors (stands) should entail compliance with a series of specific obligations such as biometric identification with the legally provided guarantees regarding the processing of personal data.”

4.2.3. A copy of the updated Security, Prevention, and Control Protocols (Article 5 of Royal Decree 203/2010) regarding sections 2.c (access control measures) and 4.e (identity verification systems for access to venues) developed by La Liga and/or its members. Indication of the update date, the modifications made concerning the previous version, and the period during which the latter was in force.

Attached in annex.

4.2.4. Indication of whether alternative identity verification procedures have been articulated in the competitions of La Liga, in accordance with Article 80 of Royal Decree 203/2010.

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(Guarantees of compliance with sanctions prohibiting access to sports venues). In such case, it is requested to describe the articulated procedures.

It was stated that: “regarding this body, there is no knowledge of the articulation in the competitions of LA LIGA of alternative identity verification procedures in accordance with the aforementioned article.”

4.2.5. A copy, if applicable, of the proposals for opening sanctioning files (and the resolutions issued)

to the members of La Liga made by the CEVRXID due to the non-implementation of access control systems based on biometrics.

It was responded that the CEVRXID has not agreed to any proposal for opening sanctioning files to the members of the LNFP due to the implementation of access control systems based on biometrics. A certificate from the secretary is attached in annex two.

4.3 Request for information to the SOCIEDAD ESPAÑOLA DE FÚTBOL PROFESIONAL SAU (SEFPESA)

On 22/08 and 4/09/2023, SEFPESA was requested the following information regarding the biometric recognition systems implemented in the Clubs belonging to the LNFP:

4.3.1. A list of Clubs for which the SOCIEDAD ESPAÑOLA DE FÚTBOL PROFESIONAL, S.A.U (hereinafter, SEFPESA) has acted as a provider of the technology system for biometric identification for access control to football stadiums.

On 15/09/2023, a response was received, identifying only for the areas of the animation stands SEVEN first division teams and EIGHT second division teams that have it implemented, "with the turnstiles corresponding to those areas being the only ones that incorporate the necessary technology for biometric recognition."

4.3.2. Indicate whether, within the framework of this provision for the Clubs, it would have acquired the role of data processor (or, where applicable, data controller) of personal data processing. If so, provide the data processing agreements signed under Article 28 of the GDPR.

It was responded that it is only a supplier of the software and hardware (access turnstiles, servers) necessary, without accessing in any case the personal data stored in those systems, not holding the role of data controller or data processor. Consequently, it has not carried out risk analyses or impact assessments as the provisions of the GDPR do not apply to it.

4.3.3. Identify all locations where the biometric patterns recorded in the enrollment process of the different Clubs are stored (turnstile, Club clients/servers, SEFPESA servers), and the security measures (encryption, hashing, etc.) applied to them at each site and in transit between them. Indicate if there are variations between the systems implemented in the different Clubs and, if so, what the reason would have been.

It was responded that SEFPESA provides the Clubs with both the hardware and software necessary for biometric access control to the stadiums. "Therefore, in the original version of the systems provided by SEFPESA, the biometric data would be stored on the Identification Management Server ((...)) located at the Club's facilities. In (...), the data corresponding to the name, surname, ID number, Person ID (random identification to avoid duplicate access to the stadiums), and the biometric vector resulting from the subscriber's registration process are stored, only with respect to those interested who use biometric identification. Thus, while the comparison of patterns occurs in (...), this process does not generate any new personal data, with the system limited to providing a positive or negative result as a consequence of the comparison made. Within the requirements contained in the hardware and software supplied by SEFPESA, the following security measures are incorporated:

- Regarding the biometric vector:

- ☐ The data is stored (...) to ensure that the template obtained by each interested party will not coincide with that used in other control systems, thus preventing interconnection with other systems and avoiding overlaps or identity substitutions.
- ☐ The product is designed in such a way that multiple, independent (...) can be extracted from the same source, in order to be able to (...) in case of data breach or technological evolution. In this sense, two or more fingerprints are collected from each user, with two templates per fingerprint. That is, at least four templates per user. This facilitates that the user can use more than one finger; if the information from one of them were compromised, it is possible to delete it and use the remaining ones or register the user anew.
- ☐ The biometric vector is encrypted with (...) from ***EMPRESA.2, in an irreversible manner for its own employees, clients including the Club, and their suppliers.
- ☐ Measures that guarantee the impossibility of reconstructing original data from the templates.
- ☐ Mechanisms for data deletion are available.

- Regarding information systems:

- ☐ Through prohibition of the use of unauthorized software and with software of (...).
- ☐ Continuous updating of operating systems, applications, and devices.
- ☐ Information system security procedures.
- ☐ Use and definition of (...) for testing, development, and operation.
- ☐ Daily backups of the information, as well as the systems that process it, are carried out (...).
- ☐ Periodic management of technical software vulnerabilities.

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4.3.4. Identify the location where biometric identification takes place (comparison of the read pattern with the stored pattern).

He responded that during the biometric reading there is a reader installed at the access turnstile that generates an encrypted biometric vector of the fingerprint of the individual who is trying to access the stadium at that moment.

Once the vector is generated, the control electronics of the reader, installed in the turnstile, communicates it through (...), located in the Club's facilities and to which only the Club has access, where the biometric vectors provided by the Club would be stored for immediate comparison with all the biometric vectors previously supplied by the subscribers. Thus, a biometric identification comparison process 1 to N, or 1 to several, occurs.

Simultaneously with the correspondence of biometric vectors, and also in the (...), the correspondence of the data from the Club's attendance management server - ID person, name, and surname - is verified with the biometric vector generated at the turnstile, with the aim of obtaining a response that can be: "not recognized" or "access token," the latter facilitating the individual's access to the stadium by activating the turnstile.

"From all the above, it can be concluded that two simultaneous comparisons occur in the (...), one: the comparison between biometric vectors - the one generated by the turnstile and those stored in the Club's servers - and two: the comparison between the data associated with the biometric vector and the stored identifying data."

4.3.5. Describe how the process of deletion of biometric patterns is carried out in the different systems where they are stored, identifying the entities (Club, La Liga, etc.) that act in the process.

He responded that the Clubs that have technology provided by SEFPSA store the biometric patterns in the servers and systems of each of the Clubs that have the technology provided by SEFPSA. For this reason, it will be the responsibility of each Club to establish the deadlines and processes for data deletion. SEFPSA is not aware of the deletion processes or the deadlines established for this purpose by each of the Clubs.

4.3.6. If available, provide the risk analysis and impact assessment carried out by SEFPSA in relation to the biometric systems implemented.

He responded that, as he does not hold any role in data processing, he has not conducted risk analyses or impact assessments, considering that the GDPR does not apply to him.

FIFTH: Business volume of the LNFP

According to the report obtained from the AXESOR tool, dated 22/09/2023, the NATIONAL PROFESSIONAL FOOTBALL LEAGUE, G78069762 has the following information:

- Global parent company
- (...) employees
- Sales: more than (...) euros

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- Total assets of (...) euros

- Size of the company EU: Corporate

In the income statement, the "turnover" for the last year listed, 2018, is (...) euros.

- As subsidiary and associated companies, eleven are listed, with participation in them ranging from 100% to 25%.

SIXTH: Agreement to initiate

On 27/12/2023, the director of the AEPD agreed:

"FIRST: TO INITIATE SANCTIONING PROCEDURE against the NATIONAL PROFESSIONAL FOOTBALL LEAGUE with NIF G78069762, for the alleged infringement of Article 35 of the GDPR, in accordance with Article 83.4. a) of the GDPR, and classified for the purposes of the prescription of the infringement as serious under Article 73.t) of the LOPDGDD.

SECOND: TO ORDER as a provisional measure to the NATIONAL PROFESSIONAL FOOTBALL LEAGUE with NIF G78069762, in accordance with the provisions of Article 69 of the LOPDGDD and 56 of the LPACAP, the communication to the members of the LNFP of a temporary suspension of all processing of personal data related to biometric data for access to the stands of encouragement of first and second division football stadiums. The measure will last until a valid data protection impact assessment of the processing is available, which takes into account the risks to the rights and freedoms of the fans and the appropriate measures and guarantees for its processing, overcoming the various requirements that compose it, or even if it is carried out, it will be necessary to carry out the consultation forecast established in Article 36 of the GDPR.

The provisional measure must be carried out within thirty working days, counted from the notification of this agreement to open the procedure, and will remain until its final resolution, in which it must be confirmed, modified, or lifted, without prejudice to what is provided in Article 56.5 of the LPACAP. To this end, it must justify before this Spanish Agency for Data Protection the attention to this requirement.

FIFTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond for the infringement of Article 35 of the GDPR is an administrative fine of 10,000,000 euros (ten million), without prejudice to what results from the instruction."

SEVENTH: Request for extension of deadline and copy of the file

On 5/01/2024, a letter was received from the respondent, granting their representation to a natural person, also referring to their status as DPD requesting a copy of the file and an extension of the deadline to submit allegations, which was granted. They provided a notarized deed of power of attorney dated 13/03/2023 to prove their representation.

EIGHTH: Allegations of 25/01/2024

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On 25/01/2024, a written submission was received from the representative of the LIGA, also stating their condition as DPD, making allegations, accompanied by two annexes of documents referred to as one and two.

1) Regarding the content of the dispositive part related to the adoption of the imposed provisional measure, it is stated that it is not a procedural act, but rather it may cause harm. It is stated that it will be challenged in contentious-administrative proceedings in order to obtain the suspension of the decision as it affects their rights and interests that are subject to protection. Upon announcing this challenge, it requests, in application of Article 90.3 of the LPACAP, that the adopted provisional measure be suspended provisionally.

2) Violation of rights due to the partial sending of the copy of the file, considering that these are relevant documents for the development of the proceedings. It refers to those that, forming part of the prior investigation proceedings, originating from ***CLUB.4 dated 16/03, 27/07, and 4/09/2023, were included as an index but were not sent. It states that: "they have not been able to know the scope,

content of the information” and that “it may affect the motivation that justified the opening of the procedure, as it concerns one of the Clubs that established a biometric access control system to their stadium.” It states that: “what has been indicated by the aforementioned entity in response to the requests of the AEPD in its capacity as the data controller of the data obtained by the biometric access systems may be substantial to demonstrate to what extent the accusation is unfounded,” and as “it does not hold the status of data controller concerning this type of access to the stands of animation that the AEPD intends to attribute to it.”

It adds that “a large part of the documentation that they submitted in response to the second of the requests sent is also not included.” It estimates that the AEPD cannot exclude any information contained in two files (EXP202213792 and EXP202315637), regardless of whether it subsequently decides to fragment the content of a previous file, as it has done in this case. Such disaggregation without reason generates complete defenselessness that does not allow it to consider the evidence that the AEPD has provided and that could substantiate a decision contrary to that adopted in the initiation agreement. It considers that its right provided for in Article 53.1.a) of the LPACAP to “access and obtain a copy of the documents contained in the aforementioned procedures” and to effective judicial protection contained in Article 24 of the Spanish Constitution has been violated.

3) To complete the information, in document 1, a copy of a REPORT dated 1/12/2015 from the General Subdirector of Legal Regime of Sports, from the C.S.D., regarding the modification of the RGLNFP, is provided, which indicates the regulations under which it is required to issue the report on the modifications of the text of the aforementioned RGLNFP, adding among others, Book XII, approved by the Extraordinary General Assembly in its meeting of 24/09/2015. Such regulations are Article 10.2.b) of Law 10/1990, of 15/10, on Sports, in relation to Article 27 of Royal Decree 1835/1991, on Spanish sports federations and the Registry of Sports Associations. The report, “favorable to the aforementioned addition to the RGLNFP” “proposes to the Executive Committee of the C.S.D. its approval.”

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Also for incorporation into the file, Document TWO provides a copy of Circular 34 for the 21-22 season, sent to the Clubs on 25/04/2022, conveying the agreement of the CEVRID from its meeting on 3/03/2022.

Having reviewed Document 2, it is noted that LaLiga informs the affiliated Clubs and SADs that “an agreement has been received from the State Commission against violence, racism, xenophobia, and intolerance in sport, aimed at urging LaLiga to prompt the Clubs and SADs. The document, which is attached as an annex to this circular, emphasizes certain aspects in force in the General Regulations of LaLiga (in particular, in Book XII, Regulations on the sale of season tickets and tickets), a regulatory text that is mandatory and approved by the Executive Commission of the Higher Sports Council. LaLiga insists on the need to adopt appropriate measures to comply with the regulations applicable to the stands for supporters, and on the responsibilities that may arise in the event of non-compliance, especially in the case of incidents that may be related.”

Also attached as an Annex is the literal text of the communication from the CEVRID to LaLiga in its meeting on 3/03/2022, which has already been referenced in fact THIRD, 3.1.1.

- LaLiga states that the criterion maintained in Report 98/2022 of the Legal Office of the AEPD “enabled the processing of biometric data for access to the stands for supporters based on the consent of the interested party. However, the Guide on the processing of attendance control through biometric systems published on the AEPD website on 23/11/2023, almost a year later, establishes unequivocally that such processing cannot be based on the consent of the interested parties, given that its free nature excludes compliance with the principle of necessity in processing, thus contradicting what is indicated in the aforementioned report.”

4) LaLiga states:

- The RVAE, which is integrated into the RGNLFP, is an approved administrative act, not simply authorized or endorsed by the C.S.D., with such approval being what grants it effectiveness. The LNFP was expressly required by the CEVRXID on two occasions to inform the Clubs of compliance with the provisions, based on its powers to initiate sanctioning procedures (art 20.3.c) first of Law 19/2007 of 11/07.
- The interpretation that LaLiga is responsible for the processing is considered a forced interpretation." Neither LaLiga has any capacity to determine the purposes nor the means of the processing, nor does it even know how it will be, if applicable, carried out by the Clubs within the framework established in Article 2 of the RVAE.
- It reiterates that it does not proceed from the exclusive will of LaLiga, but is subject to approval by the C.S.D., and responds to the requirement on at least two occasions by the CEVRXID. It points out that Article 41 of the LD 2022 expressly establishes that the Regulations of the Professional Leagues will be approved by the C.S.D. "The functions exercised by the professional leagues do not arise from the free formation of their will, but from an act."

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administrative, which determines the approval of the RVAE, being the Circulars the means by which the agreements of the CEVRXID are communicated, in light of the sanctioning provisions contained in those agreements."

Regarding the communication to the Clubs via Circular, it is the means provided in development of Article 31 of Book IV of the RGLNFP, which states: "The National Professional Football League will inform through Circulars of the measures that at any given time are established by the National Commission against Violence and that affect the competitions organized by it."

Article 27 of Royal Decree 1835/1991 of 20/12 on Sports Federations, currently in force, establishes a regulated procedure for the approval of the aforementioned Statutes, which highlights to what extent the LNFP is subject to the decision of the appealable administrative act of the C.S.D., which is not limited to validating or merely giving a green light to them.

"The reasoning contained in the initiation agreement starts from considering that the functions of the LEAGUE contained in Title III of its Statutes are established and configured in the exercise of its own self-regulatory power, when they initially derive in their entirety from what is established in the sports regulations themselves and, secondly, that the exercise of these functions is expressly approved by the C.S.D." "The same nature is held by the obligations of the Clubs and SAD integrated into the LEAGUE in relation to access control to sports venues contained in Article 60 of the Statutes of LA LIGA. In this sense, although the aforementioned regulation refers to the installation of an access control in the terms indicated by the LEAGUE, it should be noted that since this content is part of the regulatory framework governing the activity of Clubs and sports public limited companies within the competition framework, it does not directly stem from the will of the claimant but is also subject to approval by the C.S.D., materializing in Book XII of its general regulation that contains the RVAE. In short, the execution acts that LA LIGA may carry out within the framework of the aforementioned RVAE are not performed as its own function but as a delegated function of the competencies attributed to the competent administration in sports matters by sports legislation, which in any case holds the regulatory power through the approval of the RVAE itself.

In this regard, the ruling of the TS, dated 19/02/2020, makes this clear: "Thus, regardless of the private functions that professional leagues may develop, their participation in the endorsement of licenses and the general organization of sports competitions must be considered framed within the scope of the public functions that they can develop and exercise by legal delegation, becoming agents of the public administration, like sports federations. A function to which those delegated by the Federations under Article 28 of Royal Decree 1835/1991 should be added.

LA LIGA continues indicating that: "And if the supposed decision on the means and purposes of the

treatment that the initiation agreement directly imputes to my represented party is not its own, but is exercised by delegation from the public authorities and is subject to their prior approval."

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Approval, not authorization or endorsement, makes it difficult to conclude that this supposed decision regarding the means and purposes of the processing corresponds to the LIGA; rather, if it existed, it would proceed directly from the administration holding the competence that approves its adoption. It should not be forgotten that according to Article 8.1, second paragraph of Law 40/2015, the delegation of competencies does not imply the alteration of the ownership of the competence, although the determining elements of its exercise in each case are provided.

- The measures related to the processing of biometric data for access to sports venues, and in particular to the so-called stands for supporters, are included in the RVAE and were agreed upon by the body that, in accordance with the provisions of current regulations on the prevention of violence, racism, xenophobia, and intolerance in sports, has been assigned the competence to adopt special preventive measures against behaviors contrary to those established in Law 19/2007.

- In its response to the request for information regarding the requirement directed by the CEVRXID to the LIGA, the C.S.D. indicated that it considered itself competent to decide on "the implementation of such additional security measures in a competition without the need for it to have been declared high risk," so it was deemed enabled to "adopt additional measures for the LA LIGA competition, activating Article 15.3 of RD 203/2010 of 26/01, in development of what is established in the aforementioned Article 13.1.b) of Law 19/2007."

- "The doctrine upheld by the AEPD in the initiation agreement would determine that if a Public Administration imposes on the administered the obligation to carry out a certain processing of personal data, establishing the essential aspects thereof, it would be that administration that determines the purposes and means of the processing, becoming responsible, which would imply a novel interpretation of the GDPR, which precisely in its Article 4.7 states that 'if the law of the Union or of the Member States determines the purposes and means of the processing, the controller of the processing or the specific criteria for its appointment may be established by the law of the Union or of the Member States.'"

It was the CEVRXID that required the Clubs and SAD to adopt the measures contained in the requirement of 22/03/2022, indicating that failure to adopt them could imply the initiation of sanctioning procedures against the Clubs and SAD that make up the League, so that with the "doctrine upheld by the AEPD, the means and purposes of the processing that the Clubs would have to carry out, contained in such a decision in an agreement of the aforementioned Commission adopted in accordance with the requirements established in its regulatory framework," would be fulfilled.

This capacity of the CEVRXID to determine the purposes and means of the processing, following the reasoning of the AEPD, was even further reinforced by establishing the legal basis that should govern the processing of data in the second requirement directed to it on 21/03/2023, insisting on the processing of biometric data, although it indicated that this would only take place with the consent of the interested parties.

- The CEVRXID does not require the LIGA to carry out the processing of biometric data and compliance with the agreed measures, but rather limits itself to requesting that it...

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adopts the necessary measures to communicate its requirement to Clubs and SAD, true responsible parties for the processing, also in the opinion of the Commission, on whom the sanctioning regime provided for in Law 19/2007 of 11/07 could fall in case they do not carry out all the processing

activities.

- The LIGA emphasizes that the requirement directed by the CEVRXID to the Liga indicated that the main "reason for this action lies in the fact that, in any case, the enjoyment of special conditions in a certain section or area of a sports venue (animation stand) regarding the general conditions of the rest of the sectors (stands) should entail compliance with a series of specific obligations such as biometric identification with the legally provided guarantees regarding the processing of personal data," which it considers a direct and immediate link between what is required of the Clubs and SAD with the objectives pursued by Law 19/2007.

The LIGA concludes that the purposes and means of the processing were established by the C.S.D., with the approval of the RVAE, and that it also subsequently indicated that the non-performance of the processing could imply the adoption of sanctioning procedures directed against the Clubs and SAD that make up the LNFP.

- To the reasoning of the AEPD, that the alleged attribution of the LNFP as the responsible party for the processing derives from what is established in sections 2 to 4 of the RVAE, considering that with such provisions it determines the purposes and means of the processing, and that such determination is carried out for its own objectives exercising a decisive influence on the processing that makes it responsible for the same, the LIGA states that:

- The purposes pursued with the processing cannot be considered as belonging to the LIGA, but rather directly derived from what is established in the regulations whose object is the prevention of violence, racism, xenophobia, and intolerance in sports, which imposes these obligations on the Clubs themselves, regardless of what may have been indicated in the RVAE itself.

- The determination of the nominative nature of the tickets does not stem from a decision of the LNFP, but from what was agreed upon by the CEVRXID, pointing out the articles of Law 19/2007 of 11/07 that establish the inclusion of a computerized ticket sales and access system in all sports venues, with the sanction of closure of the same in case of non-compliance (art 11.1), and article 13.c of said regulation empowers the CEVRXID "to decide on the implementation of systems for the issuance and sale of tickets that allow controlling the identity of the ticket purchasers."

- The LIGA believes that even if the RVAE had remained silent on that point, the CEVRXID required the LIGA to inform the Clubs and SAD of the obligation to process the biometric data for access to the animation stands. That is to say, in this case, the delimitation of the purpose of the processing would derive from what is established in Law 19/2007 of 11/07 and its Royal Decree 203/2010, of 26/02, agreed upon, moreover, by those who, at least apparently, according to what was indicated by the C.S.D., held the competence to impose this obligation.

"It is not possible to consider that LA LIGA decides in any way on the purpose of the processing, which proceeds directly from what is established in the aforementioned regulations that the RVAE."

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is limited to shaping, being this purpose, the eradication of violence in sports, a general policy objective that cannot be considered, as the initiation agreement does, merely as specific to the LIGA.

- The provisions in articles 11.1 and 13 of Law 19/2007 of 11/07 do not address Professional Leagues or Federations, but rather the participants in the competitions themselves, and if the obligation is directed at Clubs or SADs, in accordance with SECTION 24 of the GUIDELINES 7/2020 regarding the concepts of "data controller and data processor in the GDPR, version 2.0, adopted on 7/07/2021," it follows that they are the ones who would hold the status of responsible for carrying out the treatments related to the identification and access to those venues, given that the Law imposes on those Clubs and never on the LIGA, the necessary actions for compliance with that obligation.

SECTION 27 of the aforementioned GUIDELINES also refers to the relationship or interaction of the data subject with the data controller as an essential criterion for defining this status. For this purpose, the only relationship existing regarding the access regime to a sports venue is derived from the status of being a subscriber to a specific Club or SAD, or being in possession of a nominative or

non-nominative ticket that enables access to the sports venue. That is to say, the legal relationship underlying the treatment occurs solely between the Club and the subscriber or ticket holder, with the LIGA being outside this relationship.

Considering therefore that the purpose is not determined by the LIGA, it must also be indicated that the LIGA does not establish the essential means of treatment, specifying the type of personal data processed, what data will be processed?, the duration of the treatment, how long will it be processed?, the categories of recipients, who will have access to the data, and the categories of data subjects?

"The LIGA does not make any decisions regarding the aforementioned essential means of treatment, which fall to the Clubs and SADs that implement the system."

Regarding the group affected, the cheering stands or their non-existence depend exclusively on the decision of the Club or SAD.

Each Club will also determine, according to its criteria, what biometric data is used, and the technology facilitating such treatments was not only that provided by the LIGA.

"The LIGA has also not established different aspects of the treatment, such as compliance with the principles in the regulations, the retention period, the manner of retention in the systems, the technical and organizational measures that guarantee their confidentiality."

Regarding the category of recipients, it is also Law 19/2007 of 11/07 that establishes it.

Even the legal basis for the treatment coincides with that contemplated in report 98/2022, in accordance with the various precedents established therein.

Such consent was also contained in guidelines 3/2019 on the processing of personal data through video devices approved on 29/01/2020, in which the

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The Committee recognized the possible existence of treatments consisting of facial recognition based on the consent of the data subject in section 77.

"The LIGA does not determine the purposes or means of the processing, nor does the processing address the objectives specific to THE LIGA. None of the necessary requirements for it to be considered responsible for the processing are present in THE LIGA."

- THE LIGA believes that the doctrine cited, referencing the judgment of the CJEU of 5/12/2023, case 683/21, would not apply because the cases are different; in the mentioned judgment, it was an entity that, for the purpose of managing the COVID-19 pandemic, decided to use a computer tool to track the data of individuals exposed to the virus. In this case, the Clubs can decide whether or not to have fan stands, establish the type of processing they will carry out, and the various elements applicable to the processing, with the purpose of the processing being specific to the Clubs and SAD, not to the LNFP, and it is also not similar to the case of the judgment of 10/07/2018, where there was shared responsibility for the processing by the Community along with its members.

5) The obligation to carry out a DPIA, in this case, regarding the processing of biometric data for access to sports venues, falls to the Clubs and SAD, with THE LIGA lacking the status of data controller.

After reviewing the minimum content of the DPIA as provided in Article 35.7 of the GDPR and referring to various aspects of the "Guide on Risk Management and Impact Assessment in Personal Data Processing, adopted by the AEPD" and published in June 2021, it concludes that the attribution is inappropriate and its consequence is the filing.

The following aspects are highlighted from the aforementioned Guide:

- The very significant probability of high risk to the rights and freedoms of individuals that may produce impacts on the rights and freedoms of individuals requires an analysis of the data lifecycle. The Guide reviews among the ways of describing and contextualizing the processing, that of lifecycle analysis which, among other aspects, would include collection, recording, use, communication to a third party, and termination, with the aim of minimizing the impact of the processing on the rights and freedoms of the data subjects at each phase and the risk derived from the processing.

Furthermore, the initiation agreement qualifies the risk as very significant, despite the Opinion 3/2012 on the evolution of biometric technologies indicating the refinement of biometric systems and their suitability for extensive use in different environments.

The RVAE does not even specify the biometric data that may be subject to processing nor the manner in which the processing will be carried out; without knowing the type of data subject to processing, it will be even less possible to know the details of the processing itself, such as how they are collected, the storage which, according to the initiation agreement, is carried out on the Clubs' and SAD's own servers. The LNFP cannot know the lifecycle of the data. Nor the technical and organizational measures aimed at preserving the rights and freedoms of the data subjects, as counterweights to the risk that the processing may generate in such rights and freedoms, nor how each Club or SAD that has implemented the measure collects consent, which is why it cannot assess the necessary guarantees to ensure the lawfulness and transparency of the processing.

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The LNFP states that this reflects the inadequate accusation that should be archived.

6 - The LNFP makes allegations related to the violation of the principle of proportionality, arguing that the factors considered as aggravating are elements of the very conduct that is intended to be sanctioned, rebutted in this written statement of allegations. It considers that only the turnover figure and the amount imposed in the initiation agreement are assessed as deterrent, agreeing to impose the highest individual sanction imposed to date by the AEPD, "which would constitute 28.5% of the upper limit derived from the application of the mentioned turnover figure, referring solely and exclusively to the commission of a single infringement."

It considers that:

a) Article 4 of the Statutes of the LIGA states that it is created for an indefinite period and lacks profit motive, and Article 49: "The League, conceived as a solidarity expression of the common interests of the competitions it organizes and its affiliates, is constituted without profit motive and, consequently, its income, after deducting its social maintenance expenses, the commitments acquired, and the Social Fund that is constituted, will be distributed among the associates, in the amount or proportion determined by these statutes."

The LIGA adds that, since it exercises associative functions in the interest of its members, it corresponds to the exercise of public powers delegated by the sports administration, and its economic regime cannot be simply assimilated to that of a commercial entity. The LIGA manages the rights of the Clubs on their behalf, allocating the amount of the revenues it may obtain from its management or exploitation to its own associates, without the turnover figure being considered a relevant element, at least in isolation, to determine the cases in which a sanction could be classified as deterrent. The imposition of a sanction on the LIGA would affect the amounts it manages for the Clubs and SAD, which would see their resources diminished.

The accounts of the LIGA are subject to audit, as reflected in Article 58.2 of the LD 2022. Law 22/2015 of 20/07, on the audit of accounts, indicates that Professional Leagues, for the purposes of this law, are considered public interest entities.

The LIGA points out that in the report of the annual accounts for the fiscal year ending on 30/06/2023, it is indicated that the surplus or profit of the League is distributed entirely among its associates or increases the Social Fund." Considering what is mentioned in note 2.c) regarding the reserves generated in the fiscal year ending on 30/06/2022 amounting to 6,335 thousand euros, the LIGA, with the aim of benefiting the Clubs/SAD through the distribution of greater resources, has concluded the fiscal year ending on 30/06/2023 with losses of 6,335 thousand euros, so that the proposal of the Delegated Commission to the General Assembly regarding the distribution of the result of the fiscal year will be the compensation of these losses against the reserves generated in the fiscal year ending on 30/06/2022."

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Regarding the turnover, it indicates:

- A significant part of that turnover is a consequence of the ex lege competition to manage the audiovisual rights of third parties (Clubs and entities participating in the competition) which Royal Decree Law 5/2015 of 30/04 expressly recognizes as holders, being a manager of third-party rights.
- A significant part of these revenues additionally has the condition of a mandatory public service under the terms of Article 30 of the Constitution to finance sports, which constitutes 50% of the budgetary financing of subsidies to federations.

It requests that, from the turnover taken as a criterion for setting the infringement proposal, the amounts corresponding to rights owned by third parties and those that are part of the mandatory public service be deducted in order to establish a direct proportionality between the turnover and the amount that would determine that the imposed fine is dissuasive.

It considers that, within the European Union, no sanction has been imposed under Article 35 of the GDPR as high as the one proposed to it. It points out the procedure PS/121/2021 for an infringement of the same article, with a published audit report of turnover, last known, of more than 25 billion and 90 thousand employees, 1,636 stores open, with an imposition of an amount of 50,000 euros, and in which case there was no questioning of its status as data controller.

- The quantification is based on general considerations lacking evidentiary support, such as the “very high impact in terms of intensity of use and number of people on whom the processing may fall,” mere potentiality, violating a principle of criminal law applicable to sanctioning administrative law, such as applying a principle of objective responsibility based on a risk that it qualifies as potential, with said potentiality being valued as an aggravating factor “of the conduct that has only potentially been carried out.”

- It also disagrees with the characterization as an aggravating factor that indicates that there were different application guidelines related to biometric data, which it considers redundant, given that the supposed high risk derived from the processing has already been valued as an integral element of the sanctioning type. In addition to ignoring what type of aggravating factor the existence of such documents could be, they also foresee the possibility of processing biometric data based on consent. The probable high risk is decisive for the legal requirement of conducting and overcoming a DPIA, and the high risk of processing special category data, biometric data that uniquely identify the individuals concerned, is inherent and is based on the obligation to prepare that DPIA. What results from its execution regarding risks is unknown in this case, as the LNFP has not effectively carried out its execution, and therefore the risks incurred in establishing said processing have not been specifically valued as an aggravating factor.

- It does not agree to consider as an aggravating factor the lack of diligence when it is indicated that the LIGA develops an activity that depends on the public, and that, furthermore, it is presumed to have professionalism in the usual use and handling of personal data.

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It is estimated that it has not been able to make allegations against this consideration, resulting in a state of defenselessness, ignoring the meaning and relationship of “depends on the public” with the infringement that is intended to be attributed, and lacking the status of responsible for the processing, it ignores how the use and handling of personal data, of which the mentioned professionalism is supposedly predicated, occurs.

NINTH: Order of the AN of 2/04/2024, separate piece of precautionary measures

On 2/04/2024, the Audiencia Nacional, administrative contentious chamber, section 1, issued order

310/2024, appeal 155/2024: “separate piece of precautionary measures 155/2024” promoted by the defendant.

The order makes a detailed assessment of the conflicting interests. It is cited as it is considered of interest part of the reasoning that leads to dismissing the requested suspension, which is included in the FOURTH ground:

“Given these circumstances, contrary to what the acting party claims, the adoption of this measure is duly motivated, being proportional given the interests at stake. In this sense, regarding the weighing of the conflicting interests, in view of the circumstances present in this case, this Chamber considers that the safeguarding of the general interest, consisting of the protection of the right to personal data protection of the interested parties, which is a fundamental right, must prevail over the particular interest of the appellant, especially when the General Regulation of LA LIGA Nacional de Fútbol Profesional does not configure biometric access control as the only possible way to access the stands of support in sports venues, and that from the table of Clubs and Sports Anonymous Societies provided by LA LIGA Nacional de Fútbol Profesional up to the 22/23 season, excluding the current one, with information on the date of implementation of the biometric data systems used for access to the stands of support, it is noted that the implementation of the biometric system includes a total of nine teams in both the first and second divisions, out of a total of 20 teams in the first and 22 in the second.

That is to say, the provisional measure adopted by the Spanish Agency for Data Protection would not undermine the legitimate purpose of the appeal, its fundamental objective being to guarantee the rights and freedoms of the interested parties; the continuity of the processing would severely violate them, and this must prevail over the general interest.

The sought suspension would empty the measure in question of its content, which aims to protect the rights and freedoms of the interested parties immediately, and as long as there is no result from such evaluation. We must add that the acting party has other possible alternatives for the same purpose of control that would not be as intrusive as that which was the subject of the appealed resolution.”

TENTH: Second and third written submissions of the defendant.

On 21/05/2024, a written submission from the defendant was received indicating that on 7/05/2024 they received a letter from CEVRXID conveying what was agreed upon in the meeting of the aforementioned Commission on 30/04/2024.

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The agreement states that they have been informed of the publication on 23/11/2023 of the “Guide on Presence Control Treatments Using Biometric Data” and on 6/03/2024, a query was raised to the AEPD, requesting clarification on whether the aforementioned guide is binding, and therefore, nullifies the criterion of the report dated 22/12/2022, affecting the agreement adopted by this Commission on 13/03/2023.

The agreement indicates that in its meeting on 30/04/2024, the Commission agreed to suspend the application of the agreement adopted on 13/03/2023, until a response is received from the AEPD regarding the query raised.

The respondent adopted Circular 28 on 13/05/2024, for the 23/24 season, informing the Clubs integrated in the LIGA that, based on the agreement made by the CEVRXID, it is communicated to the affiliated Clubs/SADs to temporarily suspend all processing of personal data related to biometric data for access control to the stands of animation.

It provides a copy of document 1 from the CEVRXID, addressed to the President of the LNFP, with the aim of also communicating the adopted agreement to the Clubs that comprise it, and document 2 signed by the LNFP on 13/05/2024, containing the Circular addressed to the Clubs.

On 16/07/2024, a letter was submitted by the LNFP, indicating:

- They provide a copy of the sanction resolution imposed by the AEPD on ***CLUB.4 for failing to carry

out a DPIA, and deduce that “as can be seen, it is the aforementioned Club and not the LNFP that is obligated to carry out a DPIA. In that resolution, and in terms similar to those expressed by the LNFP, the AEPD considers that it is the Clubs and not La Liga who hold the status of data controllers, being those who are obligated to carry out the DPIA, contradicting the accusation made against the LNFP.”

- They provide a copy of an order from the Court of Instruction 7 of Seville, in which a restraining order is agreed for the investigated parties in that procedure from any football field where competitions are held. In point 3 of the dispositive part, it states: “Notify the resolution for its effectiveness to the LNFP for the purpose of communicating the resolution adopted to ***CLUB.5, ***CLUB.1, and the rest of the national football Clubs.”

From this, the LNFP deduces that it is the Clubs and not the LNFP who must adopt the appropriate measures for access control to the stadiums, so only they would hold the status of data controllers, being the only ones obligated to carry out a data protection impact assessment, in accordance with the provisions of Article 35 of the GDPR.

ELEVENTH: Proposal for resolution

On 12/11/2024, a proposal for resolution was issued, stating:

“FIRST: That by the Director of the Spanish Agency for Data Protection, regarding LIGA NACIONAL DE FÚTBOL PROFESIONAL with NIF G78069762,

- It is sanctioned for an infringement of Article 35 of the GDPR, in accordance with Article 83.4 a) of the GDPR, classified as serious solely for the purposes of the prescription of said infringement, in Article 73.t) of the LOPDGGD, with a fine of 10,000,000 euros.

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SECOND: To safeguard the fundamental right of subscribers to the stands of support, regarding the temporary suspension included as a provisional measure in the initiation agreement, pursuant to Article 58.2.f) of the GDPR, it is proposed that it be made definitive.

TWELFTH: Allegations against the proposed resolution.

On 10/12/2024, a written statement of allegations against the proposal was submitted, in which it is indicated:

1- “Violation of the rights of the league and legal basis of the proposal”

- Regarding the provisional measure adopted in the initiation agreement, it complied with the measure by informing the Clubs of the impropriety of carrying out biometric data processing for access to the stands of support, although it is being appealed.

- Regarding documents submitted in previous investigative proceedings “by a third party,” ***CLUB.4, and the reasons stated in the proposal, it is considered that they do not conform to law or reality.

Analyzing various points of the resolution of the sanctioning procedure against ***CLUB.4, it states that both claims were submitted on 4/11/2022, were not directed against ***CLUB.4 or the LNFP but against “the C.S.D.” In any case, “the AEPD decided that the investigation affected both my represented party and ***CLUB.4, processing the investigative proceedings jointly, understanding that there could be a connection between both. In fact, in the factual background of the Resolution of procedure PS/00483/2023, the writings submitted by my represented party are indeed recorded, as well as the others that are part of the “portion” of the procedure to which my represented party has been granted access, but without the documents submitted by ***CLUB.4 being included in this last one,” “the content of which, as will be indicated immediately, in view of the Resolution of that procedure, does have a substantial effect on the assessment that has underpinned the sanctioning reproach directed by the Proposal of Resolution against LALIGA.”

“The Administration cannot decide the segregation or fragmentation of an administrative file on its own initiative without even justifying the facts that justify such a decision. The administrative file is unique, and the Administration cannot segregate or divide it as it sees fit, especially when there is an undeniable connection between the information withheld from my represented party and the reasoning used to impose” the sanction.”

“The unilateral decision of the AEPD to decide, not even formally, which part of the administrative file that serves as the basis for the processing of a sanctioning file against LALIGA can be freely withheld from it, given that it only has the right to access the “portion” of the file that the AEPD deems appropriate.”

Article 70 of the LPACAP defines what is understood by an administrative file, as an ordered set of documents and actions that serve as antecedents and basis for the administrative resolution, as well as the actions aimed at executing it.

“In this way, the administrative file must contain all documents, evidence, agreements, notifications, decrees, requirements, and actions that have taken place throughout the administrative procedure, including the prior actions, that”

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Evidently, they will be incorporated into the same when the investigation becomes, as has happened in this case, a sanctioning procedure.

And the administrative file must be unique. That is to say, if the performance of some prior administrative actions of investigation reveals the need to open two sanctioning administrative procedures against two different entities, the file that serves as the basis for such processing must be the one that is actually processed, and not the “portion” that, without any motivation or justification, the sanctioning Administration considers should be incorporated in each case. If the Administration understood that the investigative actions should be differentiated in one case or another, it could simply have proceeded to open new actions subsequent to those initiated, incorporating only the proceedings that were processed within this latter one. But if the AEPD has deemed it appropriate to unify the investigation in this case, it cannot withhold from my client all that has been acted upon in that procedure, since in that case it would be seriously affecting my client's rights.

“***CLUB.4 could indeed access the entire file, including what my client indicated, while LALIGA could not access what ***CLUB.4 stated. The content of those statements, as evidenced by the Resolution issued in file PS/00483/2023, which evidently does not reproduce the “portion” of the file withheld from my principal's knowledge, highlights to what extent what ***CLUB.4 indicated in the three writings to which LALIGA has not been able to access is substantially relevant to deny my client the status of data controller that is sought to be imposed on them in this file.”

In said Resolution, it is indicated, as accredited, that:

1- “There is no record that LALIGA had adopted measures aimed at enforcing compliance with the obligations set forth in the aforementioned article of the RGLALIGA until CEVRXID urged it to do so. Specifically, it is accredited that CEVRXID urged LALIGA on two occasions to promote the implementation by the Clubs of the biometric control measures indicated in Book XII of its General Regulations, exclusively for the stands of support in the first and second divisions. In its agreements, it also refers to the fact that its non-compliance will lead to “the corresponding proposals for the opening of sanctioning files in the exercise of its surveillance and control function provided for in the Law.” However, the Proposal for Resolution considers that the establishment of a biometric access system to sports venues arises from the unilateral decision of LALIGA, expressed in the Regulations for the Sale of Season Tickets and Tickets (hereinafter “RVAE”), integrated into the Regulations of LALIGA, when from the information collected and withheld from my client it is evident that LALIGA did not carry out any action aimed at enforcing compliance with this provision as long as it was not required to do so by the State Commission against Violence, Racism, Xenophobia, and Intolerance in Sport (hereinafter, “CEVRXID”).

Thus, the information withheld from my principal's knowledge precisely reveals the opposite of what is stated in the Proposal.”

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2- "Upon receiving the previous communication [from CEVRXID, dated March 21, 2023], LALIGA adopted on March 23, 2023, the 'Circular No. 19 of the 2022/2023 Season, which conveyed to the Clubs the indications from the aforementioned Commission, also informing about the report from that AEPD dated December 22, 2022.' The Circular informs the Clubs that 'access to the stands for supporters through biometric data may be maintained, but only if there is free consent from the interested party, after being informed of the specific purposes for the processing of personal data. In the absence of consent from the interested parties, CEVRXID reminds that spectators in these stands will not be exempt from undergoing all identity verification controls that are in force at any given time and, to this end, it is mandatory for the Club or SAD to have a procedure that allows them to identify them.'

"It is again made clear that the establishment of access systems to the venues does not derive from a decision of my represented party, but rather from that adopted in turn by CEVRXID, in light of report 98/2022 from the Legal Advisory Office of that AEPD."

3- "La Liga, through the entity SEFPSA, provides to the members who request it the various devices for operating the turnstiles for entry to the sports venues, including, where applicable, biometric systems for fingerprint recognition. The Clubs are free to contract the fingerprint system from SEFPSA or any other, as long as they have a biometric system for the sale of season tickets and control of access to their stands for supporters.

However, in the Proposal for Resolution, it is indicated that '[t]he LNFP has contracted and made available to the football Clubs and Sports Anonymous Societies, its own associates, a biometric access system to the stands for supporters of the first and second division stadiums, providing purposes and means for processing said biometric data, from which it is inferred that the LNFP does not act in execution of any legal mandate, nor even of a regulatory mandate - since the RGLNFP does not have regulatory nature, as has been pointed out,' using this statement to indicate that LALIGA decides on the purposes and means of the processing and the manner in which such processing will be carried out. From this statement, it seems to be understood that the processing that the Clubs will carry out is done (i) because LALIGA wants it that way; (ii) in the manner that LALIGA deems appropriate; and (iii) with LALIGA's intervention in the processing operations. However, none of these statements are true when this assertion is confronted with what is indicated in the Resolution of procedure PS/00483/2023.

- After receiving Circular 19 from La Liga on March 23, 2023, the Clubs that had implemented biometric recognition systems adopted measures aimed either at suspending this access procedure or at maintaining it as voluntary and complementary to others, which only deepens the fact that LALIGA merely informs the Clubs of the decisions adopted by CEVRXID, which is the one that had resolved the establishment of this biometric access control system to the venues.

- It is indicated that in the third request for information, ***CLUB.4 is asked 'to provide information on the locations where the biometric patterns are stored (Club servers - (...) - or Turnstiles),' to which it responds that 'it...'

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stores only in the (...). It states, among other aspects, that "The norm is to collect 2 templates per finger and 2 fingers per subscriber. Enrollment is carried out through (...), which interacts and is managed from the (...) on the Club's equipment. – Once the enrollment process is completed, the client application transmits (...). (...). "The turnstile (reader) (...), only serves as an emitter, collecting the subscriber's template through the (...)", adding regarding the required information about the destruction of data that "when an authorized employee of the Club decides to delete a biometric pattern or all of them, they can do so from the ***DEVICE.4 system, deleting them from the only place where they are stored, the Club Server ((...)); this process is irreversible, so once deleted, recovery is

not possible.”

And from all this, the AEPD deduces that:

“Therefore, the identification process necessarily includes the performance of several processing operations (collection or capture of data, registration, storage, processing, comparison, authentication, conservation, deletion, limitation... etc.) for which only the ***CLUB.4 was responsible for the purposes provided in Article 4.7 of the GDPR, which states: “7) ‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

In short, when the ***CLUB.4 implemented a new fingerprint detection system for the identification-verification of the identity of natural persons (instead of the usual method of identity verification using an ID card and proof of purchase through a QR reader, or chip on a card), it must have been aware that it would become responsible for setting the purposes and means of several processing operations of special category data and of high risk.”

However, regarding my represented party, the AEPD has not been able to appreciate the existence of a single one of the processing operations referred to in Article 4.2 of Regulation (EU) 2016/679, of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data (hereinafter, “GDPR”), all these operations being carried out by the Clubs and Sports Anonymous Societies (hereinafter, “SAD”) on their own servers and as a consequence of their decision to resort to the technology they deemed appropriate, which shows that my represented party does not meet the condition of data controller.

Everything that has been indicated up to this point demonstrates how the mere reading of what has been considered accredited by the Resolution of the ***PROCEDURE.1 is substantial for the resolution of the present sanctioning procedure, having been this information withheld from my represented party, causing it a clear state of defenselessness.”

It considers that not allowing access to the complete file has caused a real and effective harm, given the fact that it has not “been able to take into account what

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invoked by one of the Clubs that comprise it in order to demonstrate to what extent the Clubs and the SADs are solely and exclusively responsible for the processing, constitutes an essential defect that deprives my client of the use of evidence, of which the AEPD is aware but which it deliberately removes from the present procedure, evidencing to what extent the assertions made in the Proposal for Resolution are not only contrary to data protection regulations but also to the very ratio decidendi that guided the AEPD in imposing a sanction on ***CLUB.4 as a consequence of data contained in the same file processed against LALIGA.

It cannot be considered remedied merely by the fact that my client submits these allegations nor because it makes use of the content of the aforementioned Resolution, given that at the stage of the procedure in which we find ourselves, LALIGA still cannot have knowledge of the complete content of the file that led to the opening of this sanctioning procedure, being limited to reproducing passages from the cited Resolution.

It reiterates “once again that the removal of the ‘portion’ of the administrative file that the AEPD, without any decisive foundation, has deemed appropriate at the moment the said file was presented to it, constitutes a blatant violation of its rights to effective judicial protection and defense, which must inevitably lead to the filing of the present procedure, hereby reproducing what was indicated in the allegations to the Agreement of Initiation.”

It also adds that “a clear infringement of my client's defense rights has occurred as a result of the terms in which it has been previously requested, as such requests have in no case allowed LALIGA to understand what conduct was intended to be verified, let alone what the supposed indications that the AEPD intended to verify were. The terms and conditions under which both files have been processed, as well as those information requests, have also made it impossible for LALIGA to determine the specific scope of its duty to cooperate (under Article 47.1.A LPAC), thus preventing it from fully exercising its defense rights in the face of the possible subsequent initiation (later confirmed) of a

sanctioning file that carries very serious consequences.

In this regard, on 17/02/2023, LALIGA was requested "in relation to the access controls to the stadiums of the Clubs and SADs (sports public limited companies), members that are part of the LNFP, the following:

3.1.1. Provide the set of rules, instructions, recommendations, etc., approved by the LNFP and currently in force regarding the various aspects of the processing of personal data (principles, bases of legitimacy, special categories of data, duty of information, rights of the data subjects, retention periods, etc.), arising from the access control to the stadiums of its members. Indicate for each of the referred rules, the date from which it has been in force, whether it is a recommendation or obligation, and whether the approval of its terms derives from the promulgation of state-level regulations.

Without the context to which it is now incorporated being noted in said request, which was made in broad terms and without the necessary motivation, which would determine its subsequent derivation into a disciplinary procedure.

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It has determined a violation of the fundamental right not to testify against oneself and not to confess guilt (articles 24.2 of the Spanish Constitution and 48.2 of the Charter of Fundamental Rights of the EU) insofar as, to the extent that it is impossible for LALIGA to understand what conduct the AEPD was investigating, it was likewise impossible to discern that the response to the request could be incriminating (always under the AEPD's criteria) and result in the initiation of a sanctioning procedure and the eventual adoption of a sanctioning decision against LALIGA based on the information provided in response to the Information Requests, without the necessary guarantees being adopted.

It should be noted that the inspection actions of the control authorities are strictly subject to the principles of necessity and proportionality to avoid excesses or deviations between the pursued end and the means employed to achieve it and, in particular, to prevent unjustified interference in the right to freedom of enterprise and the rights of defense and, in the case of inspections, also the right to home inviolability.

In this regard, the Supreme Court in its judgment of November 2, 2015, rec. 2354/2013 indicated regarding information requests that, by analogy with inspection actions, "they are subject to the principle of proportionality and adequacy to avoid excesses or deviations between the pursued end and the means employed to achieve it."

It should be noted that in the context in which LALIGA transfers information, it was completely unaware of the necessity and relevance of such information for the purposes of the investigation later known (partially, as we have indicated). Moreover, in light of the analysis, it should be considered that the requests made could be regarded as an exploratory investigation (fishing expedition), a conduct expressly prohibited by the jurisprudence of the CJEU and the ECHR.

2 - "The essential premise of the proposed resolution"

"The condition of organizer of the professional football competition, in this case, is a condition that has a strong component of delegated action from public authorities, which is manifested more clearly when ensuring safety in stadiums, which turns out to be a particularly sensitive aspect of the organizational competence of the competition that cannot be developed outside of administration but under its strict supervision."

"It is complex to accept that the condition of supplier is a evaluative element to attribute to the LNFP the status of data controller. If the one supplying the software or directly selling it is responsible for the conditions of use of the one acquiring it, we can indicate that the scheme of responsibility has been inverted, which is not based on the actions themselves but on the use by third parties. It is not acceptable, in terms of responsibility, that the conditions that, in data protection matters, correspond solely to the data controller, which in no case is LALIGA, are transferred to the designer and the supplier.

It is the third parties who acquire the software that are responsible – in their case – for its use in

accordance with current legality. This argument, taken to its ultimate extremes, would make all merchants responsible for the use of what they sell, which is not."

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admissible within the public sanctioning framework in which one can only be held responsible for what one does and not for what corresponds to or is carried out by third parties with whom there is no direct link.

It should be noted that the principle of responsibility is constitutionally protected under Article 9.3 of the Spanish Constitution (CE). Similarly, the principle of responsibility respects the constitutional principle of the right to defense and the presumption of innocence, protected under Article 24 of the CE, recalling that the requirement of responsibility refers to actions carried out with intent or negligence. It is estimated that it has not been proven that the conduct attributed in the initiation agreement is attributable to the LNFP either by intent or negligence, nor does it support, as attempted here, the responsibility for the actions of third parties. "That LALIGA indicates the methods or ways to comply with legal obligations and even provides the software to do so does not make it a user and, therefore, it is not responsible for what, in its case, those who use it do." The requirements or conditions for the use of software are specific and inherent to those who use it, not to those who provide or market it. The loss of the direct connection between the activity subject to sanction and the responsibility of LALIGA is unacceptable in terms of administrative responsibility and, certainly, does not serve to establish the scheme and the sanctioning reproach that is intended to be indicated here.

"The assertion that the approval of the RGLNFP arises from the exclusive will of LALIGA is unfounded because public intervention in the organization of competitions operates on a triple level and utilizes differential elements from the perspective of legal technique, but this does not prevent the entirety of public intervention from consisting of exercising public functions through the interposition of a private instrumental entity of legal configuration to which the central elements of its action are assigned. This conceptual confusion is based on a misinterpretation of the Supreme Court's doctrine regarding the legal nature of statutes and federative regulations. The Supreme Court's doctrine is that they are not genuine provisions of a general nature in the strict sense; however, this determination does not affect, in any way, the nature of the activity that remains in the administrative realm without a doubt. To put it in more colloquial terms: that they are not general provisions does not privatize the regulations of leagues and federations. It transforms their condition, but not their nature.

In this sense, it is evident that the functions exercised by LIGA do not arise from its free formation of will, but from an administrative act, which was what determined the approval of the RVAE, as part of the RGLNFP, and that it exercises public administrative functions by delegation, acting as a collaborating agent of the Administration, and that LALIGA has been urged on two occasions to comply with the biometric access measures in the stands of animation and their access points." According to the Judgment of the Supreme Court 626/2024, it concludes that Sports Federations exercise public administrative functions by delegation, acting in such cases as a collaborating agent of the Public Administration, reflected in Article 30.3 of the Sports Law of 1990, which contains the specificity that recognizes that even being associations of a private nature, LO 1/2002 excludes them from its scope due to this specialty, attributing their coordination and oversight to the Higher Sports Council, which is specified in Article 33.1 of the Sports Law of 1990, and is detailed in Article 6 of the Statutes. The following functions were:

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"Both Sports Laws, the one from 1990 and the one from 2022, establish a framework for the exercise of organizational functions that operates under public control. The regulatory framework is

complemented by RD 1835/1991 of December 20 regarding Sports Federations, which is linked to the exercise of self-organization powers with the approval technique of statutes and regulations. This triple scheme is of an administrative nature, and no more definitive proof can be formulated than that of the applicable jurisdictional forum for the entirety of these actions, which is the contentious-administrative jurisdiction. This refers to the challengeable acts in this avenue contained in the definition of Article 25.1 of the LJCA."

"As a consequence of this, we can affirm that the act of approving the statutes and regulations and those derived from the organization and, where applicable, from the exercise of disciplinary power find as their jurisdictional forum the contentious-administrative because they are issued by an organ of a Public Administration or by a private organ in the exercise of public functions.

This justifies a question that seems to have been forgotten in the present case: it is the action of an administrative organ or in the exercise of public functions and the submission to Administrative Law that is the central element for the consideration of acts of an administrative nature.

What must be clear is that the debate over whether federative statutes and regulations are or are not general provisions is a debate of relevance for determining the legal nature of what is challenged, but not to alter its essence. Its essence is administrative and, in this context, they will be an act or a provision, but always of the same kind: the administrative."

"In relation to the powers of the C.S.D. reflected in Article 14 g) of Law 30/2022 on Sports, 'ratification' is a term complex to decipher in administrative dogmatics, which is identified with the expression 'ratification,' pointing to a control power focused on the validation of contents without any other consideration of opportunity or anything other than purely legality. Therefore, the now-called 'ratification' is nothing but a legality control that operates over each and every one of the provisions of the Regulation or the Statutes, but has special significance in those aspects that affect the exercise of delegated public competence."

"This precept allows us to understand that the approval or ratification is a consequence of the matter and, specifically, that the legal scheme attributes to the Federations and Leagues the exercise of delegated functions. This nature is not undermined whether it is a general provision or an administrative act validating the statutory norm.

For further development, Article 56.3 of the LD of 2022 establishes that:

'The statutes of professional leagues, as well as the disciplinary regulations, economic control of the participating entities, electoral, competition, in case there is one, internal organization, as long as it regulates the composition and functioning of its mandatory bodies, and the corresponding modifications, will be ratified by the Superior Council of Sports, prior to a mandatory and non-binding report from the Spanish sports federation, and must include the requirements established by regulation.'"

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The statutes and regulations referred to in the previous paragraph shall be registered in the State Register of Sports Entities, coming into force after their publication on the professional league's website. Such publication shall be carried out in a manner that ensures the date of insertion and, in any case, within one month from the aforementioned ratification, without prejudice to any other means that ensure its publicity, shall be permanently accessible and shall be carried out in all official languages in the state territory."

The statutory regime of the LNFP is governed by Article 57 of the Sports Law of 2022 and by the Royal Decree on Sports Federations, Article 26.

"Having stated the above, we can establish the following considerations:

a) The organization of internal life and the functions to be developed by a professional league are based on administrative intervention through the technique of approval or ratification by an administrative body of its internal organization and management rules and, above all, of the public function they perform.

- b) The legal and regulatory framework determines a minimum content of the organizational rules, although it does not prevent the inclusion of auxiliary or incidental elements depending on the capacity to organize the necessary means for the exercise of the organizational function that the LD confers *ex lege*.
- c) The technique of public intervention in the form of approval or ratification implies a legality control that affects each of the provisions included in the Regulation. It is not a general assertion but a specific control of each regulation that allows for requirements and corrections when it is considered that any of the provisions does not comply with legality.
- d) The matter, once approved or ratified, is clearly administrative because the competence for carrying out such a function is expressly attributed to an administrative body that acts with a legality criterion – as provided by Article 103.1 of the CE – and to determine whether the mandatory determinations set out in the normative structure have been assumed and, additionally, whether in the part of voluntary content there is an impact on the legal framework.
- e) Based on this framework, the approval of a Regulation – as is the case – demonstrates that the Administration considers that it is within the functional framework of the respective professional league and that the measure and the proposed regulation are in accordance with the Legal System because they do not oppose the current legality.
- f) This assumption of the material content of the statutory or regulatory norm is subject to control in the contentious-administrative jurisdiction and is completely detached from the material consideration as an act or as a regulation because this distinction does not produce the transformative effect that the Proposal suggests. What is public intervention is the establishment – whatever the modality – of an administrative legality control that affects compliance with the Legal System in which it is included. At this point, it is worth insisting that the Proposal presents a sort of confusion in the interpretation of the STS. That it is not a general provision, *strictu sensu*, nor a regulation does not mean that it is not a true administrative act of approval of the actions of a private entity. The technique of approval – or now of

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Ratification - is a technique for controlling legality and affirming compliance with it that the LD attributes to an administrative body and whose essence is to safeguard the actions of the private instrumental entity entrusted with a function of public relevance.

The act of approval validates the compliance with legality of the act in question and the content of what has been approved or ratified, without prejudice to its subsequent analysis in the administrative contentious jurisdiction.

To clarify further: when the Administration is the direct guarantor of legality, it issues an administrative act. When the Administration is the guarantor of the legal actions of third parties who perform functions of relevance or public interest, it allows them to operate within the scope of delegated competencies, subjecting their actions to public control through the technique of approval or ratification, which, although not identical, share the common feature of enabling the actions of third parties that require a mechanism of public control.

It is estimated that the approval of the RGLNFP arises from the exercise of its competencies that for the Professional Leagues are contained in article 95.a) of the Sports Law of 2022, “regarding the organization of competitions, which are included in the act of the C.S.D. declaring professional competitions, in coordination, when appropriate, with the corresponding Spanish Sports Federation, in accordance with the provisions of the following article,” which is complemented by article 25 of the Royal Decree on Sports Federations.

“The set of the indicated determinations places us before a clear approach:

- a) The organization of the competition obliges not only compliance with the material obligations of a sporting nature but also with those arising from the public safety framework.
- b) In consideration of the above, the existence of biometric controls is a possible measure for

compliance with security obligations that finds a natural fit within the set of provisions indicated and that enable the existence of controls and devices that allow for compliance with the indicated obligations.

c) This justifies that the use of biometric controls, as a measure that fits within Law 19/2007, of 11/07 against violence, racism, xenophobia, and intolerance in sport (hereinafter, "Law 19/2007"), was brought to the RGLNFP and, consequently, that it was approved by the Executive Commission of the Superior Sports Council on 23/12/2015, as my represented party demonstrated by providing information in response to the Information Request of February 2023, in its version approved by the C.S.D. on November 7, 2022, expressly indicating that article XII.2 of the RVAE has not been subject to any modification since the approval by the C.S.D. of the modification of the RGLNFP that took place in its session on December 23, 2015. All of this demonstrates that the approval by the C.S.D. was and is entirely correct.

d) In relation to the means or the specific instrument, the CEVRXID, in the exercise of the power attributed to it by article 13.1.b) of Law 19/2007, agreed on 15/03/2022, to transfer the agreement adopted on 3/03/2022, which urges the implementation for the first and second divisions of football of the provisions in the RGLNFP regarding the conditions of sale.

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of entries and accesses to the stands of animation, reproducing sections 2 to 6 of article XII.2 of the RGLNFP.

e)

Based on the above, the obligation of the organizers to use instruments that allow for compliance with the public interest objectives required by general regulations and those for the prevention of violence is what justifies the CEVRXID indicating biometric controls as a means to achieve the public purpose that underpins such regulation.

f)

The inclusion in the internal regulatory norms of the obligations of the organizers has undeniable generic support in the violence regulations that do not limit the means in question but openly declare that they can be established, provided that the respective applicable requirements are met.

Furthermore, in addition to the generic authorization, it is evident that the CEVRXID introduces a specific prescription regarding biometric controls. This demonstrates that both through the generic and the specific route, it is an admissible and proportional instrument for the public purpose being pursued.

g)

The approval of its inclusion in the Regulation is presented as a manifestation of the organizer's compliance with the public obligations demanded by the administrative bodies in the fulfillment of public purposes. The regulation contained in the Regulation does not make the LNFP responsible for what those who use the system do; it is evident that the context of the organization of professional competitions is controlled and regulated by the authorities and is a result of the public commitment to comply with obligations and security measures, being a measure in a context.

"The LIGA cannot be held responsible for the use and conditions of implementation of biometric systems by third parties; it can regulate an obligation, but it is up to the one who is responsible for its use to ensure compliance with the sectoral requirements, in this case, those of personal data protection. The assessment of risk, its proportionality, in the field of data protection, corresponds solely to the user and not to the one who indicates that it must be accounted for. The way to account for it is the responsibility of the executor, and this is not LALIGA. To reach the basis that responsibility falls on LALIGA, the argument is artificially constructed that it does not derive from public regulation or from compliance with indications from public authorities. The documents presented and the very literal configuration of the documents presented lead us to consider that the regulation fits perfectly within the security obligations and that the manner of its use can only correspond to the one who actually executes a determination that aligns with the public interest of security."

It is considered that the provision to use biometric systems in football fields and in the stands of animation links with the legal and regulatory determinations regarding the prevention of violence and security in stadiums that had been the subject of TWO requests by the competent body, the CEVRXID. The inclusion is a consequence of the organizer's own status of professional competitions, which must comply with the determinations of a sporting nature, but also those of a nature or connection with public security.

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In light of this, "the League includes it in its regulations and the C.S.D. as the authority for legality control assumes that it is a proportional and adequate measure and consequently approved the regulation that contains it."

"Whether the final product is a general act or a sui generis manifestation of the capacity to issue general provisions is a debate that does not affect the nature of the function developed, being indisputable that it is an administrative act and in no case is it a private act; one must not confuse the nature of the act with whether it is a public or private action."

In consideration of the above, the League's Regulation, approved by the C.S.D., is an organizational measure that links with the determinations of the CEVRXIDY, which fits fully within the open framework of obligations that the law itself enables for the organizers of this type of competition.

3- "The LNFP cannot be considered in any case responsible for the processing of personal data for the purpose of access to the stadiums."

From the analysis in the proposal for resolution, in its legal basis IV, "Responsible for processing," it states that it admits that the extensive interpretation of the concepts established in the data protection regulations must be subject to a broad interpretation, "but it cannot in any case exceed the own logic and systematic nature of data protection, trying to impose criteria that are contrary to logic, which cannot fit within the definitions contained in the RGPD," considering that the LNFP does not participate in the actual and effective processing, a requirement mentioned in the Guidelines 7/2020 regarding its purpose in clarifying the meaning of the concepts, functions, and distribution of responsibilities among the participants, and conversely, those who do not participate in the processing in a real and effective manner would neither be responsible nor in charge of processing.

It denies that the LEAGUE determines the "why the processing takes place" nor decides "that the processing must be carried out for a specific purpose," given that this "why" and that "for what" comes from a decision that is not the LEAGUE's own, but rather "derives, as repeatedly indicated in our allegations to the Initiation Agreement, from the provisions of Law 19/2007, which sets the purpose of access control to sports venues, complemented by what was agreed by the CEVRXID, which, on two occasions, required, imperatively and categorically, my client to convey to the Clubs and SAD the obligation to implement biometric access systems in the stands of the stadiums of the competitions organized by the LEAGUE." It also states that the purposes of the processing are specific to the LNFP because they derive from the regulations on the prevention of violence, racism, and xenophobia in sports. To this end, it argues that access control to the stadiums is not among the functions attributed to the LEAGUE by Article 41.3 of Law 10/1990 on Sports nor the current Article 95 of the current Law 39/2022.

"In this way, my client sets the conditions for the organization of the matches held within the framework of the competition, but in no case does it carry out the control of spectators to the venues, a function that corresponds exclusively to the Clubs and SAD that comprise it. For this reason, if what the Proposal for Resolution intends is to attribute to my client the status of responsible for processing based on the aforementioned assertion, that is, that the LEAGUE is responsible for the processing of data for access control to the sports venues because the establishment of an access regime to said venues 'is not alien to it,' the LNFP considers that 'the interpretation made is not only extensive but clearly contrary to the own sports regulations.'"

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The cited control is not only “not foreign” to LALIGA, if one follows the extensive reasoning of the AEPD, but it is also not foreign to the competent bodies in sports matters, and especially to the C.S.D., which approves or ratifies the RGLNFP, and to the CEVRXID, which is specifically attributed the competence to establish reinforced access measures to the venues, just as it is not foreign to the Security Forces and Corps, responsible for ensuring safety in the stadiums, or to the legislator. And evidently, even to a lesser extent, it will not be foreign to the Clubs, which are the ones who must implement the necessary measures to carry out the appropriate control of access to the sports venues.”

“LA LIGA in no way interacts with attendees at sporting events, much less with the subscribers of the Clubs and SAD, with the link being between the Clubs and the interested parties themselves, without any type of participation from LA LIGA.”

It states that some paragraphs of Guidelines 7/2020 are cited incompletely, such as section 27, which appears as examples for the explanation of trying to understand who and why an entity may be considered responsible for the processing. This section would be completed with

“In this case, the existing traditional functions and the professional competence that usually imply a certain responsibility will help to identify the responsible party for the processing: for example, a company in relation to the processing of personal data of its employees, a publisher that processes personal data of its subscribers, or an association that processes personal data of its members or contributors. When an entity participates in the processing of personal data due to its interactions with its own employees, customers, or members, it is usually the one that determines the purposes and means of the processing and, therefore, acts as the data controller in the sense provided for in the GDPR.”

And the LNFP states that it does not interact in any way with attendees at sporting events, nor with the subscribers of the Clubs and SAD, with that relationship being with the Clubs.

Following the line of the fact-based approach, the word “determine” means that the entity that truly exercises decisive influence over the purposes and means.

“In the case analyzed in this procedure, LALIGA does not even exercise such a function of data processor, limiting itself to providing the Clubs with a certain solution, so that they, if they deem it appropriate and with total freedom, as even indicated by the AEPD itself in the proven facts of the resolution arising from procedure ***PROCEDIMIENTO.1, decide whether they consider its hiring appropriate.”

“The AEPD starts from the premise that LALIGA determines the purposes of the processing, but does not even analyze whether such determination is in accordance with what is indicated in the Guidelines. That is to say, according to the AEPD, in a completely apodictic manner, and without room for analysis, the mentioned conclusion is evident and notorious. However, it does not take into account that my represented party:

- (i) does not even determine the biometric data that will be subject to processing;
- (ii) does not establish a specific data retention regime, despite the Proposal seeming to indicate that my represented party has established that the data “could be...

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to preserve at least throughout the entire season, if not longer, elements that contribute to increasing risks”;

(iii)

does not establish who will have access to the data, as the applicable legislation provides for what those accesses will be and the recipients of the data, among whom, in no case, will my represented

party be found; or

(iv)

the categories of interested parties, given that, as indicated in the allegations to the Initiation Agreement, it is the Clubs and SAD that decide in any case whether there is a fan section and how access to it is granted, with venues where the mentioned section is not delineated.

It considers the proposal that LIGA holds the status of data controller based on premises that would be:

- The approval on 23/12/2015 of the RGLNFP, in its specific part of the RVAE establishing the processing of biometric data for access to fan sections, as the organizing guarantor of first and second division football competitions, constituting a singularized regime of differentiated access from the ordinary applicable to the rest of spectators who do not occupy seats located in that sector, deciding that the valid titles for access to the sports venues where the competitions are held are carried out in a certain manner regarding the purpose and use of personal data, under certain conditions and requirements and with specific consequences.

- LA LNFP has developed a system to implement said processing, considering the means, including technical ones, through its subsidiary SEFPsAU which offered the technological development of the biometric fingerprint system.

And the content in legal basis V:

“LA LNFP is responsible for the processing of biometric personal data for access to the fan sections of first and second division football stadiums, not only by having approved the regulation that establishes as mandatory for its affiliated Clubs and SAD, with the aim of combating violence, racism, intolerance, and xenophobia, but also by delineating in relation to the design of the system through its subsidiary SEFPsA such means that involve risks to the rights and freedoms of subscribers, and which should have counted and surpassed a prior DPIA.”

Carrying out an extensive interpretation of the concepts of processing and controller that cannot be accommodated within the data protection regulations. It considers that the AEPD intends to apply the concept to any activity that may have remotely been related to personal data in the past or in the future. It denies that processing can extend to any relationship, no matter how remote it may be considered, with the operations that third parties may actually and effectively be carrying out, either by themselves or through data processors.

Although it does not deny that an entity may be considered responsible for processing that it does not materially carry out, Article 4.2 of the GDPR establishes a non-exhaustive scope of what would be considered processing operations, “it cannot be ignored, as the Proposal intends to do, that such activities, in any case, involve an action related to personal data. That is to say, the concept of processing of

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data is linked to the existence of an operation that reveals such processing, and cannot be considered applicable to operations that do not reveal it, in pursuit of an interpretation of the concept that is not extensive, but rather completely forced and contrary to the very criterion of the GDPR.” “Not even in the most extensive interpretation of that regulation can processing encompass actions such as the ideation or general decision regarding its execution; that is, the mere indication that biometric data will be processed by the Clubs or SAD in the event that they have stands for supporters can never in itself constitute personal data processing, because it bears no relation to any processing operation included in the definition established by Article 4.2 of the GDPR nor to those that could result from the most extensive interpretations established therein.

The Proposal seeks to deny this circumstance, referencing the fact that the processing of data in this case “comprises several phases or processing operations, which correspond to various ‘independent successive controllers’.” Thus, it distinguishes, on one hand, what it calls the “generic design of the system for access control in first and second division stadiums in relation to the supporters’ stand,

contracted and made available to the Clubs and sports limited companies. The LNFP, by defining the content and contracting this system, decides on the purposes and means of this processing operation” and, on the other hand, “the effective implementation” of the processing.

It considers that such an assertion is completely excessive in a straightforward interpretation of the concept of processing established by the GDPR. Indeed, no one questions that a particular data processing may involve a series of successive phases, but what is beyond doubt is that for those phases to be considered integrated into the generic concept of processing, it is necessary that they encompass activities that fit within the concept of processing personal data, implying that there is a real and effective relationship between the operation and the personal data, and not a mere desideratum or mere ideation, as indicated by the AEPD.

Moreover, the reasoning employed in the Proposal is clearly circular, as it starts from a premise that it attempts to modify based on the appreciation of a series of assertions that do not fit within that initial premise: thus, given that (i) it is necessary to interpret the concept of processing in a way that guarantees the protection of the rights of the data subjects; and (ii) the concept of personal data processing refers to numerous processing activities; (iii) a processing operation can have several phases; (iv) including those that would not even fit in a more extensive, yet straightforward, interpretation of the concept; (v) thus, through this reasoning, let us say, flawed, it could be considered that any activity that can remotely relate to what a third party does with personal data could be considered processing; (vi) thereby achieving the objective of guaranteeing the fundamental right. Obviously, a reading of the aforementioned premises and consequences suffices to reveal how the construction contained in the Proposal is not minimally acceptable from the most essential principles of logic.

The fact that the RVAE indicates that access to the supporters' stands is carried out, provided that the data subject consents, through a biometric recognition system (also taking into account that this provision comes directly from the agreements adopted by the CEVRXID, which required my client to communicate to the Clubs (i) the requirement for the implementation of such a system in all cases, under penalty of...

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the enforcement powers established in Law 19/2007 shall apply; and (ii) subsequently, the necessity of obtaining the consent of the data subject, as required by the AEPD in its report 98/2022) does not constitute and cannot constitute in any case an operation or phase of data processing, since it does not imply any type of activity related to or concerning the data.

And let it not be forgotten that Article 4.2 of the GDPR, before enumerating the operations of processing, establishes a requirement that must be common to all of them, by indicating that personal data processing is “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not.” The indication that access may be controlled through biometric control cannot be considered an “operation” performed “on” personal data. And note that in the concept, the GDPR uses the participle of the verb perform, which implies that this operation must have taken place, not including in any case as a processing operation what is merely possible, but what is “performed.”

It reiterates that the judgment of the CJEU 5/12/2023, case C-683/21 (Nacionalinis visuomenės sveikatos centras prie Sveikatos apsaugos ministerijos and Valstybinė duomenų apsaugos inspekcija), is not applicable to the case, as the same circumstances do not occur “since it is necessary to take into account the circumstances of the case analyzed by the judgment, in which the decision-making power was materialized in what is indicated in paragraph 32 of the judgment, which clearly states that ‘the creation of the mobile application in question was commissioned by the CNSP and aimed to achieve the objective assigned by it, namely, the management of the COVID-19 pandemic through a computer tool to record and track the data of individuals exposed to the COVID-19 virus. To this end, the CNSP had planned for the personal data of the users of the mobile application to be processed. Furthermore,

from the referral resolution, it follows that the parameters of this application, such as the questions posed and their formulation, were adapted to the needs of the CNSP and that it played an active role in their determination.”

That is to say, in the aforementioned case, the application created was done so following the parameters of the entity considered responsible by the CJEU, and moreover, that responsible entity was the one that commissioned the development of the application according to the guidelines it established. And these circumstances do not occur in this case, in which the Clubs can, on the one hand, decide whether or not to have a cheering section, on the other hand, establish the type of processing they will carry out, and additionally, determine the different elements applicable to the processing, with the purpose of the same being specific to the Clubs and SAD and not to LALIGA.” It also does not consider that the aforementioned judgment of the CJEU 10/07/2018, case C-25/17, *Jehovan todistajat*, would be applicable, since in that case there is a direct relationship between the objectives of the community that is considered, in this case, jointly responsible for the processing along with its members. In particular, my client recalled that paragraph 71 of the judgment indicates that “the collection of personal data about the contacted individuals and their subsequent processing serves to achieve the objective of the community of Jehovah's Witnesses consisting of spreading the faith of this community and, therefore, is carried out by the preaching members for the purposes of that community. Furthermore, the community of Jehovah's Witnesses generally not only has knowledge of the performance of these processes for the dissemination of its faith, but also organizes and coordinates the preaching activity of its members, particularly by distributing the areas of activity of the different preachers.”

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Likewise, my client considers that it is not possible to apply to the case the doctrine incorporated into the rulings of the CJEU corresponding to cases C-40/17, *Fashion ID*, and C-231/22, *État belge*, cited in the Proposal, since they refer to situations in which the various parties involved in the processing of data, classified as controllers, carry out actions that fit within those enumerated in Article 4.7 of the GDPR, as they are carried out “on” personal data and not as mere ideation, as would occur in the present case.

“Not even the fact that my client has made available to the Clubs and SADs that comprise it a system that allows for the biometric processing of data by them can in any way be considered an operation carried out “on” the personal data of any interested party.” estimating that the solution made available to the Clubs for biometric processing did not imply its imposition, as each Club or SAD could contract the one they deemed most appropriate, as was made clear in the ***PROCEDURE.1, and said solution is implemented in the systems of the Clubs themselves, being they who determine, among other things, the manner, the means by which the processing will be carried out, how the interested party will be informed and their consent obtained, the retention period of the data, the manner in which they will be stored, always within the servers of the Club or SAD, or how the rights regarding data protection will be exercised before them.

That is to say, LALIGA not only does not set the means of processing (which may be those of this solution or those of any other), but those means will only be set by those Clubs and SADs, who are the only ones responsible for the processing of the data because they carry out, by themselves or through data processors, operations “on” the personal data.

In this way, LALIGA would be nothing more than a facilitator for the Clubs and SADs of a technological solution, from those existing in the market, which they may freely decide to implement or not in their access systems.

We must refer again to the doctrine established in the CJEU ruling of 5/12/2023. The role of LALIGA would be that of the developer of the application (and not even that, as it would be limited to making available to the Clubs a solution already existing in the market), and not that of one who requires that it carry out certain processing of personal data that it will perform, through that third party, within the

framework of preventing a pandemic.”

“In the present case, LALIGA only makes available to the Clubs a tool developed and marketed by a third party, which they can choose if they deem appropriate and which, moreover, they will adapt to their own systems, given that the information subject to processing will only be retained in them and it will be the Clubs who must decide how to comply with the obligations established in the data protection regulations, (i) adapting their privacy policies; (ii) establishing the procedures for exercising rights regarding data protection; (iii) managing the consents granted by the interested parties; or (iv) complying with the proactive accountability measures established in the GDPR in light of how they implement the tool made available to them.”

The LNFP considers that “it is evident from the Proposal itself what its true purpose is” when it states that:

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“If this broad concept of processing is not recognized, which allows for the design, definition of the system, its contracting, and its availability to other parties (who will decide to use it in good faith that the system is perfectly designed and contracted, complying with the standards and obligations set by the GDPR) to be considered as a processing operation and to demand responsibility without the need for the execution of the material processing operations (collection/extraction of personal data) to have commenced, various essential obligations foreseen in the same would be rendered ineffective and outside the scope of application of the GDPR.”

The AEPD “contradicts the wording of Article 4.2 of the GDPR, as it considers that an activity carried out ‘without the need for the execution of the material processing operations to have commenced’ must be regarded as an ‘operation performed on personal data,’ which in itself constitutes a complete contradiction in its own terms. Thus, an expansive interpretation of the data protection regulation is sought, reaching any activity that the AEPD links to personal data, even if the linkage is hypothetical and even if there is no processing, since the ideation or availability of a system will already be considered processing.”

“But by applying this rule, as we already anticipated in the allegations to the Initiation Agreement, any tool that, contracted by an entity, involves the processing of personal data in the future turns whoever makes it available (even if they did not develop it) into the data controller. Similarly, following the example mentioned earlier, the developer of a standardized cloud storage service or the intermediary who made it available to the developer's clients would also be considered a data controller, as it involves providing the controller with a means for data preservation, which obviously fits within the concept of processing.

Ultimately, the application of the doctrine that seeks to support the Resolution Proposal leads to results that cannot in any way be considered covered by the personal data protection regulation. Nor can the argument expressed by the Proposal that the fact that my client made a certain solution available to the Clubs and SAD for data processing ‘generates in them the good faith that the system complies with the provisions of the GDPR,’ which turns LALIGA into the data controller, be deemed acceptable. Thus, any association that makes available to its members a personal data processing system that they may or may not use, and, if they do use it, must implement it in their own systems, is responsible for processing merely by generating the good faith in its members as indicated by the Resolution Proposal.”

It is considered that the concepts of data processing and data controller are interpreted in a non-valid and extensive manner to impose on those who do not appear as controllers the obligation to carry out a DPIA.

“That is to say, it is not that LALIGA is obliged to carry out a DPIA by virtue of being a controller, but rather that, as the AEPD intends for LALIGA to carry out such a DPIA, even though it is not obliged to do so, the AEPD needs to attribute to it the status of data controller, even when it does not fit within the personal data protection regulation.”

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4- “Material impossibility for the league to carry out a DPIA.”

Regarding the legal basis V of the proposal, non-compliance with the obligation to carry out a DPIA, it states that its allegations regarding the initiation agreement (EIGHTH fact, point 5) have not been answered, and reiterates that without knowing details of the processing (lifecycle, type of biometric data, types of data subject to processing, or the details, method of collection, storage, which according to the administrative file is carried out on the servers of the Clubs and SAD themselves), my client will also not be able to know the technical and organizational measures aimed at preserving the rights and freedoms of the data subjects, which will precisely act as counterweights to the risk that the processing may generate in such rights and freedoms.”

It adds that in ***PROCEDURE.1, ***CLUB.4 was sanctioned for not having carried out a DPIA, intending with the proposal that two successive DPIAs be carried out, “one by those who do not actually hold the status of controller and cannot know the necessary aspects for the realization of the processing, and another subsequent one by those who effectively hold that status and truly decide on the purposes and means of the processing.”

“The AEPD seeks to impose the obligation to carry out a DPIA, not on those involved in the phases of processing but:

- (i) to those who include it in an internal operating regulation, approved by the Higher Sports Council;
- (ii) to those who provide a technological solution available in the market for its implementation, even if they do not perform any operation “on” the data;
- (iii) to the processor; and
- (iv) to those who truly hold the status of controller, for carrying out those “operations performed on” personal data, as referred to in Article 4.2 of the GDPR.

Interestingly, only the body that addresses my client, urging them to inform the Clubs of the obligation to carry out this processing, would be excluded, that is, the CEVRXID (without the AEPD having to consider that my client considers it responsible for the processing, as LALIGA is not).”

5- “Violation of the principles of sanctioning law in the determination of the proposed sanction”

- “The LEAGUE starts from the premise that its activity is delegated by the competent Public Administrations in the field of sports; the logical consequence of this circumstance is that its activity, within the framework of the exercise of those delegated competencies, must be subject to what is established by the legislator for the administrative activity linked to the exercise of public law functions. Citing Article 83.7 of the GDPR and Article 77.2 of the LOPDGDD, it requests that the sanction should be a warning.” It cites the ruling of the National Court of 1/04/2011, appeal 323/2020 “when in relation to the processing carried out by the Sports Federations within the framework of the delegated competencies for organizing a sports competition, it states that: as indicated by the appellant, the Sports Federations exercise by delegation as a public administrative function not only the one corresponding to section f) of Article 33.1 (disciplinary power) but the entirety of the activities described in the aforementioned provision.

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-LA LNFP argues about the inadequate use of the concept of “company” as handled in the proposed resolution. It considers that the citation of Recital 150 of the GDPR, which applies the concept of “company” established in EU law regarding competition defense, can only be used as an interpretative criterion for its dispositive part. That is to say, “the content of the GDPR should not be interpreted in a way that differs from its wording solely on the basis of the content of one of its recitals, which cannot affect its dispositive content. Recitals lack binding legal value, as indicated by the CJEU in the

judgment of January 22, 2022 (Case C-165/20, ET and Federal Republic of Germany), which states: "55. Thus, according to the case law of the Court of Justice, the explanatory memorandum of a Union act does not have binding legal value and cannot be invoked either to establish exceptions to the provisions of the act in question or to interpret them in a manner that is manifestly contrary to their wording."

It cites the concepts of "company" and "group of companies" defined by Articles 4.18 and 4.19 of the GDPR and the text of Article 83.4, which contains the reference to "a company," which it considers distinct from the term "group of companies," and that "Recital 150 of the GDPR, in an interpretative sense, cannot be established as a term for the application of the upper limit reflected in Article 83.4 of the GDPR."

The LNFP states that "paragraphs 122 and following of the Guidelines 4/2022 of the European Data Protection Board, on the calculation of administrative fines contemplated in the GDPR overlook the existence of these two differentiated concepts in the GDPR, noting that 'in accordance with the established case law of the CJEU, the term company in Articles 101 and 102 of the TFEU may refer to a single economic unit (SEU), even if such economic unit is formed by several natural or legal persons,' adding that 'whether several entities form an SEU largely depends on whether the individual entity is free in its decision-making capacity or whether a principal entity, namely, the parent company, exerts decisive influence over the others. The criteria for determining this are based on the economic, legal, and organizational links between the parent company and its subsidiary, for example, the amount of the shareholding, personnel or organizational links, instructions, and the existence of business contracts,' applying in cases where 'a parent company owns 100% of the shares or almost 100% of the shares of a subsidiary that has infringed Article 83 of the GDPR and, therefore, can exert decisive influence over the behavior of its subsidiary' the presumption derived from the judgment of the Court of Justice of the EU of September 10, 2009 (Case C-97/08 P, Akzo Nobel and others/Commission)."

"Well, if one follows the interpretation contained in the Guidelines, which overlooks the existence of a differentiated concept of 'company' in the GDPR, one would be equating this concept with that of 'group of companies,' contained in the GDPR itself, given that it is the existence of control or influence that determines the application of Article 4.19 of the GDPR. That is to say, the interpretation made by the Guidelines overlooks that the concept of 'group of companies' in the GDPR is different from that of 'company,' being thus that it is the former and not the latter that would be linked with the application of Articles 101 and 102 of the Treaty on the Functioning of the European Union. In this way, the interpretation of the Guidelines is diametrically opposed to what is established in the GDPR, given that Article 83.4 of the same refers to 'company' and not to 'group of companies,' which is the concept that the AEPD intends to apply, solely and exclusively based on Recital 150 of the GDPR and on guidelines that, by their own definition and content, do not align with the provisions of the GDPR."

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lack normative value, and cannot imply an interpretative criterion contrary to the literal meaning of the GDPR."

"The articles 101 and 102 of the TFEU must be interpreted considering their placement in Chapter I of Title VII of the Treaty, within the rules governing competition in the Union, which implies that even in the denied case that what is indicated may not be considered sufficient and it is overlooked that the GDPR contains a specific concept of 'group of companies,' not referenced in Article 83.4 of the GDPR, the extensive application of the concept of 'company' for the purposes of competition law could only operate in cases where the allegedly infringing conduct, regarding which the amount of the sanction is sought to be determined, could lead to an alteration or distortion of competition."

It states that "the automatic application of Articles 101 and 102 of the TFEU, based solely on a recital of the GDPR and the Guidelines of the EDPB, is not a settled issue, as evidenced by the existence of a preliminary ruling procedure related to these concepts pending before the CJEU, case C-383/23,"

attaching a copy of the questions raised;

"The Vestre Landsret requests the Court of Justice of the European Union to respond to the following questions:

1. Should the term 'virksomhed' [(company, in the Spanish version)] as stated in Article 83, paragraphs 4 to 6, of the General Data Protection Regulation be interpreted as referring to a company, in the sense of Articles 101 TFEU and 102 TFEU, in relation to recital 150 of that same Regulation, and the case law of the Court of Justice of the European Union regarding Union competition law, in such a way that this term encompasses any entity that engages in an economic activity, regardless of its legal status and the manner in which it is financed?

2. In the event of an affirmative answer to the first preliminary question, should Article 83, paragraphs 4 to 6, of the General Data Protection Regulation be interpreted in the sense that, when a fine is imposed on a company, it is necessary to take into account the total annual global turnover of the group to which that company belongs or only the total annual global turnover of the company itself?"

The LNFP adds that it is not only a question of whether Articles 101 and 102 of the TFEU would be automatically applicable, but even whether in this case it would be appropriate to use the calculation basis that the AEPD intends to apply automatically in this case. It points out that the CJEU's doctrine of the clear act, judgment of 6/10/1982, case 283/81 (Cilfit doctrine) would be applicable, which relates to the obligation to submit a question to the Court when a question of Community law arises before it unless it has been established that the raised question is not pertinent or that the Community provision has already been interpreted by the CJEU or that the correct application of Community law is so evident that it leaves no room for reasonable doubt. "According to the doctrine of the 'clear act,' the fact that a preliminary question has been raised before the Court implies, at least, that there is an interpretative doubt regarding the raised issue, on which there is no pronouncement from the Court." It considers that since such clarification of the scope of Article 83.4 of the GDPR is pending, based on the application of the principles of criminal law to the sanctioning procedure by

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In accordance with the most favorable norm, the thesis of the amount provided in the resolution proposal shall not apply.

- On the other hand, the proposal has not sufficiently assessed the function and income structure of LALIGA, limiting itself to a mere mathematical calculation that is decontextualized from the nature and organization of said entity. Therefore, "as just stated, the income that should be computed is that corresponding to the LNFP, because the entire structure revolves around this premise for the management of audiovisual rights that stem from the framework of Royal Decree Law 5/2015 of April 30, in which the condition of a marketing entity was imposed on the League without freedom of form, in its capacity for direct exploitation.

A) The legal configuration of the rights that arise from legal regulations and their differentiation from those arising from initiative and economic management.

"The fundamental thesis maintained is that the rights of commercial exploitation are not the result of an economic activity freely carried out by LALIGA, but rather are the result of a management mandate established by RDL 5/2015 to those it considers as marketing entities for the competitions that fall within its scope of application.

As a consequence of this differentiation, the structure of LIGA and its accounting reflection clearly indicate the income and operations that arise from the mandate and those that occur as a result of the organization and commercial exploitation activity of the competition."

It points out that to understand the concept, it is necessary to refer to Article 2.1, which attributes the ownership of the audiovisual rights included within the scope of the Law to the Clubs or entities participating in the corresponding competition, and Article 2.2, which states that "participation in an official state-level football competition will necessarily entail the transfer by its holders to the organizing entity of the powers of joint commercialization of the audiovisual rights."

It states that the LNFP acts as "a manager of third-party resources, resulting from a legal mandate, for the fulfillment of a legally established mission (joint commercialization of audiovisual rights) and with a direct impact of its own activity that is subject to a regulatory framework that does not make it the

owner or a voluntary manager of the rights, but rather an entity obliged to manage third-party rights."

- Article 5 provides for the legal predetermination of rights and distribution rules, indicating:

1. The income obtained from the joint exploitation and commercialization of the audiovisual rights of the National League Championship shall be distributed among the Clubs and entities participating in the First and Second Divisions according to the criteria established in this article.

2. 90% of the income shall be allocated to the Clubs and entities participating in the First Division of the National League Championship and the remaining 10% to the Clubs and entities of the Second Division.

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3. The National Professional Football League will distribute the amounts corresponding to each category according to the criteria agreed upon, while respecting, in any case, the following rules and limits:

a) A percentage will be distributed among the participants of each category equally. The amount to be distributed will be 50 percent in the First Division and at least 70 percent in the Second Division.

b) The remaining amount, after deducting the allocation indicated in item a), will be distributed among the Clubs and entities of each category variably. Each half of this amount will be distributed according to each of the following criteria.

• Art. 6.1.- Establishment of a mandatory personal contribution in the field of commercialization, which is articulated in a set of obligations imposed on LALIGA (as on no other market operator) and which entails the obligation to deduct before the distribution – in the name and on behalf of each Club or SAD – the following amounts and deposit them into the respective beneficiaries. Thus, it is indicated that: In order to improve the promotion and functioning of the competition and contribute to the promotion of sport in general, each of the Clubs and entities participating in the National League Championship, in any of its categories, must annually comply with the following obligations, in proportion to the income they obtain from the joint commercialization of audiovisual rights:

a) 2.5 percent will be allocated to finance a Compensation Fund from which sports entities that, competing in professional football, are relegated will benefit. 90 percent of this amount will be allocated to teams relegated from the First Division, and the remaining 10 percent to those relegated from the Second Division.

b) 1 percent will be delivered to the National Professional Football League, which will allocate it exclusively to the promotion of the professional competition in national and international markets.

c) 2 percent will be delivered to the Royal Spanish Football Federation, as a solidarity contribution to the development of amateur football and federative infrastructures, as well as to improve the competitiveness of non-professional categories. This amount may be increased within the framework of the agreement referred to in Article 28 of Royal Decree 1835/1991, of December 20, on Spanish Sports Federations and the Registration of Sports Associations. Of this 2 percent, 50 percent will be allocated to territorial federations, based on the number of licenses, for the purposes and according to the distribution criteria that the Government determines by regulation. The remaining 50 percent will be applied to the activities of the Royal Spanish Football Federation for the promotion and development of the Spanish national football teams in all specialties, the promotion of amateur football, and the provision of necessary infrastructures, in the terms established by regulation.

d) Up to 1 percent will be delivered to the Higher Sports Council, which will allocate it to finance, in the amount and terms established by regulation, the costs of public social protection systems corresponding to workers who are considered high-level athletes and for whom sport constitutes their main activity and, where applicable, special agreements that allow their inclusion in the Special Regime for Self-Employed Workers. Likewise, it may be allocated to finance aid for athletes participating in international competitions.

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e) Up to 0.5 percent will be delivered to the Higher Sports Council, which will allocate it, in the amount and terms established by regulation, to the following purposes, in order of preference:

1. Aid to entities participating in the Women's First Division of Football to finance the payment of the employer's contributions corresponding to the hiring of athletes and coaches included in the General Social Security Scheme, as well as to the athletes and coaches to finance the payment of the worker's contributions.
2. Aid to entities participating in the Second Division B of the National League Championship to finance the payment of the employer's contributions corresponding to the hiring of athletes and coaches included in the General Social Security Scheme, as well as to the athletes and coaches to finance the payment of the worker's contributions.
3. Aid to associations or unions of football players, referees, coaches, and physical trainers, based on the number of licenses held by each in the national categories. When there are several associations or unions within the same collective, the amounts will be assigned based on their accredited representativeness.

The Higher Sports Council may enter into agreements with these associations so that the resources obtained are used to facilitate the integration into the labor market of these athletes when they finish their dedication to football, as well as to finance their operating expenses.

f) 1.5% will be delivered to the Higher Sports Council, which will allocate it to the promotion, encouragement, and dissemination of federated, Olympic, and Paralympic sports, as well as to the internationalization of Spanish sports.

To this end, a foundation may be established, with the participation of the Higher Sports Council, the Royal Spanish Football Federation, the Professional Football League ("LaLiga"), and the other Spanish sports federations and official and unofficial competitions, to which the achievement of the objectives set forth in the previous paragraph will be entrusted.

LALIGA manages compliance with the aforementioned obligation through the deduction of the amounts that legally correspond to be contributed by the Clubs and SAD in a function clearly aimed at ensuring compliance with legal obligations, and this is prior to any individual benefit.

From this scheme, its business volume, in terms of actual commercial activity, is the net business volume generated for the operation of the competition by its own initiative and economic and organizational capacity, excluding those cases in which it manages—by legal obligation—the rights of third parties who are, moreover, their direct and real beneficiaries. This assertion is clearly incorporated into the legal and organizational scheme of LALIGA.

Therefore, LALIGA's actions regarding the commercialization of audiovisual rights are merely as a manager of these assets of the Clubs and SAD and as a guarantor of the public contribution whose conception is established by legal norms, and should not be considered for the calculation of such infringement amounts.

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At this point, it should be noted the Explanatory Memorandum of RDL 5/2015 when, referring to the model, it undoubtedly grounds it in the general interest in the following terms:

"In principle, the existence of inefficiencies in a market for goods and services constitutes a strictly private matter, the solution of which falls to the agents operating within it. Any public intervention must be exceptional and justified by superior reasons of general interest.

In the case of the market for audiovisual rights of professional football competitions, there are three reasons that legitimize the urgent intervention of the Government: on one hand, the indisputable social relevance of professional sports; secondly, the repeated and unanimous demand for such intervention from all affected sectors; and finally, the need to promote competition in the pay television market by

acting on one of its essential assets. The social relevance of professional sports in Spain and, specifically, of football, constitutes evidence that is reflected in...”

“That is to say, the legislator considers that the manner of marketing audiovisual rights of football requires regulation since this marketing involves an unavoidable reference of general interest because the regulatory position of football encompasses additional elements beyond the mere marketing activity, linked to the financing of other modalities, interests, and circumstances that the legislator appreciates and that constitute the mandatory personal benefits we referred to earlier.

From there, the legislator's decision is to regulate the mode of exploitation both in its ownership, marketing, and, in general, in the central elements such as the distribution of what is marketed and the obligations of public interest. This regulation is of a high level because it not only determines ex lege the marketer but explicitly determines the manner of distribution of the rights and the encumbrances thereof, making the marketer directly responsible for compliance with the legal model and the fulfillment of obligations.

Therefore, it is considered that the concept of turnover contained in the sanctioning regulation must respond to a specific criterion of the activity and the conditions of exercise of the activity that correspond to LALIGA. LALIGA, in relation to the marketing of rights, is a legally constituted agent, which acts – with the utmost diligence it knows and can resolve – in the terms imposed by law, which disposes of the business by legal imperative and, therefore, operates as a manager of businesses and interests determined by the legislator. It is the law that establishes the ownership scheme because it effectively configures an unavoidable individual right of collective management, which determines who is responsible for marketing, the terms of the same in the encumbrance and final distribution, and the responsibility for the collection of a set of public obligations. Therefore, in attending to the criterion followed by the AEPD when determining the amount of the proposed sanction, a good example of its disproportion is that it could somehow be said that the sanction affects all members of LALIGA, individually, by detracting amounts from revenues derived from their audiovisual rights completely unrelated to the object of the file and which will necessarily be impacted by it.

B) The reflection of the scheme outlined in the economic information of LA LIGA and the consolidated Group

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Taking into account the fundamental thesis posed, which is that whatever the analysis, the revenue generated by the marketing of audiovisual rights must be excluded from the eventual computation of the sanction, we now need to analyze the two possible scenarios in which this assertion is reflected.

a)

LA LIGA and its revenues

These are mentioned in note 26 of the individual annual accounts of the League corresponding to the year 22/23. Specifically, this information in line with what has been indicated can be found on pages 104 and 105 of the CCAA LA LIGA T 22-23.

In a more detailed manner:

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The data shows that the League, as the manager of the audiovisual rights of the Clubs and SAD that are part of it, is individualized and corresponds to €1,824,764,000. However, considering that they do not correspond to a business activity of their own but rather a delegated one, we find that the League lacks a net turnover figure and its result for the year would be equal to zero as can be verified in note 26 of the individual annual accounts of the League reproduced above.

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The argument should not seem strange because the League is a non-profit entity that, regarding the exploitation of audiovisual rights, operates ex lege managing third-party interests which must be excluded for these purposes. In any case, for the determination of income in the League from the activity of organizing the competition, the "OTHER OPERATING INCOME" could be taken into consideration, which, although not a core activity, being a non-profit entity and not part of the net amount of turnover, is generated in the development of its activity. Therefore, the amount of 50,928,000 euros should be considered as income in the League. The preceding table reflects note 26, segmented information from the "Annual Accounts Report for the year ended 30/06/2023, expressed in thousands of euros," detailing 47,742,000 euros in "accessory income and other current management expenses," and 3,186,000 euros in betting pools.

b)

Projection on the Consolidated Group LA LIGA

"Notwithstanding the above and only accepting for purely dialectical purposes the approach made in the Proposal for Resolution, in the unfounded case that the sanction is to be extrapolated to the entirety of the activities carried out by the consolidated group LALIGA, which would be contrary to law and totally disproportionate, reference should be made to note 29 of the segmented information of the annual accounts of LALIGA and its dependent companies for T.23-24 (Audit report of annual accounts as of 30/06/2024, which is available on the LIGA website) where one can see what the turnover was for T.23-24 and T.22-23. In the Annual Accounts for the 2023-2024 Season, the figures for the 2022-2023 Season have been re-expressed due to the definitive closure of the sale of the technological activity of the LALIGA Group, whose data were provisional at the end of the previous fiscal year. For this reason, the most updated information regarding the 2022-2023 Season is found in the Annual Accounts corresponding to the 2023-2024 Season.

The financial information of that note breaks down 4 different activities within the LALIGA Group:

1. Licenses and Sponsorships and other similar items
2. Marketing Audiovisual Rights
3. Provision of maintenance services for sports venues
4. Intra-group operations and other activities

According to the references made regarding the concept of a company, the data of the LALIGA Group for the 2022-2023 season:

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From this group of income, there are three items that are certainly a consequence of the commercial activity carried out by the LALIGA Group. They are:

- Licenses and Sponsorships and other similar items.
- Provision of maintenance services for sports venues.
- Intra-group operations and other activities.

In contrast, the item corresponding to the marketing of audiovisual rights has a different nature because it is the law that determines its ownership, purpose, distribution, and therefore, the impossibility of it being part of the financial content of a structure where, moreover, LALIGA acts as a manager of third-party businesses.

In the 2022-2023 season, the segmented information is as follows:

(the table of the financial information of the Group broken down by operational segments for the

season ending 30/06/2023 is shown, page of the audit report)

Therefore, even in the event that the consideration of a company went beyond where it legally and reasonably should, the amount of 1,824,764,000 € corresponding to the audiovisual rights should, in any case, be excluded from the computation because, as we insist, it is a legal mandate of a third-party activity.

This exclusion must operate whether considering only the LALIGA entity or projecting it onto the activity of the group. Our central consideration, in line with what is stated in the first section of this allegation, is that this figure must refer to the actual activity, which corresponds to the activity of LALIGA. Nevertheless, two approaches are presented that stem from the same premise but are projected differentially depending on the incorporation or not of the consolidated group concept.

b)

Overall Considerations

"We are not faced with an economic concept identical to any other generated as a consequence of the initiative and the will of the parties."

In summary:

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1. The ownership of audiovisual rights within the framework of professional competition is established, defined, and shaped by the legislator.
2. In this framework of public delimitation of the right, RDL 5/2015 assigns the status of marketer to LALIGA. This assignment is mandatory for LALIGA as a consequence of its own regulatory position and its role as a collaborator in the management and organization of a competition that, obviously, makes audiovisual rights a fundamental pillar. However, it is true that this status as an essential pillar does not distort its anchoring, which occurs in the entity that, previously and according to sports legislation, holds the status of organizer by virtue of the recognition made by the C.S.D. when creating the respective professional league.
3. The norm does not expressly indicate it, but the commercialization is carried out in accordance with the best known practices and always, of course, for the benefit of the holders of the commercialization, who are undoubtedly the Clubs and SAD, but also the entire set of beneficiaries of activities of general interest that RDL 5/2015 considers worthy of diminishing the revenue of their true holders to fulfill a public purpose.
4. The inclusion of this activity in the infringement or as a criterion for its graduation is therefore manifestly inappropriate because the activity is carried out within the framework and under the terms of a legal obligation. It is not the result of a voluntary or available economic activity but of a legal framework in which LALIGA's position is that of one more of the elements that configure the management and legal ordering of the audiovisual rights of the Clubs and SAD. Therefore, it is reasonable to consider that the turnover refers to LALIGA's activity, which leads us, on one hand, to a turnover of zero if only LALIGA - a legally recognized entity - is considered, or to 50,928,000 euros in the 2022-2023 Season, if other operating income generated in the development of its activity (different from audiovisual) is considered, and on the other hand, to a volume of 169,918,000 euros in the 2022-2023 Season, if the consolidated Group is considered but again deducting the rights arising from audiovisual commercialization.
5. In any case, what would be clearly inadmissible is that the turnover figure does not deduct the amount that LALIGA collects for public entities, the C.S.D. itself, and the RFEF because it would be including an activity that is essentially public and whose beneficiaries are specified in the law itself. Considering these statements and to demonstrate the distortion that not recognizing the structure of the income and the group itself entails, we could say that the proposed figure is, in fact, 19.63% of the turnover of the 22-23 Season in LALIGA, and 5.9% of the activity volume in the 2022-2023 Season in the LALIGA Group.

"The percentage of the actual turnover of my client represented by the aforementioned sanction

reaches 19.63% concerning LALIGA or 6% of the mentioned figure concerning the LALIGA Group (when the reference term contained in Article 83.4 of the RGPD is a maximum of 2%), my client also considers it necessary to highlight the complete impropriety with which it is intended to aggravate the conduct of my client in this case."

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- Regarding the inadequate application by the proposal of the criteria for the graduation of the sanction and the violation of the principle of culpability, it states that, with the supposed aggravating factors applicable, in the Legal Basis VII, leads, in the opinion of the AEPD, to the imposition of a sanction of 10,000,000 euros, which doubles the maximum individual sanction imposed by the aforementioned Agency to date.

"It is necessary to take into account that the aggravation that is intended to be imposed, both by reference to Article 83.2 a) of the GDPR and to its Article 83.2 b), is based solely and exclusively on the elements that the AEPD has taken to consider the infringing conduct attributable to my represented party, something that is again flatly denied. That is to say, the AEPD considers the lack of carrying out a DPIA by my represented party as an aggravating factor of the alleged infringement, the fact that a DPIA has not been carried out. Such integration of the type as an aggravating factor is contrary to the most elementary principles that govern our law, and in any regulation of any country minimally respectful of the rights of a defendant, the administrative sanctioning law."

The first two paragraphs dedicated by the Proposal for Resolution to the aggravation of the sanction due to the nature, severity, and duration of the infringement are reproduced in which "it is intended to replace the vague and generic references contained in the Initiation Agreement with apparently concrete references to the conduct itself and not to the concurrence of elements that could aggravate the sanctioning reproach.

"It is limited to indicating in the Proposal that "[s]he is also considered, that the LNFP due to the development of its activity that depends on the public of the Clubs and SAD that are framed within it and to whom it directs the use of the system, is presumed to have a professionalism in the use and habitual handling of personal data, at least not to be unaware of the special requirements, and its conduct denotes a serious lack of diligence in the commission of the infringement, so these factors would operate as aggravating," which implies that in this case the culpability element of the infringement is present.

However, as has been analyzed throughout these allegations, the professionalism invoked by LALIGA cannot imply that by it could be considered contained in the norm axioms so far removed from any interpretation of it as that (i) the mere ideation of a processing is considered as such according to the definition established in Article 4.2 of the GDPR; (ii) someone who has no relationship of any kind with the personal data that could be subject to processing or with the interested parties to whom they refer has the capacity to decide on their means and purposes; or (iii) that the provision by an associative entity to its members of a technological solution that allows them to carry out a processing, being entirely free for those members to make use of such a solution or not, implies a data processing and makes the association responsible for the processing carried out by its members with that tool.

Because even in the again denied assumption that what is indicated in the Proposal could be considered (quod non) covered by data protection regulations, the obvious fact is that my client acted driven by the trust that a straight and reasonable interpretation of that regulation generated in it.

And the result leads to the conclusion of the existence of a legal error or prohibition in the conduct of my client that must exempt the concurrence of responsibility, necessarily required by Article 28.1 of the LRJSP for the sanctioning reproach to be imposed on my client.

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And if it could be appreciated that there exists the aforementioned error of law or prohibition in the conduct of LALIGA (in the denied assumption that it was not in accordance with the law), it is evident that in no way can one appreciate the concurrence in LALIGA of either negligence or, much less, the intentionality that seems to be intended to be applied from that, so that in the absence of fraud or negligence, even if it were considered that my client is obliged to carry out a DPIA (which is not the case), the present sanctioning file should be archived.

PROVEN FACTS

FIRST:

On the dates of entry into this AEPD of 04/11/2022 and 22/03/2023, two complainants reported the establishment of access controls for spectators to football stadiums through biometric systems by the National Professional Football League (LNFP) at the ***STADIUM.1 of the ***CLUB.1, providing a news article dated 22/05/2022 in the second complaint, and the adoption of an agreement by the Higher Sports Council (C.S.D.) for such access to the "animation stands" of the first and second division football clubs' stadiums. On 02/01/2023, the Director of the AEPD agreed to initiate preliminary investigation proceedings AI/00444/2022.

SECOND:

The LNFP on 10/03/2023, in preliminary investigation proceedings, informed that the Regulation on the Sale of Season Tickets and Tickets (RVAE) included as BOOK XII (sale of season tickets and tickets) in the General Regulation of the Professional Football League (RGLNFP) was approved by the C.S.D. on 23/12/2015, in accordance with the powers attributed to it by Article 10.2.b) of Law 10/1990 of 15/10, on Sports. The background of the facts states that this approval was requested by the LNFP, following the processing of its approval in its GENERAL ASSEMBLY of the LNFP, as provided in Article 11.b) of the Social Statutes of the LNFP.

-Article XII.1 of the RGLNFP "conditions for the sale of season tickets," as a uniform criterion applicable to all affiliated Clubs/SAD, establishes that the sale of season tickets to individuals "will be carried out with the prior and proper identification of the purchasers," providing at the time of acquisition at least the personal data that will be subject to processing: identification data: name and surname and identity document, contact data: address for notification purposes, contact telephone number, and email address, and recommends in case of establishing a no-transfer policy for season tickets, "to request and include in the season ticket a photograph of its holder."

On the other hand, the "animation stand" is defined in Article XII.2 of the RGLNFP as:

"the sector or area of the stands of the sports venue defined as such by the Club/SAD itself or ex officio by LA LIGA, and that meets the following requirements:

- It is exclusively intended for regular local season ticket holders,
- It is sectorized, differentiated from the rest of the capacity, with preferably exclusive access to the sector, area, or stand, and,
- It has a biometric recognition access system installed.

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For the animation stand, a specific regime is established, specifically for the season tickets for the spaces located in the "animation stand" (a space differentiated from the rest of the sectors of the stadium, dedicated to the animation and support of the local team). This is indicated in the same RGLNFP, Article XII.2 "conditions for the sale of season tickets in animation stands," which requires for its sale that the fan provides a) in addition to the data required for all season tickets, as stated in Article XII.1 of the RGLNFP, b) "THAT BIOMETRIC DATA that is determined," c) "the consent of the interested party must be obtained, clearly informing them of the specific purposes for the processing of the aforementioned personal data," paragraph "4. Access to the animation stands will only be permitted to fans who have obtained the access title to that area and who, at the time of entry, submit

to the reading of their biometric data," and paragraph "6. Any other access system to this area that does not involve biometric recognition will be exceptional and occasional and will require, if applicable, the Club/SAD to have a procedure that allows the identification of all those who access outside of biometric control. The Club/SAD must send this procedure, at the beginning of the operation of the system, to the Integrity and Security Directorate of the LIGA for their knowledge and validation."

THIRD:

The LNFP informed this AEPD, on 27/07/2023, in its second response to information in preliminary investigation proceedings that, with data valid for the 2022/2023 season, there were NINE CLUBS (out of 20) IN FIRST DIVISION AND NINE CLUBS (out of 21) IN SECOND DIVISION, that used biometric systems for access to their animation stands, all using fingerprint systems, except for one Club, both in first and second division that then used THE FACIAL RECOGNITION SYSTEM, although the first division Club uses it for the entire stadium, while the second division Club only uses it for the animation stand, providing an Excel table with this information.

Furthermore, in the table sent, the initial implementation of such systems is noted in the 2015/2016 season (three Clubs) with successive incorporations in each season, the latest being from the 2022/2023 season with three more Clubs, completing the table that the LNFP provided on 27/07/2023 in response to the preliminary investigation proceedings mentioned in FACT FOUR (4.1.1) of the background of this resolution. Thus, it is deduced that there were Clubs that did not implement such systems or did not have animation stands. In any case, the CERVIXD reported on 21/07/2023 in preliminary investigation proceedings that no proceedings have been initiated against the Clubs or the SADs due to the non-implementation of access control systems based on biometrics to the first or second division stadiums, in the animation stands. In all cases, as an alternative system implemented for access to the stadiums, "hand scanners" to read digital season tickets or "barcode scanners" for tickets are noted. There is also another column that provides information on the reason for using alternative systems, stating "voluntariness" in all cases.

FOURTH:

According to what CERVIXD states in its response of 28/03/2023 in preliminary investigation proceedings, fact THIRD, 3.2.1 of "background," on 3/03/2022, it adopted an agreement in which the SAME content of the RGLNFP regarding the requirements for acquiring season tickets for the animation stands is reproduced. The same document of 3/03/2022 from the aforementioned Commission refers to the LIGA in its allegations to the initiation agreement, FACT EIGHT 3) of "background" as part of Circular 34 of the 21-22 season, was

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sent by the LNFP to the Clubs on 25/04/2022, conveying the aforementioned agreement of the CERVIXD.

The CERVIXD requested on 20/10/2022 that the AEPD provide information regarding the compliance with data protection regulations for access control using biometric identification for the stands of animation. On 22/12/2022, the AEPD issued a response, which is partially reproduced in FACT THREE, 3.2.1 of the background of this resolution, and was submitted by the C.S.D.

On 13/03/2023, following the receipt of said report, the CERVIXD agreed (as recorded in FACT THREE, 3.2.1) of the background of this resolution to send a letter to the LNFP urging its associates to comply with the measure that coincided with that contained in the RGLNFP regarding access to the stands of animation using biometric means, UNDER PENALTY OF SANCTION for those who failed to comply with the measure.

The LNFP issued Circular 19, season 22/23 on 23/03/2023, conveying to the Clubs and associated SAD the communication from the CERVIXD, which essentially states: "According to the aforementioned agreement, access to the stands of animation through biometric data may be maintained, provided that there is free consent from the interested party, after being informed of the specific purposes for the processing of personal data. In the absence of consent from the interested

parties, the CEVRIXD reminds that spectators in these stands will not be exempt from undergoing all identity verification controls that are in force at any given time and, for this purpose, it is mandatory that the Club or SAD has a procedure that allows them to identify them. This procedure must also be communicated to the Integrity and Security Directorate of La Liga for their knowledge and validation at the email address seguridad@laliga.es."

In the information provided by the LNFP regarding the use of biometric systems by the Clubs, it was also indicated that after the LNFP Circular number 19, a total of five Clubs in the two divisions ceased to use biometric systems.

FIFTH:

The LNFP responded on 27/07/2023, in the second request for information in preliminary investigation proceedings, as noted in FACT four- 4.1./4.1.4 of the background of this resolution that its subsidiary SOCIEDAD ESPAÑOLA DE FÚTBOL PROFESIONAL SAU-SEFPSA provides the Clubs that request it with various types of entry turnstiles for sports venues, which can be activated with those using fingerprint recognition systems, scanning of the subscription document or a ticket, or RFID.

It added that:

- of all the Clubs associated with the LIGA, it is the entity that has provided them with the necessary devices for biometric access (Clubs, which likewise use alternative means to biometrics for access), except for three of them that use their own systems. The LIGA provides the technical report of the system used by the associated Clubs and SAD that utilize the technological platform - ***DEVICE.1 - to implement access control through biometric data in document 122.

Regarding the same, it is indicated that "when user enrollment occurs, the following data is registered on the platform: DNI, 'IdPersona' ('Unique field of the person to be enrolled'), (...), name and two surnames."

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- Declares that the alternative means to the use of the biometric system that the Clubs have to identify spectators in accordance with the provisions of Article 13.2 of Law 19/2007, for the animation stand, as an additional measure, is the on-site display of the DNI or identification document.

SIXTH:

The SEFPSA stated in prior investigative proceedings on 15/09/2023 (as noted in FACT FOUR, 4.3) of the background of this resolution that it is the provider of the technology system (software and hardware: access turnstiles and servers) for biometric identification in access control to football stadiums, being used by SEVEN first division teams and EIGHT second division teams, solely for access to the animation stands. Furthermore, it stated that it does not access any personal data stored in these systems under any circumstances, and does not hold the legal status of data controller or processor as it only supplies the technology.

SEFPSA indicates that the comparison of the read pattern with the stored one occurs in a reader installed in the access turnstile that generates an encrypted biometric vector of the fingerprint of the individual attempting to access the stadium at that moment. Once the vector is generated, the control electronics of the reader installed in the turnstile communicates it to the (...) - located in the Club's facilities, to which only the Club has access, where all the biometric vectors provided by the Club for comparison would be stored, through a load of all the biometric vectors previously supplied by the subscribers. It acknowledges that a comparison process occurs consisting of a biometric identification 1 to N. In the (...), the correspondence of the data from the Club's attendance management server – (...) – with the biometric vector generated at the turnstile is also verified in order to obtain a response that can be either unrecognized or access token, the latter facilitating access by activating the turnstile. SEFPSA also informed that the data of the individuals using biometric identification would be stored in the (...), including their name, surname, DNI, person ID (random identifier to avoid duplicate access to the stadiums), and the biometric vector resulting from the subscriber registration process, and that the pattern comparison process does not generate any new personal data.

SEVENTH:

The LNFP made the processing means available to Clubs/SAD, on a voluntary basis, through its group subsidiary, SEFPSA (whose parent is the LNFP) specialized in providing maintenance services for security systems and infrastructures in the stadiums, infrastructures of the Clubs that the Sports Law assigns to the LNFP.

Article 47 of the LNFP Statutes establishes as functions of SEFPSA the "execution of works to adapt facilities to safety standards and prevention of violence."

Article 2 of the social statutes of SEFPSA aims to achieve social objectives in activities including, among others:

- "computer science applied to sports, through the creation, production, marketing and/or representation of any kind of informative products, whether machinery, accessories or programs, their installation, operation, advice or sale,

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- Security of the sports, commercial, and administrative facilities of sports public limited companies or sports clubs, through the installation of all kinds of security systems in them, including the execution of necessary projects and civil works for their installation, and the maintenance of the facilities carried out."

According to the Annual Accounts Report for the fiscal year ending 30/06/2023, which mentions the LIGA and is available on its website, it is stated that "The Spanish Professional Football Society, S.A.U. has continued to provide the Clubs/SAD associated with the LNFP with preventive, corrective, and evolutionary maintenance services in the sports facilities where the competition matches are held in order to comply with the requirements of the Regulation on the prevention of violence, racism, xenophobia, and intolerance in sports."

EIGHTH:

Requested by the Data Inspection Service in the preliminary investigation phase of the LNFP, which provided the analysis of the necessity and proportionality of biometric treatment at the entrances to the stands of support in first and second division football stadiums, on 10/03/2023 it responded that it does not hold any responsibility for the treatment or as a processor of the same, nor any role on behalf or for the Clubs that are part of the LIGA, and that it is not responsible for carrying out such analysis. It also indicated that it does not participate in such treatment.

NINTH:

By Order 310/2024 of the National Court, contentious-administrative chamber, section 1, dated 02/04/2024, appeal 155/2024, regarding a separate piece of precautionary measures requested by the LNFP, it was resolved that there was no basis for the suspension of the provisional measure imposed in the initiation agreement.

TENTH:

By letter from the LNFP following the initiation agreement, dated 21/05/2024, it has been informed that the CEVRIXD agreed in a meeting on 30/04/2024 to suspend the application of its agreement of 30/03/2023, which was communicated by the LNFP to its associates on 13/05/2024.

ELEVENTH:

Article 1 of the Social Statutes of the LNFP establishes that it is a Sports Association that, in accordance with the provisions of articles 12 and 41 of Law 10/1990, of 15/10, on Sports (in force as of the approval of the RGLNFP), "is exclusively and mandatorily composed of all Sports Public Limited Companies and Clubs participating in official football competitions of a state scope and professional nature, and which is legally responsible for the organization of such competitions, in coordination with the Royal Spanish Football Federation."

"It has its own legal personality and full capacity to act for the fulfillment of its purposes and enjoys

autonomy for its internal organization and functioning concerning the Royal Spanish Football Federation of which it is a part."

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Furthermore, Article 4 of its Social Statutes indicates regarding its duration and nature that "The League is established for an indefinite period and is non-profit."

Its functions are contained in Article 3 of the Statutes of the LNFP, from which only those that may relate to the complaint are highlighted:

"1.- The functions and competencies of The League, by virtue of the provisions of the Sports Law and its development provisions, are as follows:

a) To organize, in coordination with the Royal Spanish Football Federation and in accordance with the criteria that, in exclusive guarantee of national or international commitments, may be established by the Higher Sports Council, the official professional football competitions of a state nature."

...

2.- The functions and competencies of The League are as follows:

...

"e) To approve rules regarding the format, issuance, sale, and supply of access tickets to the sports stadiums of its member Societies and Clubs, as well as any other issues related to ticketing."

...

"l) To determine the conditions that must be met by the sports facilities of the stadiums for the celebration of professional competitions, safety regulations, access control, as well as any others that may be established."

Article 60 of the Statutes of the LNFP states: "obligations of the affiliates to LA LIGA":

"5.- To comply with the recommendations and instructions that, in matters of violence prevention, the LIGA issues, under Title IX of Law 10/1990, on Sports and its development provisions." (Title IX was repealed by the single repeal provision of Law 19/2007 of 11/07)

"13.- To have installed the access control indicated by the LIGA, which must be basically the same for all its members, providing the information required regarding access, the use of unified ticketing, its control by the same, and the management of computerized ticket sales."

TWELFTH:

The audit report of the annual accounts for the fiscal year ending 30/06/2023 is an audit "To the associates of the LNFP," a sports association that was established in 1984.

It highlights that LaLiga Group International SL depends on the Association (LNFP).

In note 1 "general information," it indicates the entities of which the LIGA is the dominant entity, "all of which are legally dependent either directly or indirectly," counting eight entities.

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Entities in which La Liga has an indirect joint participation through La LIGA GROUP International SL (two) and six entities in which it holds an indirect minority participation through LNFP Group International, S.L. are also cited.

<https://www.laliga.com/es-GB/transparencia/gestion-economica/cuentas-anuales>

DÉCIMO TERCERO:

In the report obtained from the AXESOR tool, dated 22/09/2023, it is noted that the LNFP has the LIGA Nacional DE FÚTBOL PROFESIONAL, G78069762 listed as a "global parent company" with participation in the capital of various companies.

As a result of the LNFP's reference to its annual audit reports available on its website, the balance as of 30/06/2023 is presented. In the aforementioned report, it is stated that:

- LALIGA GROUP INTERNATIONAL SL is dependent on the Association (LNFP). In note 1, "general information," the entities of which La Liga is the dominant entity are indicated, "all of which are legally dependent either directly or indirectly," totaling EIGHT entities. The entities in which LA LIGA has an indirect joint participation through La LIGA GROUP INTERNATIONAL SL (two) and SIX entities in which it holds an indirect minority participation through LNFP GROUP INTERNATIONAL, S.L. are also cited.

- The consolidated group of La Liga reports €1,824,764,000 in revenue at the close of the 22/23 season from the commercialization of audiovisual rights (note 26 of the audit report). By application of the regime established in Royal Decree-Law 5/2015, of 30/04, on urgent measures regarding the commercialization of the exploitation rights of audiovisual content from professional football competitions, these are not taken into account for the dynamic limit of the maximum total annual business volume.

FUNDAMENTOS DE DERECHO

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Legal regime for the sale of season tickets and tickets to stadiums - Relationship with access to sports venues. Statute of the LNFP.

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2.1. Legal Regime of the Sale of Season Tickets and Tickets to Stadiums - Relationship with Access to Sports Venues.

The legal regime regarding the sale of tickets and access of spectators to sports facilities where official sports competitions are held is primarily regulated by Law 19/2007 of 11/07 against violence, racism, xenophobia, and intolerance in sports (Anti-Violence Law). One of the objectives of the Law, as stated in article b), is to "maintain public safety and order at sports events during the celebration of competitions and sports shows."

The CEVRXID was created under Law 10/90, of 15/10, on Sports, articles 60 to 69, whose Title IX was titled: "Prevention of Violence in Sports Events" and is a collegiate body responsible for formulating and implementing active policies against violence, intolerance, and the avoidance of racist, xenophobic, and LGTBIfobic practices in sports."

Article 3 of the Anti-Violence Law indicates as a general principle:

"1. In general, the organizers of competitions and sports events must adopt appropriate measures to prevent the conduct described in sections one and two of article 2, as well as to ensure compliance by spectators with the conditions of access and permanence in the venue established in Chapter Two of this title."

2. It is particularly the responsibility of the organizers of competitions and sports events:

a) To adopt the security measures established in this Law and its implementing provisions.

b) To ensure respect for the obligations of spectators regarding access and permanence in the venue, through appropriate control instruments.

Thus, on one hand, the purely sports organization of competitions is entrusted to the League, which does not organize these sports events held in the sports facilities where they take place, hence the

terminological differentiation between the two terms: organizer of competitions, organizer of sports events.

Regarding the relationship with the sale of tickets and access by spectators to the stadiums, the Anti-Violence Law transfers to the organizers of competitions and to the organizers of sports events the appropriate measures to prevent prohibited conduct, as well as to ensure compliance by spectators with the conditions of access and permanence in the venue through appropriate control instruments in safeguarding public order and safety.

Article 6.2.a) of the Anti-Violence Law establishes the subjection of spectators to relevant controls for verification of access conditions to the venue, and in particular its paragraph 2.b), their obligation to submit to personal searches to verify that they do not carry weapons or other prohibited objects or display prohibited symbols or banners. To this end, they are also specifically obliged to “be recorded by closed-circuit television in the vicinity of the sports venue, at its access points, and inside the venue” (art 6.2.a).

Article 7 of the Anti-Violence Law establishes the conditions for spectators' permanence in the venue: “1.g) To observe the security conditions duly provided for and those that are determined by regulation. In its point 2:

“b) To occupy the seats of the class and place corresponding to the access title they hold, as well as to show said title at the request of the Security Forces and any employee or collaborator of the organizer. a) To comply with the internal regulations of the sports venue.”

Article 11: “Control and Management of Access and Ticket Sales,” states:

“1. All sports venues where state-level professional competitions are held must include a computerized system for controlling and managing ticket sales, as well as access to the venue...”

Article 12 of the aforementioned Law indicates:

“1. Given the inherent risk of the sporting event in question, the governmental authority is empowered to impose the following measures on the organizers:

“b) To install cameras in the vicinity, at the turnstiles and access doors, and throughout the entire capacity to record the behavior of the spectators.”

...

“d) To install closed-circuit television systems to record the full capacity of the venue throughout the entire event from the beginning until the public's departure.”

Article 13 of the Law states:

“1. The State Commission Against Violence, Racism, Xenophobia, and Intolerance in Sports may decide to implement additional security measures for the set of competitions or sports events classified as high risk, or for venues that have been subject to closure sanctions under Titles Two and Three of this Law, and in particular the following:

a) The installation of cameras in the vicinity, at the turnstiles and access doors, and throughout the entire capacity.

b) To promote systems for verifying the identity of individuals attempting to access sports venues.

c) The implementation of systems for issuing and selling tickets that allow for the control of the identity of ticket purchasers.

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“2. In the cases contemplated in letters b) and c) of the previous section, information regarding the processing of personal data necessary for the identification of the spectator will be included in the entry tickets, as well as the procedures through which such identity will be verified, remaining in any case the processing subject to the provisions of the current regulations on data protection.

Those who organize a sporting event will proceed to cancel the data of the individuals who access the event once it has concluded, unless any of the behaviors referred to in the first and second sections of Article 2 of this Law are observed, in which case they will retain only the data necessary for the identification of individuals who may have participated in the conduct.”

The (C.S.D.) stated in preliminary investigative proceedings that Law 19/2007 does not specifically contemplate a declaration of high risk for an entire football competition, but rather for matches (encounters) that are part of it. Article 10 of the aforementioned Law states:

- “1. Spanish sports federations and professional leagues must communicate to the competent governmental authority, regarding the subject matter referred to in this title, with sufficient advance notice, the proposal of the matches that may be considered high risk, in accordance with the criteria established by the Ministry of the Interior.
2. The declaration of a match as high risk will correspond to the State Commission against Violence, Racism, Xenophobia, and Intolerance in Sport, following a proposal from the Sports Federations and Professional Leagues provided for in the previous paragraph or as a result of its own decision, and will imply the obligation of Clubs and sports joint-stock companies to reinforce security measures in these cases, which will include at least:
 - a) Ticket sales system.
 - b) Separation of rival fans in different areas of the venue.
 - c) Access control for the strict compliance with existing prohibitions.
 - d) The measures provided for in Article 6 that are deemed necessary for the normal development of the activity.”

Royal Decree 203/2010, of 26/02, which approves the regulation for the prevention of violence, racism, xenophobia, and intolerance in sport, develops the aforementioned Law 19/2007. This RD establishes in its Article 8, furthermore, the obligation of the organizers responsible for all sports venues, who must establish a computerized system for the control and management of ticket sales, as well as access to the venues, while Article 9 obliges the organizers of sports venues where “professional football competitions” are held to provide numbered seats for all spectators.

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The same Royal Decree states in its Article 15: in Section 2, titled “Conditions for Issuance, Format, and Characteristics of Entry Tickets,” “Sale of Entry Tickets”:

- “2. All entry tickets for sports venues where a computerized control and management system is installed must adapt their format and characteristics to the technical conditions required for compatibility with the installed system.
3. In the cases contemplated in Article 13.1 of Law 19/2007, of July 11, the verification and monitoring of the identity of those acquiring tickets or the control of the distribution of seats will be carried out by implementing systems for the sale of nominative tickets and developing procedures that allow for the supervision of the distribution of assigned seats and knowing the identity of the holders of access titles to the sports facilities.

The processing of the data obtained according to these procedures will be limited to providing information about those who access or intend to access the sports venues, with the aim of ensuring compliance with existing prohibitions and, where appropriate, clarifying responsibilities that may arise. The organizers will cancel the data of individuals who have accessed the sporting event when it concludes, retaining only the data necessary to identify those who may have engaged in conduct prohibited by Law 19/2007, of 11/07, which may only be transferred to the authorities or competent bodies in matters of public safety.”

Within the same Section 2 of the aforementioned Royal Decree, Article 17 of the same Royal Decree states: “Obligations of Spectators Regarding Entry Tickets”:

- “1. Any person intending to access a sports venue must carry an entry ticket issued individually, a multiple ticket, a subscription, or any other title that authorizes the interested parties to access one or more events.
2. Spectators must occupy the seats of the class and location corresponding to the entry tickets they hold.
3. Each spectator is obliged to keep their entry ticket until leaving the sports venue, having to present it

at the request of any employee or collaborator of the organizer, as well as to the State Security Forces and Corps.

4. If a spectator is requested to present their entry ticket and fails to do so, they must choose to purchase one at the box office, paying its price if one is available. Otherwise, they must immediately leave the sports venue.”

Finally, in that Section 2, Article 20, “Front and Back of the Tickets,” states:

“2. The tickets will indicate on their back that the sports venue is a video-monitored area for the safety of attendees and participants in the event, and will specify the reasons that prevent access to the sports venue or remaining in it, expressly incorporating, at a minimum, the following: ...

...

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“4. When the measures for monitoring and controlling the identity of ticket purchasers and holders of access titles to the sporting events provided for in Article 15.3 of this regulation are adopted, information regarding the processing of personal data derived from the acquisition and its control, as well as the procedures through which such identity will be verified, shall be included in the tickets.”

2.2. Statute of the LNFP.

According to Article 1 of the Social Statutes of the LNFP, it is a Sports Association that, in accordance with the provisions of Articles 12 and 41 of Law 10/1990, of 15/10, on Sport (in force as of the approval of the RGLNFP), “is exclusively and mandatorily composed of all Sports Public Limited Companies and Clubs participating in official state-level professional football competitions, and is legally responsible for the organization of such competitions, in coordination with the Royal Spanish Football Federation.”

“It has its own legal personality and full capacity to act for the fulfillment of its purposes and enjoys autonomy for its internal organization and functioning in relation to the Royal Spanish Football Federation of which it is a part.”

Furthermore, Article 4 of its Social Statutes states regarding its duration and nature that “The League is established for an indefinite period and is not profit-oriented.”

Its functions are contained in Article 3 of the Statutes of the LNFP, from which only those that may relate to the complaint are highlighted:

“1.- The functions and competencies of The League, by virtue of the provisions of the Sports Law and its implementing regulations, are as follows:

a) To organize, in coordination with the Royal Spanish Football Federation and in accordance with the criteria that, in exclusive guarantee of national or international commitments, may be established by the Higher Sports Council, the official professional football competitions at the state level.

...

2.- The functions and competencies of The League are as follows:

...

“e) To approve rules regarding the format, issuance, sale, and supply of access tickets to the stadiums of its member Societies and Clubs, as well as any other matters related to ticketing.”

...

“l) To determine the conditions that the sports facilities of the stadiums must meet for the celebration of professional competitions, safety regulations, access control, as well as any other that may be established.”

Article 60 of the Statutes of the LNFP states: “obligations of the affiliates to LA LIGA”:

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"5.- To comply with the recommendations and instructions regarding violence prevention issued by the LIGA, under Title IX of Law 10/1990, of Sports and its implementing provisions." (Title IX was repealed by the sole repealing provision of Law 19/2007 of 11/07.)

"13.- To have installed the access control system indicated by the LIGA, which must be essentially the same for all its members, providing the information that the latter requires regarding access, the use of unified ticketing, its control by the same, and the computerized management of ticket sales."

Articles 41.4. a) and b) of Law 10/1990, of 15/10, of Sports, and 25. a) and b) of Royal Decree 1835/1991, of 20/12, on Spanish Sports Federations and the Registry of Sports Associations establish that the competencies of professional leagues, in addition to those that may be delegated by the corresponding Spanish sports federation, include (i) organizing their own competitions, in coordination with the respective Spanish sports federation and in accordance with the criteria that, in exclusive guarantee of national or international commitments, may be established by the Higher Sports Council, and (ii) performing, regarding their associates, the functions of guardianship, control, and supervision. Thus, the official competitions of state scope and professional character of the first and second division of football, both in their organization and in their development, will be governed by the framework established by Law 19/2007, and by the rules that make up the federative legal order as applicable, emanating from the LNFP, within the scope of its competencies.

Clubs and sports corporations voluntarily formalize their registration in the competition, which implies mandatory and special compliance with the statutes, regulations, and competition rules validly adopted by the respective bodies.

The General Regulations of the National Professional Football League (RGLNFP) contain the applicable regime for the affiliated Clubs and SAD regarding the sale of season tickets and tickets. Said RGLNFP indicates, in its preamble, that in accordance with Law 19/2007, the sale of tickets and season tickets constitutes a PREVENTIVE element of special relevance for the fight against behaviors that promote violence, racism, xenophobia, and intolerance in professional football, "establishing a series of conditions for the sale of season tickets by the affiliated Clubs/SAD," with a specific section of conditions for the sale of season tickets in supporter stands, (article XII.2) as a subgenre of the sale of "season tickets" and tickets in its article XII.1, Book XII.

All of this was introduced as a new measure agreed upon on 23/12/2015, under the validity of Law 10/1990 of 15/10 of Sports, in which article 41.3 stated:

"The Statutes and Regulations of professional leagues will be approved by the Higher Sports Council, prior to the report of the corresponding Spanish sports federation...", noting that the current Law 39/2022 of 30/12, which repeals Law 10/1990, in its article 56.3, indicates:

"The statutes of professional leagues, as well as the disciplinary regulations, economic control of the participating entities, electoral, competition, in case there is one, and internal organization, as long as it regulates the composition and functioning of..."

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its mandatory bodies, and the corresponding modifications, will be ratified by the Superior Sports Council..."

As a background to the approval of the RGLNFP by the Executive Committee of the C.S.D., it is noted that: "A written communication from the LNFP was received informing about the approval by the General Assembly of the LNFP of the modification of the RGLNFP and requesting its final approval by the Executive Committee of the C.S.D. (the modification included the new regime of Book XII on the sale of season tickets and tickets)."

The aforementioned RGLNFP specifies in its Article XII.1 for the sale of season tickets (without detailing the part of the stadium, which would be understood to apply generally to any) that "it will be carried out through the prior and proper identification of the purchasers. To this end, the purchaser must provide at the time of acquisition at least the following personal data," including identification -

name and surname and an identity verification document - and contact information, address, phone number, and email.

However, for the “fan zone,” a specific regime is established, beginning with its definition in Article XII.2, as:

“the sector or area of the stands of the sports venue defined as such by the Club/SAD itself or ex officio by LA LIGA, considering that neither Law 19/2007, of 11/07, nor its implementing regulation Royal Decree 203/2010, of 26/02, define the fan zone - and which meets the following requirements:

- It is exclusively intended for regular local season ticket holders,
- It is sectorized, differentiated from the rest of the capacity, with preferably exclusive access to the sector, area, or stand, and,
- It has a biometric recognition access system installed.”

The RGNLFP additionally establishes, in Article XII.2.2, for the titles or access documents for the season, a combination of two types of personal data that the fan will provide:

- on one hand: “together with the data specified in Article 1 of this regulation,” that is, identification and contact data (which would already identify the purchaser), in addition,
- it will be “required” “that biometric data to be determined, must be collected with the consent of the interested party.” Thus, “at the time of the acquisition of the access title by the affiliated Club/SAD, the fan will be associated with the provided identification and the biometric data.” (art XII.2.2).
- “informing of the specific purposes for the processing of the aforementioned personal data, in accordance with the current regulations on personal data protection” (art XII.2.2).
- “The Club/SAD will establish both in the document of acquisition of the access title and in the internal regulation that in these areas the spectators will be subject to all those identity verification controls in force at any given time, including those related to automatic biometric systems” (art XII.2.3)

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- “Access to the stands for supporters will only be permitted for those who have obtained the access title to that area, and who, at the time of entry, submit to the reading of the biometric data” (art. XII.2.3)
- As a conclusion of the article, (art. XII.2.6) it is stated:

“Any other access system to this area that does not involve biometric recognition will be exceptional and punctual and will require, if applicable, the Club/SAD to have a procedure in place that allows for the identification of all those who access outside of biometric control. The Club/SAD must submit that procedure, at the beginning of the operation of the system, to the Integrity and Security Directorate of La Liga for their knowledge and validation.”

In this regard, it should be noted that the ordinary or generalized regime for the acquisition of season tickets in article XII.11 states that their acquisition must include at least the identification and contact data, which in itself implies the “prior and proper identification of the purchasers.”

In line with the allegations of the defendant noted in section 3, eighth fact, that the approval of the RGLNFP does not proceed from the exclusive will of the LNFP, the functions exercised by the League do not arise from its free formation of will, but from an administrative act, which was what determined the approval of the RVAE, and that it exercises public administrative functions by delegation acting as a collaborating agent of the Administration, and that the LNFP has been urged on two occasions to comply with the biometric access measures in the stands for supporters and their access, it should be indicated:

The issue is related to Judgment 626/2024 of the Supreme Court, cassation appeal - third chamber of Administrative Litigation -, fourth section, dated 15/04/2024, rec. 751/2024, against the judgment of 7/10/2021 issued by the Sixth Section of the Administrative Litigation Chamber of the National Court, in the appeal 20/2020 filed against judgment 53/2020, of May 11, issued by the Central Administrative Litigation Court No. 12, in the administrative litigation appeal 20/2019.

The judgment in cassation addresses the issue of the legal nature of federative regulations, in this case of the Royal Spanish Football Federation, but due to the rank and type of power, and effects, it

similarly affects the issues raised by the LNFP regarding the RGLNFP and related to its allegations. In its legal foundations seventh, points 5 and 6, this nature is analyzed and it is concluded that it is not a norm approved by the Higher Sports Council:

"5. After what has been said, there is no doubt about the normative nature of federative regulations integrating the system of sources of sports Federations (cf. article 2 of Royal Decree 1835/1991); however, this normative nature does not mean that, despite their designation, they are regulations in the legal-administrative sense, that is, norms of lower rank than the Law, subordinate to it, elaborated and approved by those bodies of the public Administrations with regulatory power. And the reason is also obvious: we are dealing with regulations governing Sports Federations as entities of a private nature: they are not organs of the Administration nor do they form part of the "public sector" [article 2.2.b) in relation - at least for the General Administration of the State - with article 84.c) to f) of Law 40/2015, of October 1, on the Legal Regime of the Public Sector].

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6. If in substance the federative regulations are not administrative regulations or general provisions of such nature, procedurally their drafting and approval are not subject to the rules for drafting general provisions set forth in Articles 128 and following of Law 39/2015, but are drafted as determined by each Sports Federation according to its statutes. Therefore, taking into account the private nature of Sports Federations and their capacity for self-regulation, in relation to the competence of the C.S.D., the approval of federative regulations follows a bifacial procedure: an internal, private legal phase of drafting and federative approval, and an administrative phase in which the C.S.D., exercising its supervisory power, approves not a draft, but the regulation already approved by the federation. This nuance is relevant because, as we will state below, the C.S.D. cannot amend or redraft what would indeed be a draft, but its supervision is limited to approving or disapproving it, and in this case, returning the regulation to the Sports Federation.

Meanwhile, in the foundation 7, 10, section 3, it specifies:

"3. To maintain a balance between the normative autonomy of the corporations -here of the Sports Federations- and the administrative supervisory power, in that administrative phase the supervisory Administration cannot amend the regulation -here federative- that is submitted to it, that is, it cannot draft a new text or modify it, but can only deny its approval by expressing the reason for it, which implies its return to the authoring Corporation, here, Sports Federation (cf. judgment of June 16, 2003, contentious-administrative appeal 485/2001)."

The Statutes and Regulations are drafted because the Leagues and Federations hold normative capacity to draft their internal rules, which they exercise under the supervision of the C.S.D., art 8.a and 10.2.b of Law 10/1990 of October 15, on Sport. Thus, it is not unreasonable that the aforementioned RGLNFP expresses the will of the LNFP at that moment, regardless of whether the League can exercise public functions of an administrative nature by delegation, which are limited and interpreted in their strict terms, acting in that case as a collaborating agent of the Administration, a fact that the judgment takes for granted. This exercise of delegated functions has nothing to do with the delegation of competencies provided between Public Administrations (art 8 LRJSP) which evidently does not alter its ownership as the LIGA points out, only that such delegation occurs between administrative bodies, and the League is not one, thus it is not this type of delegation of competencies, but of public functions of an administrative nature in private associative entities.

In conclusion, the LNFP regulates the system for the sale of season tickets and tickets. It establishes a general ordinary regime for the sale of season tickets which states that, at the time of acquisition, "the following personal data must be provided, at least," of affiliation -name and surname and identity verification document- and contact information, address, phone number, and email.

2.3. Legal and regulatory framework on anti-violence

On the other hand, the legal and regulatory framework on anti-violence starts from the premise that a series of additional security measures for the ticket issuance and sale system can be decided by the

CEVRIXD, which among others include:

- Allowing control of the identity of the purchasers of the same,

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- Promote systems for verifying the identity of individuals attempting to access sports venues.

- In such cases, information regarding the processing of personal data necessary for the identification of the spectator will be included on the entry tickets, as well as the procedures through which such identity will be verified.

- "Those organizing a sporting event shall proceed to cancel the data of the individuals who access the event once it has concluded."

As of 23/12/2025, the date of approval of the RGLNFP, it was not recorded that the CEVRXID had approved additional security measures referred to in Article 13 of Law 19/2007 regarding ticket sales and identity verification for access to first and second division stadiums, nor specifically for the stands designated for supporters. It was also not indicated that the system had to consist of biometric data recognition for access to the aforementioned sector of the supporters' stands. The decision regarding the sale of season tickets for the supporters' stands and the required access system was approved by "the Extraordinary General Assembly of the LNFP, the highest governing body of the LIGA, and an expression of the will of the members" (Article 8 of the LNFP's Social Statutes). It should be noted that Clubs and SAD have one representative in the ASSEMBLY for each of the teams registered by the aforementioned SAD or Clubs registered in the LIGA (Article 12 of the League Statutes).

The requirements for ticket and season ticket sales for the supporters' stands of first and second division stadiums bind and obligate (a series of conditions for the sale of season tickets are established, as noted in the preamble of the RVAE) the affiliates of the LIGA, Clubs, and SAD. Compliance with the provisions set forth in the internal regulations of the LNFP, as well as the regulations governing the LNFP and the recommendations/guidelines provided by other Public Bodies and Institutions such as the CEVRXID for the fulfillment of their assigned functions, must start from the obvious fact that when the LNFP and its football Clubs and sports public limited companies act as data controllers, they must reconcile compliance with this regulation with compliance with the current regulations on the protection of personal data.

In summary, compliance with the regulations applicable to the entity—which do not have the rank of Law, unlike the norm that regulates the fundamental right to data protection—European regulation of direct application and an Organic Law—cannot lead to the non-compliance with other norms. It is illogical to argue otherwise, that in order to comply with some norms, one must violate others. Especially when it is possible to achieve an adequate balance and ensure that, while fulfilling the objective of guaranteeing safety in football stadiums and preventing violent acts, the fundamental right to data protection is safeguarded, particularly if it involves processing that may entail a high risk.

In conclusion, the obligation to implement biometric methods for the supporters' stands is imposed solely and exclusively by the RGLNFP, which, as we have stated, is a regulation.

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internal federation, for which the LNFP is solely responsible, and not the Higher Sports Council.

III Definition of personal data and biometric data

3.1. Personal data

In the RVAE, it is stated that for the sale of season tickets and tickets, a series of data is required that will be processed related to preventing the acts contemplated by Law 19/2007. The RGLNFP

expressly establishes a regime for the processing of personal data in the sale of season tickets, with certain identification and contact data. Other conditions for the sale of different season tickets are established for the sale of access titles or documents for the season or half-season in the stands of animation. These other conditions, as they may relate to the processing of personal data, would be:

- Along with the data referred to in the acquisition of a season ticket (identification and contact data), additionally,
- "It will require the fan to provide the biometric data that is determined," and the consent of the interested party must be obtained.
- At the time of acquiring the access title, by the affiliated Club/SAD, the fan will be associated with the provided identification and the biometric data."
- These titles will be personal and non-transferable.
- Access will be denied in the event that the person does not provide, if required, along with the biometric data, a document proving their identity that matches the identification associated with the biometric data and the access title.

Furthermore, in point 6 of article XII.2, it is indicated:

"Any other access system to this area that does not involve biometric recognition will be exceptional and punctual and will require, if applicable, the Club/SAD to have a procedure that allows for the identification of all those who access outside of biometric control. The Club/SAD must send this procedure, at the beginning of the operation of the system, to the Integrity and Security Directorate of the LIGA for their knowledge and validation."

As recognized by the LIGA, the alternative system offered by the Clubs to the biometric one has been the scanner or handheld scanner that reads barcodes on electronic tickets.

According to article 4 of the GDPR, titled "Definitions," it is understood:

"For the purposes of this Regulation, the following shall be understood:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); [...] an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

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2) "treatment": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;

Biometric data as a category within personal data is defined in Article 4.14 of the GDPR, which states:

"biometric data": personal data obtained through a specific technical processing, related to the physical, physiological or behavioral characteristics of a natural person that allow or confirm the unique identification of that person, such as facial images or fingerprint data;"

Processes that include operations with biometric data can be used for many purposes: proof of life, access to critical infrastructure areas, security, attendance control.

The scope of application of the GDPR extends its protection, as established in its Article 1.2, to the rights and fundamental freedoms of natural persons and, in particular, their right to the protection of personal data, defined in its Article 4.1 of the GDPR as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person."

The protection of natural persons in relation to the processing of personal data is a fundamental right

protected by Article 18.4 of the Spanish Constitution.

The Constitutional Court stated in its Judgment 94/1998, of 4/05, that we are dealing with a fundamental right to data protection which guarantees individuals control over their data, any personal data, and over its use and destination, to prevent the unlawful trafficking of such data or harm to the dignity and rights of the affected individuals.

3.2. Biometric Data

Biometric data irrevocably changes the relationship between the body and identity, as it makes human body characteristics readable by machines and subject to subsequent use.

Moreover, biometric systems are closely linked to a person, as they use a specific unique property of an individual for identification. For example, each individual has unique fingerprints that display specific characteristics that can be measured to determine whether a fingerprint matches a registered sample.

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Biometric data has the particularity of being produced by the body itself and definitively characterizes it; these are data not about that person, but rather the data refers to the same person, which in principle cannot be modified by the individual's will. Furthermore, because biometric data is unique to a person and perpetual, in the event that the user accesses multiple biometric systems implemented by different controllers for different purposes, the user would have to use the same data, which would be accessible in different systems and by different controllers.

As already pointed out in Opinion 4/2007 of the Article 29 Working Party (ART. 29 of Directive 95/46 EC, as a consultative and independent body of the EU), regarding the concept of personal data (WP136), dated 20/06/2007, biometric data can be defined as:

“... biological properties, physiological characteristics, personality traits or tics, which are, at the same time, attributable to a single person and measurable, even if the models used in practice to technically measure them involve a certain degree of probability. Typical examples of biometric data include those provided by fingerprints, retinal patterns, facial structure, voices, but also hand geometry, venous structures, and even certain deeply rooted skills or other behavioral characteristics (such as handwriting, pulse, a particular way of walking or speaking, etc.). A particularity of biometric data is that they can be considered both as content of the information about a specific person (So-and-so has these fingerprints) and as an element to link information to a specific person (this object has been touched by someone who has these fingerprints, and these fingerprints correspond to So-and-so; therefore, So-and-so has touched this object). As such, they can serve as "identifiers." Indeed, as they correspond to a unique person, biometric data can be used to identify that person. This dual nature is also present in the case of DNA data, which provide information about the human body and allow for the unequivocal identification of one, and only one, person.”

It should be considered that biometric data can be processed and stored in different ways. Sometimes, the biometric information captured from a person is stored and processed in raw form, allowing the source from which it comes to be recognized without special knowledge; for example, a photograph of a face, a photograph of a fingerprint, or a voice recording. Other times, the raw biometric information captured is processed in such a way that only certain characteristics or traits are extracted and stored as a biometric template.

While traditional authentication methods such as passwords require a 100% character-by-character match to allow the user to access, for example, an account or application (deterministic methods), biometric methods are referred to as “probabilistic,” because they are probabilistic technologies that can automatically recognize individuals by their face or fingerprint for authentication or identification. In both the biometric identification and authentication systems, the facial recognition techniques used are based on an estimated match between templates: the one being compared and the previously registered reference template(s). From this perspective, they are probabilistic techniques: the comparison deduces a greater or lesser probability that the person is indeed the one to be authenticated or identified; if this probability exceeds a certain threshold in the system, defined by its

user or developer, the system will understand that there is a match.

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A biometric system works with biometric data obtained from a person, from which an algorithm selects features to create a biometric template. Subsequently, the system verifies the identity of the person against the biometric database. It can do this in a second while comparing hundreds of millions of biometric data points in the database.

We can measure the performance of a biometric system based on three main characteristics. These are: false rejection rate (FRR), false acceptance rate (FAR), and equal error rate (ERR). The false rejection rate represents the probability of detection errors by a biometric system, meaning that it cannot recognize a user whose biometric features are already in the database. In the event of a rejection, the person must verify their identity again. From a security and protection perspective, this rate does not necessarily indicate a negative outcome.

The false acceptance rate is the probability that a system fails and matches the biometric features of a person with an incorrect template, granting them permission to access. This can pose a potential threat, as the system allows an unauthorized person to access an account, facility, etc.

The equal error rate is an essential indicator by which a system accepts or rejects biometric inputs.

This rate is the equality value between FRR and FAR and represents the ideal number of errors of the two.

Each biometric system, whether facial recognition, fingerprint, palm print, iris, etc., has different values for different rates based on which a system rejects or accepts inputs. Biometric data has the peculiarity of being produced by the body itself and is definitively characterized by it. Therefore, they are unique, permanent, or definitive over time, and a person cannot rid themselves of them; they can never be changed, not even with age, creating issues of liability in the event of compromise, loss, or intrusion into the system. Unlike a password, in the event of loss, they cannot be changed.

The definition of biometric data refers to "technical processing," without specifying, except to note that the purpose of such processing must be to identify a person.

To be considered biometric data in the sense of the GDPR, the processing of unprocessed data, such as the physical, physiological, or behavioral characteristics of a natural person, must involve a measurement of those characteristics. Thus, from the concept, one must not lose sight of:

- The nature of the data: data relating to the physical, physiological, or behavioral characteristics of a natural person;
- The means and forms of processing: data "obtained from a specific technical processing"; which differentiates them, for example, from images of a person that appear in a surveillance system, which cannot be considered biometric data unless they have been technically processed in a specific manner to contribute to the unique identification of that person.

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- The purpose of the processing: the data must be used for the purpose of uniquely identifying a natural person. Technically, the biometric template against which the biometric sample is compared is the product of a measurement that uniquely and solely identifies the individual. This is what, for example, differentiates the images viewed from a video camera that cannot be considered biometric data under the definition of Article 9 of the GDPR, unless they are specifically processed by a technical means to contribute to the identification of a person.

Biometric characteristics are subjected to a technical processing through which a person is recognized from an image or photograph, which includes for its implementation a process contained in all biometric data processing: its capture or registration of data with subsequent storage or processing

and the phase of comparison or matching.

Biometric data, classified as "special category" data, in Article 9 of the GDPR, both of the GDPR and of the LOPDGDD, are personal data whose use may pose significant risks to the rights and fundamental freedoms, and therefore, in principle, their processing is prohibited under Article 9.1 of the GDPR, which states:

"The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited."

This classification of special category data for processing since the date of entry into force of the GDPR does not prevent the concern, significance, and relevance of the high risks in its processing from being reflected, for example, in opinions or guidelines that ensure its character as such, and whose qualification of special impact on rights and fundamental freedoms has not diminished to date, with its processing subject to compliance with combined requirements of both legitimacy and compliance obligations that guarantee such processing. To cite some considerations regarding the aforementioned high risk, some mentions are reproduced:

- Working document on biometrics dated 01/08/2023, from GT 29, to cite only a few references:

- "3.2 Principles of purpose and proportionality" It is necessary to assess compliance with proportionality and legitimacy, taking into account the risks to the protection of the fundamental rights and freedoms of individuals and especially whether the pursued purposes can be achieved in a less intrusive manner."

- Referring to the intrinsic mode of processing, it also points out the mechanisms that generate less risk, "it would be preferable not to store biometrics in a database but rather only in an object available exclusively to the user, such as a card with a microchip, a mobile phone, or a bank card," or the storage of the template in a centralized database or on a terminal, or the reuse of biometric data.

- "3.6 Errors that occur within biometric systems can have serious consequences for the person and, in particular, the erroneous denial to individuals."

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Unauthorized access and the erroneous acceptance of unauthorized individuals can lead to serious problems at very different levels. A priori, the use of biometric data should reduce the risk of such errors. However, it may also create the illusion that the identification or authentication/verification of the interested party is always correct.

- Opinion 3/2012, on the evolution of biometric technologies, adopted on 27/04/2012,

- "3 A prerequisite for the use of biometric data is a clear definition of the purposes for which the biometric data is collected and processed, taking into account the risks to the protection of the fundamental rights and freedoms of individuals.

- "Proportionality: The Working Group warns of the risks associated with the use of biometric data for identification purposes in large centralized databases, given the potentially harmful consequences for the affected individuals.

- "3.1.4 As a general rule, the use of biometrics for general security requirements of goods and individuals cannot be considered a legitimate interest that prevails over the interests or the fundamental rights and freedoms of the interested party. On the contrary, the processing of biometric data can only be justified as a necessary instrument to secure goods or individuals when there is evidence, based on objective and documented circumstances, of the existence of a considerable risk. To this end, the data controller must prove that certain circumstances pose a specific considerable risk, which must be assessed with special care. In order to comply with the principle of proportionality, the data controller, in these high-risk situations, must verify whether possible alternative measures could be equally effective but less intrusive in relation to the objectives pursued, and opt for such alternatives. The existence of the circumstances in question must also be reviewed periodically. Based

on this review, data processing operations that are not justified must be concluded or suspended.

Cataloging as high risk, which has continued to be described among others in:

- Guidelines 5/2022, on the use of facial recognition technology in law enforcement, adopted on 26/04/2023.

- Opinion 11/2014, on the use of facial recognition to streamline passenger flow in airports, adopted on 23/05/2024.

The circumstances that would lift the prohibition on processing this data are contained in section 2 of Article 9 of the GDPR:

Among those listed is “explicit consent for one or more of the specified purposes,” and other cases.

However, regarding biometric data, in addition to finding a cause applicable to the case to lift the prohibition on its processing, the one cited for the animation of the first and second division states, that of Article 9.2.a) of the GDPR, must also be subject to:

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- The principles of legitimization specified in one of the legal bases legitimizing the processing contained in Article 6.1 of the GDPR, which also stems from the declared exception that the processing of data entails, by stating that “1. Processing shall be lawful only if at least one of the following conditions is met,” understanding that it is based on the premise that any processing of personal data restricts the rights of its holder simply by the fact of undergoing such processing, from which point, each time a processing operation is executed, it will affect their right to data protection.

- The principles of the processing itself that are outlined in Article 5 of the GDPR.

All this processing, taking into account Recital 39 of the GDPR which states that data that is not necessary for the purpose of processing should not be processed: “...Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means...”

As a result, it will also be the case that legitimization must be accompanied by compliance with the principles of data protection, one of which is minimization, as established in Article 5, paragraph 1, letter c, indicating that the data will be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

The data that is processed must be limited to what is necessary to achieve the purposes of the processing, taking into account that in the case at hand, the purpose of processing access to the animation stands of the stadiums should not involve processing biometric data.

3.3. Biometric System of the LNFP

The biometric system established by the LNFP relates the sale of tickets and season passes primarily to the data requested for their acquisition, and secondly, regarding the animation stands, to the method of access to the stadium which will be through a biometric system based on obtaining consent. This method of access links a fan's season pass, the issuance of which must be nominative according to the basic affiliation data reflected in the RGLNFP (Article XII.1), with, in this case, additionally, due to the access to the animation stands of first and second division football stadiums, the biometric system that is established (Article XII.2), with the addition of “the informed consent of the data subject must be obtained” (legitimizing basis), although in the final paragraph 6 of Article XII.2 “conditions for the sale of season passes in animation stands,” it is emphasized that “Any other access system to this area that does not involve biometric recognition will be exceptional and occasional and will require, if applicable, the Club/SAD to have a procedure that allows for the identification of all those who access outside of biometric control. The Club/SAD must submit this procedure, at the beginning of the operation of the system, to the Integrity and Security Directorate of the LEAGUE for their knowledge and validation.”

Any biometric system, in order to be used, captures, registers, inscribes, and stores a series of biometric parameters to achieve, through that processing, the identification or verification of the person each time they use the pre-established system, in this case accessing through the access points

assigned to the animation stands.

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It should be noted that the general rule regarding access for subscribers to football stadiums in the first and second divisions, according to the RGLNFP, is that those who do not enter through these fan stands will do so with subscriptions that are also nominative. However, unlike those for the fan stands, the RGLNFP does not require them to undergo any biometric identification system to access the stadium. According to the preamble of the aforementioned Book XII, this is done as a preventive measure of special relevance in the fight against behaviors that promote violence, racism, xenophobia, and intolerance in professional football.

The biometric template that provides a unique value indicates that the image of the biometric data has been processed following a technical procedure, and the result of that process is stored ready for use. This template numerically records the physical characteristics that allow for the differentiation of individuals. In the data reader space, the device's software compares the pattern presented when it is shown with the stored one, in order to grant access to the stadium, in this case, to the fan stand. In this case, the majority of the systems established in the first and second divisions in the fan stands, as designed by the RGLNFP, respond, according to information provided by the LNFP, to the use of fingerprint recognition. In that system, all biometric data collected from subscribers who have accepted the use of the system through explicit consent for access to the fan stands is processed by the Clubs/SAD that decided to implement the system.

As deduced from the information from the Spanish Professional Football Society, Sociedad Anónima-SEFPSA- (an entity participated by La LIGA, responsible for maintaining the infrastructures of the Clubs as mandated by the Sports Law to La Liga), SEFPSA provided Clubs and SADs (software and hardware) that decided to establish the system and contracted with this entity.

3.4. Conclusion.

In conclusion, it should be indicated that the LNFP establishes, through a mandatory federative regulation for Clubs and SADs, such as its RGLNFP, an ordinary regime for ticket sales with the nominative subscription that contains basic data for its issuance (personal details and contact information), allowing access with mere presentation at the access turnstiles via the access scanner, or if carried electronically, with the handheld scanner. In addition to this data, for the sale of tickets intended for subscribers accessing the fan stands, users must provide, in addition to the data from ordinary or seasonal subscriptions, the biometric data "that is established," based on the consent used at the time of access to these stands. This biometric data, in addition to being recorded in the systems that the Clubs acquired from the LIGA subsidiary, SEFPSA, the majority of them using fingerprint recognition, is related to "the provided affiliation." Furthermore, the internal processing of the data has utilized centralized databases in the Clubs, which could be retained for at least the entire season, if not longer, for future seasons, elements that contribute to increasing risks. This biometric data is classified as special category data because it uniquely identifies, in this case, the subscribers of those fan stands. The processing of such data, which began in practice in the 2015/2016 season, has been developed and added by more Clubs over the seasons, and the prohibition of processing this type of data prescribed in Article 9.1 of the GDPR has been reiterated since its entry into force.

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For the processing of such data, an analysis must first be conducted to determine whether the proposed purposes can be achieved without the processing of biometric personal data, through an assessment of the suitability, necessity, and proportionality of the processing operations in relation to their purpose. Given that the entry into force of the GDPR affects the processing system and the

compliance model of the obligations contained therein, having significantly changed the obligations of the data controller and the approach regarding the previous regulation, it should be emphasized the impact of proactive responsibility, the focus on the risks to the rights and freedoms of the data subjects arising from the processing of this personal data, in addition to the fact that under the GDPR, its processing is prohibited unless one of the exceptions provided for in that legal text applies, with special requirements for its processing that will be examined in the following grounds.

IV Data Controller

The concept of data controller is defined in Article 4.7 of the GDPR, which states:

“the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States;”

The concept of “data controller” is of fundamental importance in the application of the GDPR, as it determines who is responsible for compliance with the principles established in Article 5(1) of the GDPR and must be able to demonstrate compliance with those principles by adopting appropriate and effective measures to demonstrate that the processing activities comply with the GDPR. The principle of proactive responsibility is developed in Article 24 of the GDPR, which establishes that the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with the GDPR. Such measures shall be reviewed and updated when necessary.

Since the ultimate objective of assigning the role of data controller is effective and comprehensive protection of personal data, the concept of “controller” should be interpreted broadly enough to promote, as far as possible, effective and complete protection of data subjects, in order to ensure full effectiveness in data protection, avoid gaps, and prevent possible evasion of the regulation, without this implying a reduction in the powers of the processor (see in this regard the judgments of 29/07/2019, Fashion ID, C-40/17, paragraph 66, and of 28/04/2022, Meta Platforms Ireland, C-319/20, paragraph 73 and cited case law).

The data controller or controller is the one who decides certain essential aspects of the data processing, and can be established in the applicable regulation or inferred from an analysis of the facts or circumstances of the case. The data controller determines the purposes and means of the processing, that is, the why and how of the processing, although to be considered a data controller, it is not necessary to have actual access to the data being processed.

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By defining Article 4, point 2, of the GDPR as the processing of personal data as “any operation or set of operations performed on personal data or sets of personal data,” the concept of data controller may be linked to a single processing operation or to a set of operations. This may mean in practice that the control exercised by a specific entity may encompass the entirety of the processing in question, but it may also be limited to a specific phase of the processing. In any case, the data controller is a functional concept that requires examining, in each specific case, who determines the purposes and means in relation to specific processing operations.

Recital 74 of the GDPR states: “The responsibility of the data controller for any processing of personal data carried out by him or on his behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

It should be noted that the LNFP is a private sports association that, according to the provisions of Article 56 of Law 39/2022, of December 30, on Sports, is exclusively and mandatorily composed of all public limited sports companies and First and Second Division Clubs participating in official

professional men's football competitions at the national level.

It is governed by the aforementioned Law 39/2022, of December 30, on Sports, Royal Decree 1835/1991, of December 20, on Spanish Sports Federations, and by its Statutes and social regulations.

LALIGA has its own legal personality and enjoys autonomy regarding its internal organization and functioning, in relation to the Royal Spanish Football Federation ("RFEF").

The LNFP performs, in relation to its members (Clubs and SAD), "the functions of oversight, control, and supervision, established in the current Sports Law and its implementing provisions, as well as any other that may be established by agreement signed between LIGA and its members." (Article 3.b) of the Statutes of the League).

Furthermore, these members are present in the ASSEMBLY, the highest governing body of LIGA and expression of the will of the members (Article 8 of the Social Statutes of the LNFP), whose agreements adopted will be immediately executive and mandatory for all members. (Article 7). It should be considered that Clubs and SAD have one representative IN THE ASSEMBLY for each of the teams registered by the aforementioned SAD or Clubs registered in the LIGA (Article 12 of the Statutes of the League).

It is also provided in Article 3.2.e) of the Statutes, "functions and competence of the LIGA..."

e) Approve rules regarding the format, issuance, sale, and supply of access tickets to sports stadiums of its member Societies and Clubs, as well as any other issues related to ticketing."

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And although the LNFP indicates that it does not have any regulations, it specifically refers to the LD 2022 or the previous Law 10/1990, which assigns it the functions of access control to stadiums, it should be noted that in addition to what has been stated, from which a certain competence in such functions can already be inferred, it must be added:

- In the development of the content of the preamble of the drafting of the RVAE, it is expressly indicated:

- From the preamble "I.- Among the main objectives of the LIGA is to maintain a zero-tolerance policy against any violent, racist, xenophobic, or intolerant acts in Spanish professional football, and for this purpose, it holds different material competencies in relation to the prevention of such actions that have been entrusted to it by the state sports legislator.

Within the framework of the aforementioned competencies, Article 3.2 I) of the Social Statutes of the LIGA establishes the one related to determining the conditions that must be met by the sports facilities of the stadiums for the celebration of professional competitions, as well as the security and access control regulations that may be established."

In this regard, section II of the preamble highlights that a proper management policy for the sale of season tickets and tickets in any of its modalities constitutes a preventive element in the fight against behaviors that promote violence, racism, xenophobia, and intolerance in professional football. It even states that the Regulation has, "as main objectives:

- on the one hand, to establish uniform criteria in the sale of tickets and season tickets for all affiliated Clubs/SAD, constituting a relevant element in the prevention of such behaviors and,
- on the other hand, to raise the levels of security for all fans and participants in the matches of the professional football competitions organized by this sports association."

"III.- The Regulation has been drafted in accordance with the legal framework established by Law 19/2007, of July 11, and must be adapted to the situation of each Club/SAD through the corresponding internal regulations, which in no case shall contravene the aforementioned state and statutory and regulatory legal regime of the LIGA.

IV.- In this way, the Regulation establishes a series of conditions for the sale of season tickets by the affiliated Clubs/SAD, making a special reference to those season tickets located in the so-called

animation stands, due to their special architectural characteristics and the spectators who occupy them (season ticket holders).

The concepts of data controller and data processor are developed in the Guidelines 07/2020 of the European Data Protection Committee on the concepts of “data controller and data processor” in the GDPR.”

As far as we are concerned, we will examine three elements of the definition of data controller.

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Thus, we will indicate regarding the concept of “determine” that Guidelines 7/2020 establish that, “20. The second component of the concept of ‘data controller’ refers to its influence on the processing by virtue of the exercise of decision-making power. The data controller is the one who decides certain essential aspects of the data processing. The responsibility for processing can be established in the regulations or inferred from an analysis of the facts or circumstances of the case. It is necessary to focus attention on the specific processing activities in question and understand who determines them. To do this, the following questions must first be examined: ‘Why is the processing taking place?’ and ‘Who has decided that the processing should be carried out for a specific purpose?’

...

27. In practice, certain processing activities may be considered inherently linked to the function or activities of an entity, which ultimately also entails responsibilities from the perspective of data protection. This may be based on more general legal provisions or a consolidated legal practice in various fields (civil law, commercial law, labor law, etc.).”

...

28. In many cases, the examination of the contractual clauses between the different parties involved can help determine which party or parties act as data controllers. Even if the contract does not stipulate who the data controller is, it may contain sufficient elements to infer who has the decision-making power regarding the purposes and means of processing.

...

29. If one party decides in practice how and why personal data is processed, that party will be the data controller, even if the contract stipulates that it is the processor.

...

30. Following the line of the fact-based approach, the word ‘determine’ means that the entity that actually exercises decisive influence over the purposes and means of processing is the controller. Generally, the processing contract establishes who is the determining party (the data controller) and who is the party that follows instructions (the processor).”

Regarding “purposes and means,” according to Guidelines 7/2020, it is established that, “35. The determination of the purposes and means equates to deciding, respectively, the why and how of the processing: in a specific processing operation, the data controller is the party that determines why the processing takes place (that is, ‘for what purpose’ or ‘for what reason’) and how this objective will be achieved (that is, what means will be used to achieve it). A natural or legal person who influences the processing of personal data in this way participates, therefore, in the determination of the purposes and means of such processing in accordance with the definition provided in Article 4, point 7, of the GDPR.

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38. When an entity clearly determines the purposes and means, entrusting another entity with certain processing activities that equate to the execution of its detailed instructions, the situation leaves no

doubt: the second entity must be considered the processor and the first, the controller.

The purposes of the processing are not unrelated to those that are inherent to the LNFP, as they derive from what is established in the regulations for the prevention of violence, racism, xenophobia, and intolerance in sports, and this is because the LNFP seems to forget that the purpose of the measure is the control of access to football stadiums, in which it acts as the controller of the processing. Therefore, it is responsible for adopting the measures aimed at complying with the regulations.

Regarding the term "processing" inherent in the definition of the data controller, the Guidelines 7/2020 establish that;

"42. The purposes and means determined by the data controller must be related to the 'processing of personal data'. Article 4, point 2, of the GDPR defines the processing of personal data as 'any operation or set of operations performed on personal data or sets of personal data'. Consequently, the concept of data controller may be linked to a single processing operation or to a set of operations. This may mean in practice that the control exercised by a specific entity may encompass the entirety of the processing in question, but it may also be limited to a specific phase of the processing.

43. In practice, the processing of personal data involving several participants can be divided into several sub-processing operations in which each participant could be considered to determine the purposes and means individually.

...

45. It is not necessary for the data controller to have actual access to the data being processed.

Someone who outsources a processing activity and, in doing so, exerts a determining influence on the purpose and means (essential) of the processing (e.g., by adjusting the parameters of a service in such a way that it requires processing the personal data of certain individuals) should be considered the data controller, even if they never have access to the data."

In the present case, the LNFP, responsible for organizing professional football competitions in the first and second divisions, has the authority to regulate the ticket sales and access to the stadiums that it proposed for approval to the C.S.D. on 23/12/2015. Since then, there has been no modification or regulatory update regarding its content. The RGLNFP, in Book XII, which regulates the conditions for the sale of season tickets and tickets, establishes a specific regime for the access of season ticket holders to the "fan zones," differentiated from the ordinary regime applicable to the rest of the spectators who do not occupy these seats located in a sector of the local fans.

The specification of the access conditions to the fan zones cannot be marked as was stated by the CEVRIXD in its report of 3/03/2022 in its "special conditions which, in turn, entail compliance with a series of additional obligations." If this statement presupposes any relation to the aforementioned biometric control, as can be deduced from its letter addressed to the League for compliance.

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From the measure established in 2015, it should be noted that different conditions of the provision or service, if any, do not justify that the same fundamental right should be affected for a sector of subscribers based on additional obligations, which are neither cited nor justified.

This regime established by the LNFP, with the use of ticket purchases for the stands of animation and biometric access, is not only singular but also exceptional, as it is based on the concurrence of exceptions that lift the general prohibition on the processing of that category of special personal data of a biometric nature, susceptible to unequivocal identification of the identity of the person established by the GDPR in its Article 9.1.

The LNFP, as the entity responsible for having approved the aforementioned regulations regarding valid access titles to the sports venues where first and second division competitions are held, has decided that such access shall be carried out in a certain manner regarding the purpose and use of personal data, under specific conditions and requirements and with concrete consequences. Also, the means.

The LNFP, based on its competence and interest, exercises its decision-making power, determining that basic data (personal identification and contact information) necessary in general for acquiring subscriptions shall be collected, and additionally, for the animation stand, biometric data, and selects the supposed basis in consent, which implies carrying out the purposes related in the preamble of Book XII of the RGLFP: “with the competence of security norms and access control and ticket sales regime, which constitutes a preventive element of special relevance in the fight against behaviors that promote violence, racism, xenophobia, and intolerance in professional football. Therefore, the main objectives of this regulation are, on one hand, to establish uniform criteria in the sale of tickets and subscriptions for all affiliated Clubs/SAD, constituting a relevant element in the prevention of such behaviors, and, on the other hand, to raise the levels of security for all fans and participants in competition matches.”

Additionally, it is estimated that any natural or legal person who, attending to their own objectives, influences the processing of such data and thus participates in the determination of the purposes and means of the processing may be considered responsible for such processing.

In this regard, it is not necessary for the purposes and means of the processing to be determined through written instructions or directives issued by the data controller (see, in this sense, the judgment of 10/07/2018, *Jehovan todistajat*, C-25/17, EU:C:2018:551, paragraphs 67 and 68) nor that this person has been formally designated as such.

Furthermore, the LNFP made the means of processing available to Clubs/SAD, voluntarily but facilitating, through its group subsidiary, SEFPSA (whose parent company is the LNFP), specialized in providing maintenance services for security systems and infrastructures in stadiums, infrastructures of the Clubs that the Sports Law entrusts to the LNFP.

Article 47 of the Statutes of the LNFP establishes as functions of SEFPSA the “execution of works to adapt facilities to security and prevention standards.”

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of violence.” Article 2 of the bylaws of SEFPSA aims at “Achieving the social objectives in the activities of, among others:

- “computer science applied to sports, through the creation, production, marketing, and/or representation of any kind of informational products, whether machinery, accessories, or software, their installation, operation, advice, or sale,
- Security of the sports, commercial, and administrative facilities of sports corporations or sports clubs, through the installation of all kinds of security systems therein, including the execution of necessary civil projects and works for their installation, and the maintenance of the facilities carried out.”

According to the Annual Accounts Report for the fiscal year ending 30/06/2023, which mentions the LIGA and is available on its website, it is stated that “The Spanish Professional Football Society, S.A.U. has continued to provide the Clubs/SAD associated with the LNFP with preventive, corrective, and evolutionary maintenance services in the sports facilities where the competition matches are held in order to comply with the requirements of the Regulation on the prevention of violence, racism, xenophobia, and intolerance in sports.”

This is relevant in estimating that the LIGA, as it sets the objectives of the processing, also considered the means, including technical ones. Thus, the League creates means for the data collection phase, through its subsidiary, SEFPPSA, which, with technological development, offered the implementation of a biometric fingerprint system, attached to the turnstiles or ticket reading terminals that all first and second division stadiums must have by virtue of Law 19/2007 and its Royal Decree 203/2010, of 26/02, and which are also offered as a service to be contracted by the associated Clubs and SADs.

In this regard, it should be noted that the LNFP performs supervisory functions over the SADs and the Clubs that comprise it. Article 60 of the LNFP bylaws provides for the obligation of the League affiliates to “5. Comply with the recommendations and instructions that, in matters of violence prevention, the LIGA issues, under Title IX of Law 10/1990, on Sports and its implementing provisions.”

Therefore, it is considered that, in terms of data protection, with these obligations arising from the access system to the stands of encouragement, the League was exercising an influence not only legally, affecting the conditions of the ticket sales and box office area, and the type of access linked to the tickets, which associates the physical access system to the stadiums with said ticket sales and subscriptions.

The League also exerts a factual influence, which conditioned the access requirements implemented by itself and communicated through Circulars, which, with a view to said processing, determined the technical solution offered by its subsidiary and used by the majority of the Clubs that implemented it. The LNFP has contracted and made available to football Clubs and Sports Anonymous Societies, its own affiliates, a biometric access system to the stands of encouragement in first and second division stadiums, predisposing purposes and means to process said biometric data, from which it is deduced that the LNFP does not act in execution.

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of any legal mandate, nor even of a regulatory mandate - since the LNFP does not have a regulatory nature, as has been pointed out.

The assertion that the doctrine of the judgment of 10/07/2018 in case C-25/2017, which is cited several times as paragraphs of Guidelines 7/2020 on the concepts of “data controller and data processor under the GDPR,” would not be applicable is relevant, and would indeed apply to the LNFP as understood within that concept, as it presents similarities with the case at hand. Thus:

- The LNFP organizes, promotes, and coordinates the biometric access system to the stands of animation, as a specialty of the general regime of ticket and subscription sales. It conditions the ticket sales regime along with the corresponding access to the facilities of the Clubs and SADs.
- Without prejudice to the fact that the Clubs and SADs may also decide for themselves whether they wish to collect data in that manner and determine how they collect it, in addition to having or not having the aforementioned stand of animation, a matter that is not the subject of this procedure nor of controversy. Royal Decree 203/2010 obliges them to cancel the data, as organizers, of individuals who have accessed or “to provide it to the authorities or competent bodies in matters of public safety” (art. 15.3), or simply to retain it for their use in each match as applicable, which remains a processing operation defined in Article 4.2 of the GDPR.

Therefore, the allegations made by the LNFP on 16/07/2024 regarding the access control of individuals against whom a judicial prohibition measure has been imposed, which is communicated to the Clubs by the LNFP, do not prevent the LNFP from being considered the data controller for establishing a regime that binds its members, providing the means and determining the purposes in pursuit of a defined objective.

Likewise, the requirement for Football Clubs and SADs to comply with obligations affecting their sphere of determination of other processing operations when they act as data controllers is not incompatible with those arising in this case for the LNFP, which expressly declares, imposes, and facilitates the means for the same for a specific sector of the stadium such as the stand of animation.

- Although it is also expressly stated that “it is not necessary for the purposes and means of processing to be determined by written instructions or directives issued by the data controller,” in this case, such a circumstance does exist as has been explained, thus confirming this condition in the LNFP.

- The processing operations consisting of contracting the generic design of the fingerprint recognition system, to ensure access control to the first and second division stadiums in relation to the stand of animation, effectively made available to the football Clubs and sports joint-stock companies fall within the broad concept of processing included in Article 4.2 of the GDPR:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or otherwise.”

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automated or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, suppression or destruction;”.

The broad concept of data processing has been recognized by the case law of the Court of Justice of the European Union in various rulings.

Thus, the CJEU ruling of 04/05/2023, in case C-487/21, states that,

“27 In this context, it should be added that the Union legislator intended to give the concept of ‘processing’, as defined in Article 4, point 2, of the GDPR, a broad scope, by using a non-exhaustive enumeration of operations [see, in this regard, the judgment of 24 February 2022, *Valsts ieņēmumu dienests* (Processing of personal data for tax purposes), C-175/20, EU:C:2022:124, paragraph 35]”.

Similarly, the CJEU ruling of 30/04/2023, in case C-34/21, determines that,

“33 In this regard, it follows from the case law of the Court of Justice that the definition of the material scope of the GDPR, as stated in its Article 2, paragraph 1, is very broad and that the exceptions to that scope, provided for in its Article 2, paragraph 2, must be interpreted strictly [see, in this regard, the judgments of 9 July 2020, *Land Hessen*, C-272/19, EU:C:2020:535, paragraph 68, and of 22 June 2021, *Latvijas Republikas Saeima* (Points for traffic violations), C-439/19, EU:C:2021:504, paragraphs 61 and 62]”.

The CJEU ruling of 05/10/2023 also states that,

“From the wording of this provision, in particular from the expression ‘any operation’, it follows that the Union legislator intended to give a broad scope to the concept of ‘processing’ [see, in that sense, the judgment of 24 February 2022, *Valsts ieņēmumu dienests* (Processing of personal data for tax purposes), C-175/20, EU:C:2022:124, paragraph 35]. This broad interpretation of the concepts of ‘personal data’ and ‘processing’ is consistent with the objective of ensuring the effectiveness of the fundamental right to the protection of individuals in relation to the processing of personal data referred to in Recital 1 of the GDPR, which governs the application of that Regulation”.

We see that the GDPR and the case law of the CJEU understand that the processing of personal data may consist of one or several processing operations, some of which may occur without the actual implementation of the processing (material processing), as the term “any operation performed on personal data” includes the analysis and design of the processing itself, as well as the contracting of the fingerprint recognition system under the aforementioned terms.

There is no doubt that the design of a technical system that allows access control through fingerprint recognition to stadiums constitutes a processing operation of personal data, in this case, biometric data.

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One piece of evidence that the GDPR includes the design of processing within a broad concept of processing is the provision of the principle of privacy by design, which is contemplated in Article 25 of the GDPR, in the following terms:

“1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement,

both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that is necessary for each specific purpose of the processing is processed. This obligation shall apply to the amount of personal data collected, to the extent of its processing, to its retention period, and to its accessibility. Such measures shall ensure in particular that, by default, personal data is not accessible, without the intervention of the person, to an indeterminate number of natural persons (...)."

If this broad concept of processing is not recognized, which allows considering design, system definition, its contracting, and its availability to other subjects (who will decide to use it in good faith that the system is perfectly designed and contracted, complying with the standards and obligations set by the GDPR) as a processing operation and to demand accountability without the need for the material processing operations (collection/extraction of personal data) to have commenced, various essential obligations provided for in the GDPR would be rendered ineffective and outside its scope of application.

In addition to being deduced from the RGLNFP, which the LIGA adopted in consideration of Law 19/2007 and its Regulation, Royal Decree 203/2010, of 26/02, conferring it the development of the regime for the sale of subscriptions, tickets, and box office, it is the LIGA that contemplates, BEFORE THE CEVRXID, the additional requirement of the biometric system for access to the stadiums, only in the stands of animation. It should be noted, therefore, that when the RGLNFP was approved, the "additional security measures" that the CEVRIXD could decide to implement under Article 13 of the aforementioned Law 19/2007 had not been declared. In any case, these measures were produced with the first written communication to the LIGA on 3/3/2022 and will coincide with what was already implemented in the RGLNFP, and that access data to the stands of animation had been collected since the 2015/2016 season.

This does not imply that other actors with the same purposes cannot carry out other processing operations in the practical execution of the different phases of the processing activity in which the access system to the stands of animation with the biometric system implemented by the LNFP unfolds.

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From the perspective of the GDPR, there would be several differentiated phases of processing with various successive and distinct data controllers, a situation perfectly possible as outlined in the aforementioned Guidelines 7/2020.

This processing of biometric data through fingerprint recognition for access control to the fan stands of sports stadiums consists of several phases or processing operations, which correspond to various "independent successive controllers" that would be:

- A controller for the generic design of the access control system in first and second division stadiums in relation to the fan stand, contracted and made available to the Clubs and sports corporations. The LNFP, by defining the content and contracting this system, decides on the purposes and means of this processing operation.

- Other controllers for the effective implementation of the access control system in first and second division stadiums in relation to the fan stand contracted by the LNFP in each of the stadiums.

Each Club or SAD that decides, and has decided, to use the system designed by the LNFP would also be considered a controller of this phase of the subsequent processing. This processing would involve various processing operations aimed at effectively implementing these access control means in the stadiums, which include: (i) from the design of the purposes and means to be implemented in their own stadium (what we could call operational or specific design, of which the one contracted by the LNFP

would be part); (ii) to the rest of the "material processing" operations that involve the collection/extraction of biometric data, its storage, use, preservation, etc.

However, the fact that there may be different phases of processing with the intervention of other controllers does not relieve the LNFP of its status as a controller regarding the processing operations carried out for which it decides on the purposes and means.

On the other hand, it should be clarified that we are not dealing with a case of "cumulative responsibility" or co-responsibility as provided in Article 26 of the GDPR, even though there are several controllers of the same processing, which are not of the same processing operations. In this case, there is an independent successive responsibility of both controllers, since we are dealing with a single processing for which there is a "chain of processing operations," as pointed out by the European Data Protection Board (hereinafter, EDPB), the highest authority in this matter, and the Court of Justice of the European Union itself.

On one hand, the aforementioned Guidelines 7/2020 specifically refer to the case at hand:

"63. Co-responsibility for processing also requires that two or more entities influence the means of processing. This does not mean that, for such co-responsibility to exist, each of the participants must determine all the means in all cases. In fact, as clarified by the CJEU, different entities may participate in different phases of processing and to different degrees. Therefore, different...

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Co-controllers of the processing may define the means of processing to varying degrees, depending on who is in a position to do so.

64. It may also occur that one of the participants provides the means for processing and makes them available to others so that they can carry out the activities of processing personal data. The entity that decides to use such means to process personal data for a specific purpose also participates in determining the means of processing.

And the CJEU, in rulings such as that issued in the case of the Belgian official journal, dated 01/11/2024, in case C-231/22, addressed and analyzed a situation in which there was a "chain of processing," and not a "cumulative responsibility" or "co-responsibility," in which it considered that the official journal and the entity that sent the information that was erroneously published in the journal were "independent successive controllers," each responsible for their processing operation, indicating that in this case only the official journal was responsible for the publication, as determined by Belgian legislation.

See also in this regard the CJEU ruling of 29/07/2019, Fashion ID, in case C-40/17 (EU:C:2019:629), paragraph 74; and the ruling in the Google case (Removal of links to allegedly inaccurate content) in case C-460/20 (EU:C:2022:271), paragraph 15.

Thus, among the latest rulings of the CJEU, it is worth mentioning, for its clarity, the CJEU ruling of 07/03/2024 (C-604/22) IAB Europe, and those cited therein, which declares that even in cases of co-responsibility there would be processing responsibility for all controllers, although not necessarily equivalent regarding the same processing operation.

"56 Furthermore, since, as expressly provided in Article 4, point 7, of the GDPR, the concept of 'controller' refers to the entity that 'alone or jointly with others' determines the purposes and means of processing personal data, this concept does not necessarily refer to a single entity, but may refer to several actors participating in that processing, each of whom will therefore be subject to the applicable data protection provisions (see, by analogy, the rulings of June 5, 2018, Wirtschaftsakademie Schleswig-Holstein, C-210/16, EU:C:2018:388, paragraph 29, and of July 10, 2018, Jehovan todistajat, C-25/17, EU:C:2018:551, paragraph 65).

57 Likewise, the Court of Justice has considered that a natural or legal person who, according to their own objectives, influences the processing of personal data and thereby participates in determining the purposes and means of such processing may be considered a controller in the sense of Article 4, point 7, of the GDPR (see, by analogy, the ruling of July 10, 2018, Jehovan todistajat, C-25/17,

EU:C:2018:551, paragraph 68). Thus, in accordance with Article 26, paragraph 1, of the GDPR, there are 'co-controllers' when two or more controllers jointly determine the purposes and means of processing (ruling of December 5, 2023, Nacionalinis visuomenės sveikatos centras, C-683/21, EU:C:2023:949, paragraph 40).

58 In this regard, while each co-controller must independently respond to the definition of 'controller' in Article 4, point 7, of the GDPR, the existence of joint responsibility does not imply...

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necessarily that, with respect to the same processing of personal data, the various agents have equivalent responsibility. On the contrary, the agents may be involved in different stages of the processing and to different degrees, so that the level of responsibility of each of them must be assessed taking into account all the relevant circumstances of the specific case. Furthermore, the joint responsibility of several agents regarding the same processing under this provision does not presuppose that each of them has access to the personal data in question (see, by analogy, the judgment of July 10, 2018, Jehovan todistajat, C-25/17, EU:C:2018:551, paragraphs 66 and 69 and cited case law).

59 Participation in determining the purposes and means of processing can take different forms and result from a common decision made by two or more entities or from converging decisions of those entities. In the latter case, such decisions must complement each other, so that each of them has a concrete effect on the determination of the purposes and means of processing. However, it cannot be required that there is a formal agreement between those controllers regarding the purposes and means of processing (judgment of December 5, 2023, Nacionalinis visuomenės sveikatos centras, C-683/21, EU:C:2023:949, paragraphs 43 and 44).

It should also be added that football clubs and sports joint-stock companies are not entities external to the LNFP but partners of the same, forming part of the organization; the guidelines and orientations that the LNFP may direct to them do not necessarily determine that it is responsible for the processing; however, if what it contracts and makes available to the Clubs is a system for accessing the stands of the sports stadiums with fingerprint recognition, fulfilling the functions attributed in its own internal regulations, which exceeds any point of directing an orientation or recommendation, then it is indeed acting as the controller of the processing. On this particular matter, it should be added that the system is made available to the associates for them to use immediately, which generates in them the good faith that the system complies with the provisions of the GDPR. Thus, it is considered that the LNFP as a legal entity, attending to its own objectives, influences the processing of personal data, determines the purposes and means of processing, and can be considered a controller of the processing in the sense of Article 4.7 of the GDPR.

V Obligations allegedly breached by the LNFP - Data Protection Impact Assessment

Regardless of the need to comply with the provisions included in the previous section related to special category data, there must be an exception that lifts the prohibition of Article 9.1 of the GDPR, there must be a lawful basis established in Article 6 of the GDPR, and the other principles of the GDPR must be complied with, including those related to data minimization, with other obligations that controllers of processing related to high risk, such as this case, must fulfill.

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In the context of processing, any of the various biometric techniques included, the data controller must evaluate them, in accordance with adequacy, proportionality, and necessity, their purpose, their impact on the rights and freedoms of individuals, and the risks they entail, both for the individual and for society.

Article 24.1 of the GDPR, under the heading "Responsibility of the data controller," establishes:

"1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity to the rights and freedoms of individuals, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary."

Article 28 of the LOPDGDD establishes that "Data controllers and processors, taking into account the elements listed in Articles 24 and 25 of Regulation (EU) 2016/679, shall determine the appropriate technical and organizational measures that must be applied to ensure and demonstrate that the processing is in compliance with the aforementioned regulation, with this Organic Law, its implementing regulations, and the applicable sectoral legislation. In particular, they shall assess whether a data protection impact assessment and prior consultation referred to in Section 3 of Chapter IV of the aforementioned regulation is necessary."

The aforementioned articles generally establish the obligation of the data controller to apply appropriate technical and organizational measures to ensure and be able to demonstrate that the processing of personal data is in compliance with said Regulation.

Article 24 further develops what is already provided in Article 5(2) of the same GDPR, which introduces among the principles related to processing the principle of "proactive responsibility." The principle of proactive responsibility is one of the pillars of the Regulation and one of its most significant innovations. It assigns to the data controller the responsibility to adopt proactive measures to ensure and be able to demonstrate compliance with the Regulation, and requires the controller to take responsibility for what they do with personal data and how they comply with the other principles, having appropriate measures and records to demonstrate their compliance.

The proactive responsibility system implemented by the GDPR, focused on the continuous management of the risks associated with processing in relation to data protection by design and by default, reinforces the protection of data subjects concerning their personal data by imposing on data controllers the obligation to analyze what data they process, for what purposes, and what types of processing they carry out, relating the potential risks that the processing entails for the rights and freedoms of individuals, and from there, deciding what technical and organizational measures of all kinds they adopt and apply, to ensure compliance based on the identified risks.

The technical and organizational measures required by the principle of proactive responsibility must be "appropriate," taking into account the factors specified in Article 24: the nature, scope, context, and purpose of the processing, as well as the probability and severity of the risks to the rights and freedoms of individuals.

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Article 24 therefore requires that the measures be appropriate in order to demonstrate that the processing is in accordance with the principles and provisions of the Regulation. The entire Regulation is based on risk prevention and the proactive responsibility of the data controller, and therefore on a teleological approach that seeks the best possible outcome in terms of effectiveness, that is, far removed from the formalistic logic linked to the mere obligation to comply with specific procedures that exempt from liability.

The risk management required by the GDPR is specifically aimed at protecting the rights and freedoms of data subjects, and should not be confused with other risk orientations, such as compliance risk management. In turn, risk management for rights and freedoms extends beyond merely security risk management.

A Data Protection Impact Assessment (DPIA) should be seen as a decision-making aid regarding processing, and therefore should be conducted during the conception and design phases of the processing. This would comply with the principles of data protection by design and helps ensure that the selected safeguards are guided by risk management and implemented during the conception and

design phase of the processing, being integrated into it and extending to all stages of its lifecycle. Data protection by design is not an additional layer or an element that can be added later. Therefore, a DPIA may imply that changes need to be made to the processing to introduce modifications, safeguards, or measures to reduce risks; this must be done before and during the design phase, and the risk-based approach that a DPIA entails is a process, not a state.

The processing of data of fans accessing the stands of football stadiums through biometric reading and recording tools presents high risks to the fundamental rights and freedoms of data subjects. Before implementing a data processing project based on this technology, which represents a very significant high-risk probability for the rights and freedoms of individuals, and which may produce impacts on the rights and freedoms of individuals to varying degrees of probability, it is necessary to analyze its future operation, not in isolation but within the framework of the specific processing in which it will be employed. The Data Protection Impact Assessment (DPIA) is the tool that in the GDPR deals with ensuring compliance with this aspect of processing.

The DPIA is a necessary step for data processing, not being the only requirement, it is a prerequisite to which the rest of the legal requirements for processing must be added, as indicated in the previous legal basis, exceptions that lift the prohibition of Article 9 of the GDPR, legitimizing basis of Article 6 of the GDPR, and respect for the fundamental principles of data processing provided for in Article 5 of the GDPR.

The DPIA and risk management are integrated activities. The DPIA is an indivisible part of risk management for rights and freedoms and must be executed within its framework. Risk management and the Data Protection Impact Assessment are intimately linked processes. The DPIA is a specificity within risk management. Therefore, the DPIA cannot exist without being part of risk management for rights and freedoms, extending it with a series of requirements.

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additional. While risk management is mandatory for all processing, the specific obligations established for the Data Protection Impact Assessment (DPIA) are mandatory exclusively for high-risk processing. Article 35 of the GDPR projects the principle of proactive responsibility and incorporates an obligation for data controllers: to assess the impact of processing operations on the protection of personal data when it is likely that the processing poses a significant risk to the rights and freedoms of individuals. The Regulation establishes the rights that individuals have regarding the processing of their data (right to information, etc.). However, when referring to "risks to the rights and freedoms of individuals," we do not limit ourselves to the rights recognized by the Regulation, but to any effect that the processing may have on the fundamental rights and freedoms of individuals.

As such, considering that special category personal data is being processed, there is an obligation to have a Data Protection Impact Assessment (DPIA) as indicated in Article 35 of the GDPR:

- “1. When it is likely that a type of processing, in particular if it uses new technologies, by its nature, scope, context, or purposes, entails a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to the processing, an assessment of the impact of the processing operations on the protection of personal data. A single assessment may address a series of similar processing operations that involve similar high risks.
2. The data controller shall seek the advice of the data protection officer, if appointed, when carrying out the data protection impact assessment.
3. The data protection impact assessment referred to in paragraph 1 shall be required in particular in the case of:
 - a) systematic and comprehensive evaluation of personal aspects of natural persons based on automated processing, including profiling, and on which decisions are based that produce legal effects concerning the natural persons or similarly significantly affect them;
 - b) large scale processing of special categories of data referred to in Article 9, paragraph 1, or of personal data relating to criminal convictions and offenses referred to in Article 10, or

c) systematic large-scale monitoring of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with paragraph 1. The supervisory authority shall communicate those lists to the Committee referred to in Article 68.

5. The supervisory authority may also establish and publish a list of types of processing that do not require data protection impact assessments. The supervisory authority shall communicate those lists to the Committee.

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6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the coherence mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or to the monitoring of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

- a) a systematic description of the intended processing operations and the purposes of the processing, including, where appropriate, the legitimate interest pursued by the data controller;
- b) an evaluation of the necessity and proportionality of the processing operations in relation to their purpose;
- c) an assessment of the risks to the rights and freedoms of the data subjects referred to in paragraph 1; and
- d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms that ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other affected persons.

8. Compliance with the approved codes of conduct referred to in Article 40 by the respective controllers or processors shall be duly taken into account when assessing the impact of the processing operations carried out by those controllers or processors, particularly for the purposes of the data protection impact assessment.

9. Where appropriate, the controller shall seek the opinion of the data subjects or their representatives regarding the intended processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

10. When the processing based on Article 6(1)(c) or (e) has its legal basis in Union law or in the law of the Member State applicable to the data controller, such law regulates the specific processing operation or set of operations in question, and a data protection impact assessment has already been carried out as part of a general impact assessment in the context of the adoption of that legal basis, paragraphs 1 to 7 shall not apply unless the Member States consider it necessary to carry out such an assessment prior to the processing activities.

11. If necessary, the controller shall examine whether the processing is in accordance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations.

If as a result of the DPIA, the "processing would involve a high risk if the controller does not take measures to mitigate it," Article 36 of the GDPR shall apply, which provides that "the controller shall consult the supervisory authority before proceeding with the processing."

In furtherance of paragraph 4, the Director of the AEPD published a non-exhaustive list,

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a non-exhaustive list of types of processing that require a data protection impact assessment (DPIA), stating: “When analyzing data processing, it will be necessary to carry out a DPIA in most cases where such processing meets two or more criteria from the list set out below, unless the processing is included in the list of processing operations that do not require a DPIA referred to in Article 35.5 of the GDPR.”

The list is based on the criteria established by the “GUIDELINES ON DATA PROTECTION IMPACT ASSESSMENT (DPIA) AND DETERMINING WHETHER PROCESSING ‘IS LIKELY TO RESULT IN A HIGH RISK’ FOR THE PURPOSES OF THE GDPR,” adopted on 4/04/2017, and last revised and adopted on 4/10/2017, WP 248 rev.01 of the Article 29 Working Party, which complements it and should be understood as a non-exhaustive list:

“4. Processing that involves the use of special categories of data referred to in Article 9.1 of the GDPR, data related to criminal convictions or offenses referred to in Article 10 of the GDPR, or data that allows for the determination of financial situation or solvency or inferring information about individuals related to special categories of data.

5. Processing that involves the use of biometric data for the purpose of uniquely identifying a natural person.”

...

“10. Processing that involves the use of new technologies or an innovative use of established technologies, including the use of technologies on a new scale, for a new purpose, or combined with others, in such a way that it entails new forms of data collection and use that pose risks to the rights and freedoms of individuals.”

In the same Guidelines, it is noted:

“In order to provide a more concrete set of processing operations that require a DPIA due to their inherent high risk, taking into account the specific elements of Article 35, paragraph 1, and Article 35, paragraph 3, letters a) to c), the list that must be adopted at the national level under Article 35, paragraph 4, and recitals 71, 75, and 91, and other references in the GDPR to processing operations that ‘are likely to result in a high risk,’ the following nine criteria should be considered:

...

4. Sensitive data or very personal data: this includes the special categories of personal data defined in Article 9 (for example, information about individuals' political opinions), as well as personal data related to criminal convictions and offenses as defined in Article 10. An example would be a general hospital that keeps medical records of patients or a private investigator who keeps data on offenders. Beyond these provisions of the GDPR, some categories of data may be considered to increase the potential risk to the rights and freedoms of individuals. This personal data is considered sensitive (as this term is commonly used) because it is linked to homes and private activities (such as

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electronic communications whose confidentiality must be protected), because they affect the exercise of a fundamental right (such as location data whose collection compromises freedom of movement) or because their violation clearly implies serious repercussions in the daily life of the individual (such as financial data that could be used to commit payment fraud). In this sense, it may be relevant that the data has already been made public by the individual or by third parties. The fact that personal data is publicly accessible may be considered a factor in the assessment of whether it was intended for certain purposes. This criterion may also include data such as personal documents, emails, diaries, notes from e-book readers equipped with note-taking options, and very personal information included in life activity tracking applications.

...

8. Innovative use or application of new technological or organizational solutions, such as combining the use of fingerprint and facial recognition to improve physical access control, etc. The GDPR makes it clear (Article 35, paragraph 1, and recitals 89 and 91) that the use of a new technology, defined “in

terms of the level of technical knowledge achieved" (recital 91), may necessitate conducting a DPIA. This is because the use of such technology may involve new forms of data collection and use, possibly with a high risk to the rights and freedoms of individuals. In fact, the personal and social consequences of deploying a new technology may be unknown. A DPIA will help the data controller understand and address such risks. For example, some applications of the "Internet of Things" could have a significant impact on daily life and the privacy of individuals and, therefore, require a DPIA.

In most cases, a data controller may consider that processing that meets two criteria will require the conduct of a DPIA. In general, the WP29 considers that the more criteria the processing meets, the more likely it is to represent a high risk to the rights and freedoms of the data subjects and, therefore, require a DPIA regardless of the measures the controller intends to adopt.

However, in some cases, a data controller may consider that processing that meets only one of these criteria requires a DPIA.

As biometric registration systems are identification systems, they are inherently very intrusive to the fundamental rights and freedoms of individuals, and the GDPR establishes the obligation to manage the risk that such processing poses to the rights and freedoms of individuals. This risk arises from the very existence of the processing. While in practice there is usually not a single way to achieve the purposes for which data processing is oriented, it can be observed that depending on how it is implemented, different risk scenarios may arise, with both inherent risks and others derived from the technical and organizational dimensions of the processing. The risk arises from the purposes of the processing and its nature, as well as from its scope and the context in which it takes place.

The complexity of the risk management process must be adjusted not to the size of the entity, the availability of resources, the specialty or sector of the entity, but to the possible impact of the processing activity on the data subjects and to the inherent difficulty of the processing itself. This assessment requires thoroughness, starting in this case from the necessity of

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processing in the sense of the GDPR, and not only the prohibition of processing these data, as provided in Article 9 of the GDPR, considering the risks among others, of using intrusive technology, biases or the likelihood of an error in identification, its interoperability, identity theft, and the type of unique, permanent, and unchanging identity being processed, its impact on individuals' privacy, the implications regarding fundamental rights of such systems, and the technical and organizational measures of all kinds that must be implemented, including security measures.

The GDPR establishes the obligation to analyze and manage the risk that the processing of personal data poses to the rights and freedoms of individuals. These rights and freedoms of the data subjects primarily concern data protection rights, but may also involve other fundamental rights such as the prohibition of discrimination, freedom of movement, or maintaining anonymity in public spaces, which are not the subject of this procedure. These risks arise both from the very existence of the processing and from its technical and organizational dimensions. The risk arises from the purposes of the processing and its nature, as well as from its scope and the context in which the processing takes place.

A DPIA (Data Protection Impact Assessment) is a process designed to describe the processing of personal data, assess its necessity and proportionality, and help manage the risks to the rights and freedoms of natural persons arising from such processing, by identifying, evaluating, and determining measures to mitigate them. Defining it as a process means that it is not a one-off and isolated activity in time. The DPIA is an analysis process of a processing operation that extends over time, throughout the entire lifecycle of personal data processing, including its design phase, and must be continuously reviewed, "at least when there is a change in the risk posed by the processing operations" (Article 35.11 of the GDPR).

DPIAs are important tools for accountability, as they help controllers not only to comply with the requirements of the GDPR, ensuring the rights and freedoms of individuals attending football stadiums,

specifically in the stands of animation, but also to demonstrate that appropriate measures have been taken to ensure compliance with the Regulation.

It is essential that the use of these technologies is carried out in full respect of the principles of legality, necessity, proportionality, and data minimization established in the GDPR. While the use of these technologies may be perceived as particularly effective, controllers must, first and foremost, assess the impact on fundamental rights and freedoms and consider less intrusive means to achieve their legitimate purpose of processing.

The Article 29 Working Party, in its Opinion 3/2012 on the evolution of biometric technologies, states that "When analyzing the proportionality of a proposed biometric system, it is necessary to first consider whether the system is necessary to address the identified need, that is, whether it is essential to meet that need, and not just the most suitable or cost-effective. A second factor to take into account is the likelihood that the system will be effective in addressing the need in question in light of the specific characteristics of the biometric technology to be used. A third aspect to weigh is whether the resulting loss of privacy is proportional to the expected benefits. If the benefit is relatively minor, such as increased convenience or slight savings, then the loss of privacy is not appropriate. The fourth aspect to evaluate the...

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The adaptation of a biometric system is to consider whether a less invasive means of privacy would achieve the desired end."

The evaluation of necessity and proportionality must lead to a decision on whether the processing is viable or, conversely, not viable according to the way it is proposed.

When it is not possible to demonstrate the necessity and proportionality of high-risk processing or the processing operations that may be part of it, it is not recommended to proceed with the data protection impact assessment.

These are cumulative requirements that provide an additional guarantee in the processing of data of its owner, taking into account that if the achievement of the intended purposes can be carried out without processing personal data, or with less extent and intensity of use of those data, this route will be preferable and will imply that no data processing is necessary, and subsidiarily, that the collection of data is necessary for the established or intended purpose and, if so, that it is proportional.

Furthermore, within the context of the complaints, it should be noted that shortly after the approval of the RGLNFP at the end of 2015, the GDPR was published in the Official Journal of the European Union on 4/05/2016, which had its entry into force on 24/05/2016, applicable from 25/05/2018, so the prohibition on the use of biometric data as a general rule could have been known. In this regard, Recital 171 of the GDPR states: "Any processing already initiated on the date of application of this regulation must comply with this regulation within two years from the date of its entry into force," and the data controllers must ensure that it complies with their obligations from 25/05/2018 (in addition to the other obligations under the GDPR).

The Guidelines of the Article 29 Working Party on the data protection impact assessment (DPIA) to determine whether the processing "likely entails a high risk" for the purposes of Regulation (EU) 2016/679, adopted on 4/04/2017, last revised and adopted on 4/10/2017, indicate regarding existing processing operations that "The requirement to carry out a DPIA applies to existing processing operations that likely entail a high risk to the rights and freedoms of natural persons and for which there has been a change in risks, taking into account the nature, scope, context, and purposes of the processing."

It is concluded, therefore, that the LNFP generally determined purposes and means for the processing of data necessary to access the stands of animation in football stadiums, a specific area of them, which the RGLNFP also defines as "having installed the access system through biometric recognition." However, it is not recorded that, when requested from the LNFP the "assessment of the principle of proportionality of the processing of such data for this purpose," it was surpassed, given that it

responded that it is not responsible for the processing and therefore did not make any assessment. The LNFP is responsible for the processing of biometric personal data for access to the stands of animation in first and second division football stadiums, not only by having approved the regulation that establishes as mandatory for its affiliated Clubs and SADs, as a purpose of combating violence, racism, intolerance, and xenophobia, but also by delimiting in relation to the design of the system through its subsidiary SEFPSA those means that involve risks to the rights and freedoms of the subscribers, and that it should have had and surpassed a prior DPIA.

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Without prejudice to subsequent interventions in the data processing by other controllers, Clubs and SADs, which depending on the specific circumstances of the facilities are subject to the obligation in their scope.

Regarding the allegation of the LNFP to the proposal, which disregards differentiating elements that are part of the biometric data processing carried out by the Clubs and SAD, in order to prepare the DPIA, or that it is intended to carry out two successive DPIAs, given that ***CLUB.4 has already been sanctioned, or that it is not considered responsible for the processing since the RGLNFP was approved by the CSD, it should be noted:

- Regarding the approval of the RGLNFP as an administrative act attributable to the will of the C.S.D., it should be recalled that this requirement was merely legal at its specific moment, 23/12/2015, which does not detract from the fact that it should have been modified to update it, if applicable, to the new regulations that the GDPR entailed. On the other hand, in the matter that concerns us, the regime of selling season tickets and tickets to the stands of encouragement in the stadiums to witness the official first and second division football matches affects third parties who are not part of the members of the League, nor of the Federations outside the special subjection that would encompass their capacity for self-regulation. Likewise, the fact that it is an administrative act attributable to an administrative authority related to sports does not affect that the RVAE is that of the League itself and arose from its own initiative, not from the administration that exercises oversight.
- Article 4.7 of the GDPR defines the data controller as “a legal or natural person who alone or jointly with others determines the purposes and means of the processing.”
- The Clubs and SADs are members of the LNFP. These entities not only carry out the treatments defined and designed in the RGLNFP-RVAE, but they are also the organizers and responsible for most of the measures related to issues of violence in the stadiums referred to in Law 19/2007.
- It should be taken into account that in situations where “two or more controllers jointly determine the objectives and means of processing,” there is the possibility that “they may mutually agree on their respective responsibilities in complying with the obligations imposed” by the GDPR, as provided in Article 26.1 of the GDPR.
- According to the Guidelines on Data Protection Impact Assessment - DPIA and to determine whether the processing likely entails a high risk for the purposes of the GDPR, adopted on 04/04/2017, the DPIA can integrate different forms. A DPIA may affect a single data processing operation. However, Article 35, paragraph 1, states that “a single assessment may address a series of similar processing operations that involve similar high risks.” Recital 92 adds that “there are circumstances in which it may be reasonable and cost-effective for a data protection impact assessment to cover more than one single project, for example, in the case where authorities or public bodies plan to create a common processing application or platform, or if several controllers plan to introduce a common processing application or environment in a sector or business segment or for a horizontal activity of widespread use.”

“When the processing operation involves joint controllers, they must precisely define their respective obligations. Their DPIA must establish which part is...

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responsible for the various measures aimed at addressing risks and protecting the rights and freedoms of the data subjects. Each data controller must express their needs and share useful information...”

- Among the possible guarantees for the rights and freedoms of the data subjects, the possibility mentioned in Article 35.9 of the GDPR should be considered, which allows for requesting, when appropriate, the opinions of the data subjects or their representatives, such as associations, regarding the processing.

Therefore, it is considered that, for the implementation of biometric processing, a DPIA should have been conducted and passed, which means that the LNFP has violated Article 35 of the GDPR.

VI Response to Allegations

Regarding the allegation made against the initiation agreement and the proposal that it has suffered defenselessness and violation of Article 53.1 a) of the LPACAP and consequently with the infringement of the effective judicial protection of Article 24 of the Constitution, for the reasons set out in point 2 of the EIGHTH FACT and in point 1.b of the TWELFTH FACT where they are grouped. In summary, according to the LNFP, there were parts of documents from the prior actions report that were not delivered, the questions posed to ***CLUB.4, which established a biometric control system and which, in the opinion of the LNFP, may be substantial to demonstrate that the accusation is unfounded, and as it does not hold the status of data controller concerning such types of processing. It is also stated that the complaint was not directed against the LNFP, with the AEPD deciding that it would affect both the LNFP and ***CLUB.4, conducting a single investigation “jointly,” “understanding that there could be a link between both.” Regarding the same, it should be noted:

The LNFP seeks to be informed of the documents from the investigation of another complaint against another entity from which different responsibilities could arise in the present case in a prior investigation procedure with multiple subjects under investigation.

- Article 64.2 of the LOPDGDD states that “Once the complaint is admitted for processing, as well as in cases where the Spanish Data Protection Agency acts on its own initiative, there may be a phase of prior investigative actions before the initiation agreement, which will be governed by the provisions of Article 67 of this organic law,” which states that they will be: “in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.” It is only added that these prior actions will be subject to the provisions of Section 2 of Chapter I of Title VII of this LO, which is titled: “Powers of investigation and preventive audit plans,” and contains Article 52: “Duty of cooperation,” which prescribes the obligation of individuals to provide the AEPD with the necessary data, reports, background, and justifications to carry out its investigative activity. Article 53 “scope of the investigative activity,” indicates that:

“1. Those who carry out the investigative activity may collect the necessary information to fulfill their functions, conduct inspections, require the exhibition or sending of the necessary documents and data, examine them at the location where they are deposited or where the actions are carried out.”

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treatments, obtain copies of them, inspect physical and logical equipment, and require the execution of treatments and management or support programs and procedures subject to investigation.”

- The documentation that was not provided was because it was part of another part of the preliminary investigation proceedings against the ***CLUB.4, due to a complaint against that entity that was filed with the AEPD on relatively close dates for similar facts. This entity, as the responsible party for that treatment, was considered investigated, and its procedure was processed individually, parallel to common elements in the questioned parties (C.S.D., SEFPSA) without the preliminary proceedings, and even less the allegations and documents submitted by that party, being considered part of the

present procedure. The fact that the aforementioned Club could present responses related to the download of the alleged facts that would interest the League is merely a hypothesis that by itself is not sufficient for understanding the part of what was alleged and provided by another entity in another procedure merely due to the use of the biometric system established by the LNFP, and being CF ***CLUB.4 an associate of the LNFP. The AEPD has also not subsequently decided to fragment the content of a previous file, as alleged by the LNFP, since the preliminary proceedings that were the source of the content that it claims should be revealed do not yet constitute a procedure, and as noted, they constituted investigations into another entity.

- The motivation that justifies the opening of this procedure is extracted in all its elements from the preliminary investigation proceedings initiated by agreement of 2/01/2023 by the Director of the AEPD, as a consequence of the reported facts, without, on the other hand, the reflection of a specific entity that could be noted in the complaint limiting the scope of the investigation to that entity. The investigation was not focused on the LNFP or the ***CLUB.4, but originated from the Director's agreement that investigates certain facts, and its essence lies in the concept of the preliminary investigation proceedings aimed at ascertaining certain facts based on what is brought to knowledge.

- In allegations to the proposal - FACT TWELFTH (FIRST, b) - the LNFP considers that what has been withheld from its knowledge are facts "substantially relevant to deny its status as responsible for the treatment," reproducing part of what is contained in the aforementioned PS/483/2023, emphasizing what it indicates are several paragraphs, which it asserts would substantiate in three written responses from CF ***CLUB.4, although the points contained in the aforementioned resolution do not derive from any proven fact, given that it was the initiation agreement and the sanctioning procedure ended with the payment of the sanction before its conclusion and acknowledgment of responsibility within the allegations period, thus the only thing reproduced are statements or documents provided by the parties, as factual backgrounds. On the other hand, the paragraphs reproduced from part of the resolution that in its opinion are indications of the relevance that has not been provided to it cannot be less indicative of the contrary, since from its reproduction it is confirmed that such information is already reflected in this procedure extracted from the account of the LNFP and the rest of the actors who were questioned, elements that have already been taken into account and assessed in the proposal. Regarding the responsibility that arose in that procedure against the ***CLUB.4, it did not affect or address any aspect related to the LNFP, without prejudging any aspect by the mere fact that ***CLUB.4 carried out the effective treatments of access for the subscribed individuals to the stands of animation, and as reiterated in these grounds, it is possible not to effectively process the data and at the same time be considered responsible for the treatment. Finally, the thesis that the LNFP seeks to assert that Clubs are the only...

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The parties responsible for the aforementioned processing and their reasoning have been allegations that were already made within the initiation agreement and have been taken into account, with the reasons stated in the initiation agreement, which reproduce the same, being the only ones that enabled its initiation. Alongside this, the obligation of the principle in Article 5.2 of the GDPR imposes on the data controller, in accordance with the principle of "proactive responsibility" stated in that provision, that they are responsible for compliance with the provisions of paragraph 1 of that same article and must be able to demonstrate that they respect each of the principles established in that paragraph 1, so the burden of proof falls on them. In this regard, the CJEU has expressed itself in its judgment of 24/02/2022, C-175/20, EU:C:2022:124 (paragraphs 77, 78, and 81).

Furthermore, it is relevant that the LNFP claims that ***CLUB.4 has been able to provide some document that would relieve its responsibility, which would help to consider it not to be the actual data controller, when despite the fact that this assessment derives from a set of analyses and context that are examined here, the LNFP in previous actions does demonstrate that it has all the information from

all Clubs and SAD regarding implemented access, entry, and security measures, as shown:

- On 27/07/2023, as stated in FACT FOUR, it was aware of which equipment, which means, and since when they used biometric data for access to the stands of animation, alternative means, withdrawals from the systems, etc.
- A copy of the security, prevention, and control protocols of Clubs and SAD (documents 2 to 73) as indicated in Article 5 of RD 203/2010, which must be made available to the CEVRVXID.
- A copy of the internal regulations of the Clubs and SAD, documents 74 to 114.
- The LNFP also states that: "Currently, all Clubs associated with the LNFP, with the only exceptions of ***CLUB.1, ***CLUB.2, and ***CLUB.3, use exclusively the biometric recognition devices provided by the LNFP through SEFPSA for access to the venues. However, these Clubs, just like the others, use alternative means to biometric access, made available by the LNFP." This, in addition to the general turnstiles for access to the venues.
- The control electronics of the turnstile have the capacity to store fingerprint templates and identify them (1:N).

Both documents included the documents from most of the equipment, including those from ***CLUB.4 (August 2021), and details of access, entries, and their control, infrastructures, and other measures.

To appreciate the existence of a constitutional violation, it is not enough to have a procedural defect; it is also necessary that this has resulted in material defenselessness, that is, in a real and effective detriment, never potential and abstract, to the possibilities of defense in a procedure with the necessary guarantees (SSTC 15/1995, of January 24, and 1/2000, of January 17). The alleged defenselessness due to not knowing what another Club has stated in another procedure is not a real or material defenselessness; it cannot be formal or hypothetical.

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This concerns not only distinct facts that are part of another procedure, which do not justify the communication of information and data, but also that as an allegation it must be dismissed because no real or significant defenselessness has been caused. Regarding the allegation that, not being informed in prior proceedings of her position or in what capacity the information was requested, she claims to have been unaware of the specific content of her duty to cooperate, citing an article of the LPACAP, it should be noted that the regulations applicable to the procedures carried out by the AEPD are governed by the legal regime provided in Article 63.2 of the LOPDGDD, which states:

"Procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures," and that, as already mentioned, the collaboration regime is provided for in Section 2 of Chapter I of Title VII.

Furthermore, the LNFP was informed of the basis on which the request for information was made and it has not been demonstrated that the right to defense has been harmed in the possible subsequent initiation, given that in the preliminary investigation phase no aspect was attributed to the LNFP, and if it has been attributed subsequently, it has not been demonstrated that any violation of its position as an investigated party to presumed responsible in the initiation agreement has occurred.

Regarding the LNFP's allegation that the provisional measure agreed upon is not a procedural act and was going to be challenged, requesting that it be suspended provisionally, it should be emphasized that the contentious-administrative chamber of the National Court has resolved the matter in first instance, denying the LNFP's request and maintaining the measure, regardless of the fact that its challenge may currently be pending resolution.

On the allegation regarding the LNFP's proposal that the RGLNF is an administrative act approved by the CSD as a requirement of legality, which essentially aims to safeguard the actions of the private instrumental entity entrusted with the LIGA, it should be noted that the regulations approved regarding

the RGLNFP/RVAE cannot be monolithic, and since its approval on 23/12/2015, the LNFP neither promoted its modification to adjust it to the requirements of the regulations that changed the system of processing and guarantees of personal data, with the GDPR (new legality) nor adjusted its behavior to such variation by implementing the various compliance mechanisms in the processing of this type of data and for the purposes that were determined in 2015 and had been used by its associated football clubs and sports public limited companies.

On the other hand, regarding the allegation in the proposal that the approval of the RGLNFP arises from the exercise of the powers contained in Article 95.2.1) of the Sports Law of 2022 complemented by Article 25 of Royal Decree 1835/1991 of 20/12 on Spanish sports federations and the Registry of Sports Associations, it should be indicated that what is being evaluated is not the Regulation in its entirety, but the regime that affects the rights of individuals, subscribers in the stands of support in the stadiums with the establishment of a singularized, exceptional regime, which established in 2015 has not passed through the filter of the new regulation that the GDPR provides since its entry into force to accommodate the requirements that this regulation states must be met in the processing of this type of data. The data affected by this singularized regime and that...

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may maintain a certain connection with stadium security is a matter that does not resemble that of the organization of competitions entrusted by the aforementioned Sports Law and the indicated Royal Decree.

The LNFP also considers that the provision to use biometric systems in football fields and in the stands of supporters links to the legal and regulatory determinations regarding the prevention of violence and security in stadiums.

In addition, it is worth reiterating part of the content of the preamble of the RGLNFP which states:

“1.- Among the main objectives of the LIGA is to maintain a zero-tolerance policy against any violent, racist, xenophobic, or intolerant acts in Spanish professional football, and for this purpose, it holds various material competencies related to the prevention of such actions that have been entrusted to it by the state sports legislator.

Within the framework of the aforementioned competencies, article 3.2 I) of the Social Statutes of the LIGA establishes the relative to determining the conditions that sports facilities of the stadiums must meet for the celebration of professional competitions, as well as the security and access control regulations that may be established.”

However, if we review the regulations that refer to violence, racism, and security, Law 19/2007 of 11/07 and RD 203/2010 of 26/02, there is no mention in any aspect regarding such purposes—the regime of requirements for the sale of season tickets and access to the stadiums (stands of supporters)—to the competencies of the LNFP. The issues of security and those related to the object of these regulations impose their compliance on the organizers responsible for all sports venues, which, if cited in the Regulation, are done so repetitively, with obligations of different content and scope.

In this regard, article 15.3 of the aforementioned Royal Decree is recalled, “sale of entry tickets,” included in section 2 of “Conditions for issuance, format, and characteristics of entry tickets,” which, in addition to not establishing a specific mechanism, does not specify who will be responsible for their cancellation:

“3. In the cases contemplated in article 13.1 of Law 19/2007, of July 11, the verification and monitoring of the identity of those who purchase tickets or the control of the distribution of seats will be carried out by implementing systems for the sale of nominative tickets and developing procedures that allow for the supervision of the distribution of assigned seats and knowing the identity of the holders of access titles to the sports facilities.

The processing of the data obtained in accordance with these procedures will be limited to providing information about those who access or intend to access the sports venues, with the aim of ensuring

compliance with existing prohibitions and, where appropriate, clarifying the responsibilities that may arise.

The organizers will cancel the data of the individuals who accessed the sporting event when it concludes, retaining exclusively the data necessary to identify those who may have engaged in conduct..."

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prohibited by Law 19/2007, of July 11, which may only be transferred to the authorities or competent bodies in matters of public security." Likewise, the approval of the RGLNFP by the C.S.D. at that time was merely the confirmation of its compliance with the law on that date, but it arose and was completed within the LIGA, presenting it as a whole to the C.S.D. for approval, following the decision of the ASAMBLEA GENERAL of LA LIGA, in which the Clubs and SAD are also represented, and to which the aforementioned establishment of the RVAE also affects, ignoring their position both in the approval and in the transfer to the new regime of the RGPD.

Without prejudice to the fact that the legal reasoning of this resolution, in FD IV to which we refer, duly motivates the reasons why the LNFP is responsible for the processing of operations consisting of the contracting of the biometric recognition system, to ensure access control to the stadiums of the first and second divisions in relation to the fan stands, effectively made available to the football clubs and sports public limited companies, we will proceed to respond to the allegations made on this particular matter.

The LNFP states in its allegations to the proposed resolution that it considers itself a mere facilitator of a technological solution for the clubs and sports public limited companies; however, the truth is that the decision to implement that system involves determining the purposes and means of processing within the functional concept of the data controller: regarding the purposes because the very claimed party has decided that biometric data will be used for control and access to stadiums during sporting events; and because it has also decided, in order to fulfill the previous purpose, on the means of processing since it has arranged to contract with a company from its group a specific system, with its own characteristics and specifications, and not others that are available on the market, opting for a specific technological solution.

Moreover, this implemented system must comply with the provisions of the RGPD, since the manner of processing personal data will depend on how the system has been planned and designed and whether its design has taken into account the risks to the rights and freedoms of the data subjects (for example, what happens if a person is prevented from entering a stadium because the system stops functioning or because it does not recognize them). Technology is not neutral, and technological solutions are also subject, when they are the means for processing personal data, to the application of data protection regulations.

Regarding the allegation that they are not responsible for the processing since they have not decided on which specific biometric data will be collected, on the data retention regime, on who has access to the data, or what the categories of data subjects are, we must indicate that the LNFP is responsible for the processing of its phase of the processing, without being concerned with subsequent decisions or obligations of other data controllers.

In this sense, the LNFP has decided to process biometric data, which in itself implies a decision on the means even though it states it did not want to specify which specific biometric data should be processed, although it is based on a whole series of elements regarding the aforementioned system, the data to be processed will be, as inferred from the RGLNFP:

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- The generic information required for any season ticket (a) identification details (name and surname and identity verification document), b) contact details (address for notification purposes, contact phone number, and email address).
- The biometric data determined, which has coincided over time on user devices, has been the fingerprint. The LNFP instrumental society, SEFPSA, indicated on 15/09/2023 that for access to the fan stands, there were seven first division teams and eight second division teams that had implemented their technical solution incorporating biometric technology for the aforementioned access.
- At the time of acquiring the access title, the affiliated Club/SAD will associate the fan with the provided identification and biometric data.
- Through the consent of the interested party.
- Informing about the purposes for the processing of the aforementioned personal data, in accordance with the current regulations on the protection of personal data.
- These titles will be personal and non-transferable.
- Furthermore, if another system that is not biometric is established, it would be, in such case: "exceptional and punctual," and the Club/SAD must inform the LIGA at the beginning of its operation for "knowledge and validation" purposes.

In any case, it is also clear that the chosen system has not been conceived and designed for use with any biometric data (the most common are fingerprints or facial recognition, but voice recognition, gait analysis, hand geometry, or typing patterns on a computer, among many others, can also be used) which would require specific technical prescriptions in the system for its processing, but rather, among all possible options, it has provided a system for a type of biometric data that has specific characteristics for the system to be used, which also implies a decision.

It has also determined for which categories of interested parties the processing of personal data refers, namely, the fans accessing the fan stands of first and second division football stadiums.

Regarding the retention of data, the system itself determines that these must be retained, even indicating where (on the servers of the club or sports public limited company), which entails a decision regarding data retention.

In this regard, when information was requested from SEFPSA, on 22/08 and 4/09/2023, it responded on this particular matter that it provides Clubs with both the hardware and software necessary for the biometric access control to the stadiums, indicating that "Therefore, in the original version of the systems provided by SEFPSA, the biometric data would be stored on the Identification Management Server ((...)) located in the Club's facilities."

And all this without prejudice to the fact that, as is obvious, the responsible party for further processing, each football club or sports public limited company, which processes the data of its fans is the one who must determine, regarding the operations of personal data processing that it is carrying out in its phase of processing, the retention period of the data or the manner in which its deletion is to be carried out, a matter that is also prohibited.

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a LALIGA since such processing operations do not belong to its phase of processing.

The same provision applies regarding who accesses the specific personal data, which will be determined, in accordance with data protection by default, within the framework of the organization and idiosyncrasy of each club or sports public limited company.

As we see, the LNFP is responsible for the processing since it determines the purpose and means of the processing, having this consideration not for general issues, but in attention to very specific decisions they adopt, as has just been made evident.

Neither the GDPR nor the AEPD, therefore, consider that an entity is responsible for the processing in the face of, as LIGA says, any activity that may remotely relate to a third party, but only when it

decides on the purposes and means of the processing, highlighting in this examined case the decisive influence of the LNFP in the processing of personal data, since the successive data controllers who have used this system provided for them by the LNFP within the framework of its access control competencies are bound by all its conditions and specifications, not being able to modify it and only having the margin of action that the system allows them (which has also been decided by the LNFP). It is undeniable that the LNFP system is the basis (and not only technical, as we have seen, since they affect the processing of personal data) on which the processing operations subsequently carried out by other data controllers are supported, integrating the actions of the LNFP into the broad concept of personal data processing (as was intended to be indicated with the cited CJEU rulings) for the purpose of ensuring the effective protection of the data subjects in accordance with the GDPR.

It is true that based on the generic system contracted by LIGA in the scope of its own purposes and competencies, in attention to the already mentioned legal and statutory provisions, made available to the football clubs and public limited sports companies of the first and second divisions, operations of processing have been carried out, in a subsequent phase of the processing and by other data controllers, which include the material processing of personal data of the data subjects in another phase of the processing. This last point does not exempt the operations of processing determined by the LNFP from their condition as personal data processing, as will be explained below.

And it is that the GDPR establishes a compliance management system that, from proactive responsibility and a risk-based approach (in the rights and freedoms of the data subjects), determines the obligation to comply with a series of obligations, some of which are prior to the processing operations consisting of the material processing of personal data.

Thus, among these obligations is the one related to the identification, evaluation, and assessment of the risks to the rights and freedoms of the data subjects arising from the processing of personal data, the evaluation of the necessity, suitability, and proportionality of the processing, or the determination of appropriate technical and organizational measures of all kinds to avoid the eventual materialization of risks and the containment of damages, where applicable. And this must be carried out through the instruments provided by the GDPR itself, citing for these purposes, when a personal data processing entails a high risk to the rights and freedoms of the data subjects, the DPIA that must be conducted and passed by the data controller (which implies that).

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it results that such processing of personal data can be carried out and under what terms as it is compliant with the GDPR).

The obligation to carry out these actions in advance is part of the intrinsic logic of the GDPR, since before carrying out the processing operations consisting of the material processing of the personal data of the data subjects, the processing as a whole must be perfectly planned and delineated, constituting these operations part of the processing of personal data.

The opposite would be akin to starting to build a house without plans, without making the necessary calculations, leading the construction to disaster, as any success would merely be a coincidence.

It should be noted that the ordinary and appropriate practice, especially concerning biometric data, is to conduct system tests with real data, to verify, among many other issues, for example, the error rate of the system (as its poor functioning may hinder the provision of the service), which means that during these actions, processing operations are also carried out materially processing personal data.

Furthermore, the LNFP considers that it is not responsible for the processing but rather the C.S.D., having approved the RGLNFP as an administrative act. However, such understanding by the defendant party is erroneous since the consequence would be that all the various provisions emanating from the LNFP or by FEDERATIONS and "approved" by the C.S.D. (according to current regulations, this would be ratification), which may affect or involve athletes, technicians, coaches, referees, or even third parties, such as subscribers with access to the stands of encouragement, would always have that authority as the responsible party for the processing of personal data due to its

approval, always the responsibility of that authorizing body. And this is irrespective of whether the provisions contained an express designation of the responsible party for the processing of personal data or whether it was implicitly deduced who that party is. To assume this aspect directly by any provision "approved" or "ratified" by the C.S.D. would lead to an interpretation contrary to the functional concept of the responsible party for processing, depriving it of fulfilling its obligations regarding data protection, of assuming its proactive responsibility, and thus making effective protection of individuals impossible in the terms of the GDPR.

The LNFP is responsible for the processing of biometric data for access to the stands of encouragement in first and second division football stadiums based on the content and purposes contemplated in the RGLNFP (including the idea expressed in the preamble that clarifies the reasons for the approval contained in its RVAE).

The impetus for such a measure arises with the approval of the RGLNFP by the LNFP on 23/12/2015 and the decision adopted therein, and its compliance is further promoted to encourage more football clubs and sports limited companies to implement it starting in 2022. It should also be noted that, during that time frame, several football clubs and sports limited companies had already begun to use the aforementioned system provided by the LNFP. The federative normative character derived from the approval as part of the source of law of the RGLNFP, by virtue of the self-organizational power held by the LNFP due to its legal capacity, producing the effective approval by the C.S.D., does not exempt the LNFP from its status as the responsible party for processing.

To understand otherwise would even imply considering that the purposes, means, and necessity of the processing have arisen spontaneously, either by the football clubs themselves.

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of sports public limited companies, or even without being able to attribute to a specific subject the decision of ends and means, which is not only impossible but also clashes with the proven facts that reveal that it is the LNFP that has decided to process biometric data for a specific purpose for which they have competence, to implement that system and contract it, and to make it available to football clubs and sports public limited companies, urging them to use it.

Regarding the rest of the allegations from the LNFP, they have been detailed in the specific aspects in which the issues are addressed: proportionality of the sanction, responsibility for processing, or responsibility for the infringement.

VII Qualification and classification of the infringement

The infringement attributed is classified under Article 83.4.a) of the GDPR, which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

The LOPDGDD establishes for the purposes of the prescription of the infringement, in its Article 73.t):

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

t) The processing of personal data without having carried out the impact assessment of the processing operations on the protection of personal data in cases where it is required."

VIII Proposal for sanction

Article 58.2 of the GDPR provides as follows: "Each supervisory authority shall have all of the following corrective powers indicated below:

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;"

The LNFP, in its allegations to the proposal, states that the establishment of the regime for biometric

access to the stands of encouragement deserves, if that were the case, a warning sanction, as it falls under the application of Article 83.7 of the GDPR and 77.2 of the LOPDGDD, citing by analogy the activity carried out in organizing a sports competition referred to in appeal 323/2010 of the AN dated 01/04/2011, considering it as an exercise of public function of an administrative nature contemplated in Article 33.1 of the then applicable Law 10/1990 on Sports, acting under the supervision of the C.S.D. Underlying this is the regulation of the RVAE approved on 23/12/2015 that

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prescribes the data processing for the access of subscribers to the stands of animation of the stadiums of the teams in the first and second divisions in the official competition of the LNFP, which was developed by the different Clubs over the successive years, coinciding with the entry into force of the GDPR (25/05/2018) and on subsequent dates, with the alleged infringement of not having carried out a DPIA on such treatments, a warning sanction shall apply as it is understood to perform such type of function protected by the C.S.D. and classified as a function exercised by delegation of a public administrative function. The final consequence would be that the treatments carried out by the different Clubs over the successive years, and also from and after the entry into force of the GDPR (25/05/2018) and on subsequent dates, with the alleged infringement of not having carried out a DPIA on such treatments, would be subject to a warning sanction, instead of an administrative fine.

The LNFP does not specify which part of the organization of the competition can be understood to include the establishment of the regime for the sale of subscriptions and tickets indicated. It is not disputed in this regard that powers such as sports disciplinary or sports licensing could encompass such delegated functions. Another issue is to assert that establishing a mandatory regime for its members for the sale of subscriptions and tickets to the stadiums (also to the stands of animation) as arising from the exercise of delegated public functions based on its power to organize competitions. Firstly, the fact that they are contained in a General Regulation approved or ratified by the C.S.D. that may be of an administrative nature does not grant that category or nature to the aforementioned regime for the sale of subscriptions and tickets when the approval or ratification took place on 23/12/2015 and the applicable regulations regarding such RVAE were modified by the use of biometric data, and it would have become outdated in regulatory compliance. Secondly, it is a regime that affects not only its members but also subscribers who acquire their access titles to the stadiums from the Clubs, and the measure affects the fundamental rights of those who hold such titles.

In the judgment that the LNFP cites in its allegations to the proposal, it was an economic sanction for the exposure on the website of a sports Federation of the results of the competition containing personal data of federated minors, indicating in its SECOND foundation:

“it can only be considered the final phase of the competitive process whose organization corresponds to the federations, exercising by delegation public functions of an administrative nature under the cited provision. The organization of the competition will include several phases and the exercise of the delegated administrative function will not conclude until the final publication of the results obtained by each of the participating athletes is made.

Thus, the Agency, in compliance with the provisions of Article 46 of the LOPD (according to which when the infringements referred to in Article 44 were committed in files for which public administrations are responsible, the Director of the Spanish Agency for Data Protection shall issue a resolution establishing the measures that should be adopted to cease or correct the effects of the infringement), should have established the measures it deemed appropriate to cease or correct the effects of the infringement since, in these cases, the sanctioning effect derived from the same infringement does not occur in relation to private files, and therefore, it is appropriate to annul the contested resolution considering that the Agency should have refrained from sanctioning an entity like the appellant when it was exercising the functions in which the publication that was reported occurred.”

Article 83.7 of the GDPR states that “Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.” Article 77 of the LOPDGDD, amended by Law 11/2023 of 8/05, effective from 10/05/2023, modifies the sanction to be imposed from a warning to a declaration of infringement, with the following provisions:

“1. The regime established in this article shall apply to the treatments for which they are responsible or in charge:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.
- d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
- e) The independent administrative authorities.
- f) The Bank of Spain.
- g) The public law corporations when the purposes of the treatment relate to the exercise of public law powers.
- h) The foundations of the public sector.
- i) The Public Universities.
- j) The consortiums.
- k) The parliamentary groups of the General Courts and the Legislative Assemblies of the autonomous communities, as well as the political groups of the Local Corporations.

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2. When the responsible parties or data processors listed in section 1 commit any of the violations referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

Regarding the specific regulation of the access regime to stadiums with a valid title, specifically to the stands for supporters, neither under the previous Sports Law, Articles 33 or 41 (establishment of Professional Leagues and competencies), nor with the current Sports Law, Article 50, is it specified that this matter and activity fall within the cases of action subject to the oversight and coordination of the C.S.D., and an extensive interpretation of the subjects covered by these functions, which are explicitly detailed therein, is not permissible.

On the other hand, the LNFP as a private association is not an organ of public administration nor does it form part of the public sector.

Thus, for the purposes of applying the aforementioned article and regime, the purpose of the analyzed processing is not understood as an exercise by delegation of public administrative functions, nor are they organs or part of the public sector; therefore, the analyzed processing cannot be framed within the aforementioned regime.

The determination of the sanctions to be imposed in this case requires observing the provisions of Article 83.1, which states the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

While the second paragraph lists the applicable criteria that may mitigate or aggravate the infringement depending on the circumstances of the case. For its part, Recital 150 of the GDPR particularly points

out the "nature, gravity, and duration of the infringement and its consequences and the measures taken to ensure compliance with the obligations imposed by this Regulation and to prevent or mitigate the consequences of the infringement."

Paragraph 2 of Article 83 specifies:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;
- j) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

Within this section, the LOPDGDD provides in its Article 76, titled "Sanctions and corrective measures":

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.

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h) The voluntary submission by the responsible party or manager to alternative dispute resolution mechanisms, in cases where there are controversies between them and any interested party.

3. It will be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679."

Regarding the re-evaluation proposed by the defendant in their allegations to the agreement and the proposal for the total turnover figure, which must be subject to reduction for its correct calculation, and

possibly that it should not be taken into account due to the lack of clarity regarding the applicability of the concept of company within the scope of competition, the following must be considered: Articles 3.1) a), b), e), and m) of the Social Statutes of La LIGA, as its own functions and competencies, attribute to it:

a) To organize, in coordination with the Royal Spanish Football Federation and in accordance with the criteria that, in exclusive guarantee of national or international commitments, may be established by the Higher Sports Council, the official professional football competitions of a state-wide nature.”

b) To perform, regarding its associates, the functions of guardianship, control, and supervision, established in the current Sports Law and its implementing provisions, as well as any other that may be established by agreement signed between La LIGA and its associates.”

(...)

“e) Commercial exploitation of any rights and products that are inherent to or a consequence of the competitions it organizes, whether directly by La LIGA or through the assignment of all or part of the commercial exploitation to third parties, whether natural or legal persons, or by forming a company with them, under any legal form and with the participation determined by the General Assembly, provided that their main purpose is the aforementioned exploitation.”

Products or rights subject to commercialization will include, among others, the corporate brand identifiers, logos, anagrams, official mascot, and others of the National Professional Football League, whose legal protection is carried out through the corresponding registration in the Industrial Property Registry, as well as the joint use of the same with all the names, shields, logos, and official colors of the Sports Public Limited Companies or Clubs affiliated with the National Professional Football League, respecting, in any case, the right of individual contracting of the Sports Public Limited Companies and Clubs.

Similarly, the joint exploitation of the official statistical data of all matches of the competitions organized by the LNFP may be subject to commercialization by the National Professional Football League, without prejudice to the right of the Sports Public Limited Companies and Clubs to individually exploit the aforementioned statistical data regarding the matches they have played.”

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“m) The joint commercialization of the exploitation rights of audiovisual content of the football competitions it organizes, as well as other audiovisual rights related to football competitions whose commercialization may be entrusted or assigned to it.”

In the BOE of 1/05/2015, Royal Decree-Law 5/2015, of 30/04, on urgent measures regarding the commercialization of the exploitation rights of audiovisual content of professional football competitions is published. According to this, the ownership of such rights corresponds to the Clubs or entities participating in the corresponding official competition (Article 2.1), but their participation in it necessarily entails their assignment to the organizing entity of the joint commercialization powers of the audiovisual rights included in the scope of application of this Royal Decree-Law (Article 2.2).

The aforementioned organizing entity is the National Professional Football League (LNFP) regarding the National League Championship of the First and Second Division (Article 2.2.a) and the Royal Spanish Football Federation (RFEF) regarding the Copa de S.M. el Rey and the Supercopa de España (Article 2.2.b). The regulation establishes detailed criteria on the conditions of joint commercialization, the distribution criteria, and the obligations of the entities participating in the National League Championship.

Although the LNFP is a sports association, this does not prevent it from developing different management aspects in the business field, as noted in Article 4.1 of Royal Decree-Law 5/2015:

“1. The system of commercialization and exploitation of audiovisual rights shall be governed by the principle of freedom of enterprise within the framework of the evaluation system established by European and Spanish competition regulations.”

The aforementioned regulation led to the initiation of the centralized management of the LNFP for the commercialization of the exploitation rights of audiovisual content of professional football competitions in the 2016/2017 season.

Article 4 of the GDPR, in definitions, states: "18) 'enterprise': a natural or legal person engaged in an economic activity, regardless of its legal form, including companies or associations that regularly carry out an economic activity;" "19) 'group of enterprises': a group consisting of a parent company that exercises control and its controlled companies;" This latter concept is primarily used in Chapter V of the GDPR, in the expression "group of enterprises that carry out a joint economic activity."

In the AXESOR report, the LNFP is listed as a "global parent company," with different percentages of participation in the capital of various companies.

Recital 150 of the GDPR states: "If administrative fines are imposed on an enterprise, it must be understood as an enterprise according to Articles 101 and 102 of the TFEU. If administrative fines are imposed on individuals who are not an enterprise, the supervisory authority must take into account when assessing the appropriate amount of the fine the general level of income prevailing in the Member State, as well as the economic situation of the individual."

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The concept of an enterprise is an autonomous concept in EU competition law, defined by the jurisprudence of the Union courts.

Enterprises are "economic units that consist of a unified organization of personal, material, and immaterial elements that pursue a specific long-term economic objective and may contribute to the commission of an infringement as contemplated in [Article 101 TFEU]." In simple terms, "enterprise" refers to any entity engaged in economic activity, regardless of its legal status and the manner in which it is financed. Therefore, the concept of an enterprise is of an economic nature. This is often the case with corporate groups: the parent company and the subsidiary—distinct legal entities (usually corporations)—constitute a single enterprise if the relationship between them is so close that, from an economic perspective, they form a "single economic unit."

The reference to the enterprise should not be understood as including all specific jurisprudence of European competition law, as the GDPR has its own mechanisms to distinguish which entity has violated the law and how liability should be divided.

Article 83 and Recital 150 of the GDPR should be understood to mean that, in the event that the data controller or processor is an enterprise in the sense of Articles 101 and 102 TFEU (which means it is "an entity engaged in economic activity" and not a natural person or a public body), the combined turnover of the enterprise as a whole may be used to calculate the maximum limit of the fine, in this case up to 10,000,000 euros or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, "opting for the higher amount." In accordance with Article 83.1 of the GDPR, the administrative fines provided for in paragraphs 4 to 6 must be effective, proportionate, and dissuasive. Three characteristics that can only be attributed to a fine whose amount is determined based on the actual or material economic capacity of its recipient. Hence the need to operate with a material or economic concept of enterprise, rather than employing a strictly formal notion for the calculation of the sanction. The real or material definition of enterprise characteristic of competition law, understood as an economic unit, is adopted by the European legislator for the determination of the amount of fines for violations of the GDPR.

The interpretative criterion regarding the combined turnover of the enterprise is reflected in the criteria of the Guidelines 4/2022 on the calculation of fines under the GDPR, version 2.0 of 24/05/2023, as for example in paragraph 121 "in cases where the data controller or processor is (part of) an enterprise in the sense of Articles 101 and 102 TFEU, the combined turnover of that enterprise as a whole may be used to determine the dynamic maximum limit of the fine (see Chapter 6.2.2, "Legal maximum and corporate liability/determination of turnover and corporate liability of the enterprise/determination of turnover) and to ensure that the resulting fine complies with the principles of effectiveness,

proportionality, and deterrence (Article 83, paragraph 1, of the GDPR)."

This thesis is reflected in case C-807/21, *Deutsche Wohnen* of 5/12/2023:

"56. In this regard, it should be emphasized that, for the purposes of applying the competition rules, as provided for in Articles 101 TFEU and 102 TFEU, this concept...

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includes any entity that engages in an economic activity, regardless of the legal status of that entity and its mode of financing. It thus designates an economic unit, even if, from a legal standpoint, that economic unit is constituted by several natural or legal persons. This economic unit consists of a unified organization of personal, material, and immaterial elements that pursues a specific economic objective in a lasting manner (judgment of October 6, 2021, *Sumal*, C-882/19, EU:C:2021:800, paragraph 41 and cited case law).

57. Therefore, from Article 83, paragraphs 4 to 6, of the GDPR, which concerns the calculation of administrative fines for the infringements listed in those paragraphs, it follows that, in the event that the recipient of the administrative fine is a company or is part of one, in the sense of Articles 101 TFEU and 102 TFEU, the maximum amount of the administrative fine is calculated based on a percentage of the total annual global turnover of the company in question from the previous financial year.

58. Ultimately, as noted by the Advocate General in point 47 of his conclusions, only an administrative fine whose amount is determined based on the actual or material economic capacity of its recipient and, therefore, imposed by the supervisory authority based on the concept of economic unit in the sense of the case law cited in paragraph 56 of this judgment, can meet the three requirements set out in Article 83, paragraph 1, of the GDPR, namely, to be effective, proportionate, and dissuasive at the same time.

59. Consequently, when a supervisory authority decides, under the powers conferred upon it by Article 58, paragraph 2, of the GDPR, to impose an administrative fine on a data controller, which is a company or part of one, in the sense of Articles 101 TFEU and 102 TFEU, in accordance with Article 83 of the aforementioned Regulation, that authority is obliged to base itself, under this last provision, interpreted in light of recital 150 of that same Regulation, when calculating administrative fines for the infringements contemplated in paragraphs 4 to 6 of Article 83, on the concept of "company," in the sense of Articles 101 TFEU and 102 TFEU.

On the other hand, although according to the LNFP the preliminary question in case C-383/2023 of similar content is still pending resolution, in which the Advocate General issued her conclusions on 12/09/2024, it concludes with the same interpretation:

"Article 83, paragraphs 4 to 6, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), must be interpreted to mean that, when fines are imposed on a controller or processor that is a company (or that is part of one), the concept of 'company' must be understood as equivalent to the concept of 'company' in the sense of Articles 101 TFEU and 102 TFEU for the purposes of determining the maximum amount of the fine. Consequently, the total annual global turnover of the company of which the controller or processor is a part is taken into account.

However, to determine the effective fine that must be imposed, the concept of 'company' must be interpreted in relation to Article 83, paragraphs 1 and 2, of Regulation 2016/679 and used as one of the relevant elements, among others, when considering the specific circumstances of the particular case."

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Specific circumstances may refer to the decision-making power of the parent company, the scope of

data processing that infringes the rules of the aforementioned Regulation, and the number of entities within the company involved in the infringement."

Thus, it must be considered that the turnover of the LNFP business group is what should be taken into account for the calculation of the maximum amount contained in the reference of Article 83.4.a) of the GDPR.

According to the Annual Accounts Report for the fiscal year ending 30/06/2023, which mentions LIGA and is available on its website (where all annual accounts of the LNFP since the 2013/2014 season are listed), it is an audit "To the members of the LNFP," "annual accounts as of 30/06/2023" of the LNFP (balance sheet, profit and loss account, statement of changes in equity, cash flow statement, and report corresponding to the fiscal year ending on that date). The LNFP is a sports association established in 1984, and the report addresses the financial situation of the Association as of 30/06/2023. It highlights that LALIGA GROUP INTERNATIONAL SL depends on the Association (LNFP). In note 1 "general information," the entities of which LIGA is the dominant entity are indicated, "all of which are legally dependent either directly or indirectly," totaling EIGHT entities. The entities in which LA LIGA has an indirect joint participation through La LIGA GROUP INTERNATIONAL SL (two) and SIX entities in which it holds an indirect minority participation through LNFP GROUP INTERNATIONAL, S.L. are also mentioned.

According to the aforementioned Report, the consolidated Group of LIGA reports €1,827,764,000 in revenue at the close of the 22/23 season from the commercialization of audiovisual rights.

Furthermore, as institutional information dated 08/08/2023 on its website, at <https://www.laliga.com/noticias/la-comision-delegada-de-laliga-aprueba-el-balance-y-cuentas-de-resultados-consolidado-del-grupo-laliga-con-121-millones-de-beneficio-y-unos-fondos-propios-de-591-millones-de-euros>, it states that the Delegated Commission approves the balance sheet and consolidated income statement of the LIGA group with a profit of €12.1 million and equity of €59.1 million. The news indicates that the accounts of the LNFP Group "refer to all the activities of the Group and its dependent companies. That is, it includes the commercial activities of the national and international subsidiaries of the LNFP and their different lines of activity." "During the 22/23 season, the net amount of the LNFP Group's turnover reached almost €2 billion, representing an increase of €55.3 million compared to the previous season." On a commercial level, it is noteworthy that the sponsorship and licensing activities within the consolidated LNFP Group as a whole have billed a total of €150.2 million."

Regarding audiovisual rights, the consolidated LNFP Group closes the 22/23 season with total billing of €1,827 million."

Additionally, it is specified in note 4.11 "recognition of income, c) Income from the distribution of the gaming tax on the collection of Sports Betting, 2) a, it is specified that "the LNFP, in accordance with RD 203/2010, of February 26, which approves the Regulation for the prevention of violence, racism, xenophobia, and intolerance in sport, is responsible for the prevention of such matters within the stadiums of the participants in the league competition. To fulfill this task, RD 566/2010, of May 7, regulates the distribution of the collection and

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Prizes in state sports betting and other games managed by the ONLAE, in its sole article establishes that an amount of the revenue from the gaming tax is allocated for this purpose.

1.b.1.º For the construction, expansion, remodeling, adaptation, improvement, maintenance, and conservation of the stadiums and sports facilities where professional competitions of a state scope are held or are expected to be held, in order to comply with the provisions established at any given time regarding safety and the prevention of violence in sports events.

The LNFP has expressed in its allegations to the proposal the specificities of the regime for the commercialization of audiovisual rights regulated in Royal Decree Law 5/2015 of 30/04, which is entrusted to the LNFP, being owned by the Clubs and participating entities, with preset distribution values in its article 5. These operations limit the volume of business that must be taken into account

when establishing the maximum annual global business volume to be considered in the dynamic part of the maximum amount of the sanction to be imposed, so such amount of 1,824,764,000 euros in revenue at the close of the 22/23 season from the commercialization of audiovisual rights cannot be counted.

However, after the aforementioned exclusion, according to the allegations made by the LNFP, it offers figures akin to the total annual global business volume with two alternative scenarios:

- An amount of 50,928,000 euros, concept "other operating income" derived from the development of the LNFP's activity as its income in the 22/23 season, or
- An amount, referring to the group of activities carried out by the consolidated group of LA LIGA, which appears in the annual accounts of the LIGA and dependent companies, which includes: Licenses and Sponsorships and other similar, Provision of services for maintenance of sports facilities, and Intra-group operations and other activities: 169,918,000 euros in the 22/23 season.

Furthermore, in its allegations to the initiation agreement, LIGA points out the lack of proportionality in the aggravating factors and that the sanction has only been set based on the amount.

Recital (148) In order to reinforce the application of the rules of this Regulation, any infringement of it must be punished with sanctions, including administrative fines [...]. However, special attention must be paid to the nature, severity, and duration of the infringement, its intentional nature, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringement, the manner in which the control authority became aware of the infringement, compliance with measures ordered against the responsible party or manager, adherence to codes of conduct, and any other aggravating or mitigating circumstances.

[...]

The principle of proportionality of sanctions, as indicated by the Supreme Court rulings, Chamber 3, of 3/12/2008 (Rec. 6602/2004) and 12/04/2012 (Rec. 5149/2009), is the fundamental principle that underlies and governs the process of scaling sanctions and implies, in legal terms, "its adequacy to the severity of the constitutive fact of the infringement," as provided in article 29.3 of Law 40/2015, on the Legal Regime of the Public Sector. Given that any sanction

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must be determined in accordance with the nature of the infringement committed and based on a criterion of proportionality in relation to the circumstances of the act.

It should be noted that from the table of Clubs and SAD provided by the LNFP up to the 22/23 season, with information on the date of implementation of the biometric data systems used for access to the stands of animation, a total of nine teams are included, both in the first and second divisions, out of a total of 20 teams in the first division and 22 in the second. The LNFP subsidiary, SEFPSA, acknowledged in previous investigative actions, on 15/09/2023, that its technological solution for processing biometric data at the access points to the stands of animation in the stadiums was used by SEVEN teams in the first division and EIGHT in the second.

It is concluded that, based on the information provided by the LNFP, the majority of Clubs began to implement the biometric recognition system based on fingerprinting before the first communication from CEVRXD in March 2022. Thus, THREE Clubs implemented it in the same 2015/2016 season, in 2016/2017: FIVE, in 2017/2018: THREE, in the 2018/2019 season: TWO, in the 2022/2023 season: TWO, and for one, the year is not specified.

Regarding the violation of Article 35 of the GDPR, it is estimated that the following may apply:

- a) "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation."

The infringement relates to the proactive compliance with the GDPR prior to processing, with the aim of applying appropriate measures to ensure and demonstrate compliance with the GDPR, taking into account, among other things, the risks of varying probability and severity for the rights and freedoms of individuals, which in this case have not been analyzed in any way, falling under the obligation of data

controllers to carry out a DPIA under certain circumstances, in the context of their general obligation to adequately manage the risks arising from the processing of personal data. The LNFP also established an entity that provided the technological solution and that several Clubs contracted (for example, CF ***CLUB.4).

Processing and associated risks must be updated when the aforementioned risks change. The obligation to collect biometric data is contemplated for all first and second division teams belonging to the LNFP Associates that have stands of animation, regardless of whether alternative usage options that do not include biometric data were offered. This collection, in cases where Clubs had such stands, implies at least the registration of data for use in all seasons since they were implemented, in some cases, since the 2015/2016 season (the same season in which the RGLNFP was approved, approval date 23-12-2015) and during the following seasons in more Clubs, reiterating the processing, presuming a very high impact in terms of intensity of use and number of individuals on whom the processing may fall, according to the spectator capacity that each stadium can accommodate in said stand of animation. Also, considering the number of spectators that can fit in the stands of animation, and that the processing, having another modality to be carried out, persisted until the imposition of the precautionary measure.

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issued in the initiation agreement, communicating its suspension in April 2024, elements that constitute aggravating factors. (83.2.a GDPR).

Regarding the allegation from the LNFP that general concepts are used to aggravate the infringement without objective specification, such as "the treatments involve a very high impact in terms of intensity of use and the number of people on whom the treatment may fall," it turns out that a principle of objective responsibility based on potential risk is applied. Since an aggravating factor of conduct is something merely potential, it should be noted that the failure to comply with the obligation to have a DPIA, due to the intrinsic nature of the obligation it entails, does not directly oppose the execution of the treatments carried out due to lack of legitimacy concerning a specific number of subjects, whether potential or not. Rather, this failure implies an absence of guarantees for all individuals who may use the spectator stands in all the football fields of the Clubs (18) where it was established.

b) The development regarding biometric data includes the approval and publication of Guidelines and opinions since 2003, 2012, 2017, 2019 on video surveillance and biometric data, or in 2017, on the DPIA, with the latest being from 5/2022, regarding the use of facial recognition techniques within the scope of the Law. All of these emphasize the specificities of the aforementioned data and the high risk associated with its processing and the qualified requirement of conditions for it. Likewise, in the matter of definition, concepts, and scope of the figure of the data controller, a similar scenario can be outlined. All this is mentioned to signify that there was sufficient information on the issue to define and interpret the compliance obligations contained in the GDPR. It is also considered that the LNFP, due to the development of its activity which depends on the public that acquires access tickets to the stadiums of the Clubs and SADs directly affected by the measure, which it oversees and supervises, and to whom it directs the use of the system, should have minimally foreseen that rights were affected with different types of compliance inherent in its actions, rights of those affected, risks, treatment design, and its conduct, indicating a serious lack of diligence in the commission of the infringement, so these factors would operate as aggravating (art 83.2.b GDPR).

Regarding this circumstance, the LNFP expressed its disagreement, as it reiterates that the high risk has already been assessed as part of the sanctioning type, ignoring what type of aggravating factor the existence of such documents could be, which also foresee the referred treatment with consent. The LNFP questions the elements contained in this aggravating factor as a serious lack of diligence, regardless of the fact that in this procedure the legitimacy of the treatment is not assessed, and nothing will be stated about the possibility contained in the same Guidelines, other than that its treatment with consent must be preceded by, among other requirements, the prior realization and

overcoming of a DPIA.

With this allegation, it should be clarified that the probability of high risk in the treatment is what leads to the necessity of conducting the DPIA, a high risk that is inherent to biometric data. The assessment of the serious lack of diligence expressed with the guidelines referred to is merely to signify the abundance of information and interpretation existing in the field of biometric data and the concept of the data controller. They imply that it was not possible to overlook the time elapsed since the biometric system was implemented, that its conduct could be supported.

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in a reasonable legal interpretation that it did not have to fulfill the obligation imposed by the GDPR to assess the impact of the ordered data processing. What is intended to be highlighted with the assignment of a serious lack of diligence is that, in addition, since the time its established system has been processing the data of the spectators of Clubs and SAD thanks to the approval of the RGLNF, it has not undertaken this guarantee instrument for processing, which is the DPIA. Therefore, it was possible to require the League to have acted differently with the broadcasting media that this type of processing and its qualification as responsible included since the entry into force of the GDPR, and which presumed at least to question compliance with the duties regarding the involved actors and specifically a DPIA, knowing that it processed biometric data by establishing purposes and means in the RGLNFP and through its subsidiary SEFPSA.

Regarding the allegation of the unequal sanction amount for the infringement of the same article, comparison with case ***CASE.1, file ***PROCEDURE.2 and the business volume indicated, as well as the sanction imposed in that case, it should be noted that in this procedure there was indeed a DPIA as can be deduced from the reading in which its terms are even analyzed. In the present case, despite the fact that since 2018 with the entry into force of the GDPR a data protection regime was established that is based only on new obligations and the new principle of proactive responsibility focused on ensuring compliance with the imposed obligations, it does not seem that it was a concern in the development of the processing in operation since 2015, especially to adapt to the risk assessment for the rights and freedoms of the affected parties that every processing entails and especially that of biometric data and the measures taken to ensure compliance with the obligations imposed by the present Regulation.

The system of proactive responsibility measures includes general obligations such as data protection by design and by default, security measures, and Data Protection Impact Assessment, and classified biometric data as a special category, in which the risks to fundamental rights and freedoms for data protection and the processing of these through compliance with general obligations is imperative.

Regarding the allegations made against the proposal that the LNFP acted driven by the trust that a correct and reasonable interpretation of the regulation generated in it, after arguing that despite the professionalism that is presumed, it had no relationship of any kind with the personal data subject to processing nor with the interested parties to whom they refer, nor has it decided on their purposes and means, and that the provision of the technological solution that allows the processing to be carried out was free of the associates, it must be indicated that the LNFP deduces the request in its allegations that leads to a prohibition error that implies exemption from liability, as it is not attributable due to lack of culpability (intent or negligence).

The prohibition error is included in Article 14.3 of the Penal Code. This figure appears when the author acts with the idea that what they are doing is completely legal, even though such an act is included in the penal code with the corresponding penalty. The prohibition error does not include unlawfulness and typicality.

In this regard, regarding this impossibility, it is necessary to take into account the regulatory change that the GDPR represented, in force since 25/05/2018. As stated in recital 74 "It must...

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establish the responsibility of the data controller for any processing of personal data carried out by themselves or on their behalf. In particular, the data controller must be obliged to apply appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

In this regard, it is not evidenced that the LNFP had raised any aspect regarding what was approved on 23/12/2015, concerning the new data protection regime, a system that has not changed since its approval, which involved the maintenance of the detailed regulatory provisions regarding the objectives and purposes of biometric access to the stands of supporters.

The change from the LOPD to the RGPD and the LOPDGDD transitions from a compliance system to one based on the principle of “proactive responsibility” (“accountability”), as stated in the preamble of the LOPDGDD, “which requires a prior assessment by the data controller or the processor of the risk that the processing of personal data may generate, in order to adopt the appropriate measures based on that assessment.” Given the constant technological evolution and the digital transformation processes affecting personal data processing activities, the reform of data protection regulation represents a shift from the traditional model to a new, more dynamic model focused on the continuous management of potential risks associated with processing from its design.

The proper design of processing activities is a key aspect to ensure the rights and freedoms of the data subjects. Likewise, it is the right moment to define control and security measures to guarantee the rights and freedoms of the data subjects, aiming for processing to begin in compliance with the privacy requirements associated with the level of risk to which it is exposed.

The LNFP brings together the Clubs and SAD that are part of it, manages the audiovisual rights related to the spectators of its members, and the attendees at the competitive matches of its members, along with the consideration of biometric data as special category data since 25/05/2018. Furthermore, in this particular case, the respondent does not raise any assessment when presenting the compliance with the measures it itself approved in 2015, driven in 2022 by the CEVRXID, issues that at least point to a lack of diligence in fulfilling obligations and provisions that do not support the theory of the prohibition error.

Considering all the factors presented, and taking into account especially the allegations of the LNFP regarding the management of audiovisual rights on behalf of the sports clubs and SAD and its impact on the business volume, in order for the sanction to be individual, effective, proportionate, and dissuasive, a sanction of 1,000,000 euros is imposed.

IX Adoption of measures

Article 58.2 of the RGPD states the following: “Each supervisory authority shall have all of the following corrective powers indicated below:

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“d) to order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe;”

f) to impose a temporary or definitive limitation on processing, including its prohibition;

[...]”

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;”

The imposition of these measures is compatible with each other and with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In the second provision of the initiation agreement, it was ordered under Article 69 of the LOPDGDD

and Article 56 of the LPACAP, as a provisional measure, “the communication to the members of the LNFP of a temporary suspension of all processing of personal data related to biometric data for access to the stands of support in first and second division football stadiums. The measure will remain in effect until a valid data protection impact assessment of the processing is available, which takes into account the risks to the rights and freedoms of the fans and the appropriate measures and guarantees for their processing, overcoming the various requirements that it comprises, or even if it is carried out, it will be necessary to carry out the consultation provision established in Article 36 of the GDPR.”

The LNFP has implemented the measure of communicating the temporary suspension of the processing of biometric personal data for access to the stands of support in first and second division football stadiums, not on its own initiative, but at the request of the CEVRXID, shortly after the AN ruled on its request for suspension of measures.

The analyzed processing lacks the minimum guarantees required due to the absence of the presentation and overcoming of the DPIA.

From these premises and in order to guarantee the rights and freedoms of the affected parties, it is deemed appropriate to elevate that temporary suspension to definitive, preventing the continuation of the processing of personal data through the biometric recognition system for access to the stands of support of the Clubs and SAD affiliated with the LIGA, as long as a valid data protection impact assessment of the processing is not conducted and surpassed, which, among other issues, examines the necessity, suitability, and proportionality of the processing, takes into account the risks to the rights and freedoms of the data subjects, and the appropriate technical and organizational measures and guarantees for the processing, or even if it is carried out, it will be necessary to carry out the consultation provision established in Article 36 of the GDPR.

The measure would not prevent the Clubs and sports SADs associated with the LIGA from continuing to control entry correctly and legally with the other systems they are using, nor would it result in the loss of service for the fans, as they can continue to enter the stadiums normally since it is a “complementary” or “alternative” system to that of

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biometric system, as deduced from the practical implementation as shown in this file.

According to the provisions of Article 83.2 of the GDPR and Article 76.3 of the LOPDGDD transcribed above, it is considered necessary, proportional, and effective to guarantee the rights and freedoms at stake of the affected parties and of lesser burden for the LIGA, to impose additionally the elevation to definitive status of the suspension, in accordance with the provisions of Article 69 of the LOPDGDD.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the LIGA NACIONAL DE FÚTBOL PROFESIONAL, with NIF G78069762, for an infringement of Article 35 of the GDPR, in accordance with Article 83.4 a) of the GDPR, classified as serious solely for the purposes of the prescription of said infringement, in Article 73.t) of the LOPDGDD, a fine of 1,000,000 euros.

SECOND: TO ORDER the LIGA NACIONAL DE FÚTBOL PROFESIONAL, with NIF G78069762, and to safeguard the fundamental right of the subscribers to the stands of support, to “temporarily or definitively limit the processing,” with the biometric recognition system for access to the stands of support of the Clubs and SAD affiliated with the LIGA, as long as it does not carry out and exceed a valid data protection impact assessment of the processing that examines, among other issues, the necessity, suitability, and proportionality of the processing, that takes into account the risks to the rights and freedoms of the interested parties and the appropriate technical and organizational measures of all kinds and adequate guarantees for the processing, or even if it were to be carried out, it would need to carry out the consultation provision established in Article 36 of the GDPR.

To this end, it must communicate to its Associates (Clubs and SAD) the definitive suspension of the processing of biometric data as long as a DPIA addressing the specific access regime to the stands of support with biometric data is not executed and exceeded, with the content prescribed in the provisions regulating it.

THIRD: TO NOTIFY this resolution to the LIGA NACIONAL DE FÚTBOL PROFESIONAL.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to

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in accordance with Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code:

CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Once the notification has been received and once it is executive, if the date of executivity falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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